

MASTER SUBCONTRACT

Job No.:	To be determined by separate Work Authorization	BONDS REQUIRED: To be determined by separate Work Authorization
Subcontract No.:	To be determined by separate Work Authorization	
Cost Code(s):	To be determined by separate Work Authorization	

This Master Subcontract ("Agreement" or "Master Subcontract") is made as of **03/01/2026**, ("Effective Date"), between DPR Construction, A General Partnership ("Contractor"), and Subcontractor, in connection with various projects during the term of the Master Subcontract, as Contractor may award in its sole judgment. **This Agreement is only applicable to Projects in the States indicated in Attachment D.**

CONTRACTOR

DPR Construction, A General Partnership
5201 Patrick Henry Drive,
Santa Clara, CA 95054

SUBCONTRACTOR

Pro-Bel Enterprises Limited
765 Westney Rd South,
Ajax, ON L1S 6W1
Phone: 905-427-0616
Vendor No.: 10024958

OWNER To be determined by separate Work Authorization

PROJECT To be determined by separate Work Authorization

ARCHITECT To be determined by separate Work Authorization

THIS DOCUMENT HAS IMPORTANT LEGAL CONSEQUENCES; CONSULTATION WITH AN ATTORNEY IS ENCOURAGED WITH RESPECT TO ITS USE OR MODIFICATION. SOME CONSTRUCTION PRIME CONTRACTS MAY REQUIRE THE USE OF SPECIALIZED PROVISIONS NOT INCLUDED IN THIS FORM.

THIS CONTRACT IS SUBJECT TO BINDING ARBITRATION AS ALLOWED UNDER APPLICABLE LAW.

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SECTION 1. ENTIRE AGREEMENT; INVESTIGATION; PRIME CONTRACT; DEFINITIONS

- 1.1. Entire Agreement. This Agreement is being entered as a “master agreement” between Contractor and Subcontractor to establish the terms and conditions that will be applicable if Subcontractor is engaged to provide work in connection with a particular Project. With respect to any Project for which Subcontractor will be engaged, Contractor (or any of Contractor’s affiliates) and Subcontractor will sign a written Work Authorization (or similar document) defining the general scope of the Project and setting forth certain other Project-specific terms and information. Each Work Authorization will incorporate the terms and conditions of this Agreement. In the Subcontract Documents, references to “the Project” will refer to the particular project described in the applicable Work Authorization, and this Agreement will apply separately to each Project authorized under a Work Authorization. The parties agree that any affiliate of Contractor may issue a Work Authorization to Subcontractor under this Agreement and that solely for purposes of any Work Authorization issued by an affiliate of Contractor all references to “Contractor” in this Agreement or the Work Authorization will refer to that affiliate of Contractor and not to DPR Construction, A General Partnership. This Agreement, including all documents attached hereto or incorporated herein by reference, is the entire agreement between Contractor and Subcontractor with respect to the Work and the Project, and it supersedes all proposals, negotiations, stipulations, understandings, agreements, representations and warranties between Contractor and Subcontractor regarding the Work and the Project that preceded or accompanied the execution of this Agreement.
- 1.2. Applicability of Contract Documents to Subcontractor. Subcontractor and its subcontractors and suppliers of any tier must be bound by the terms of the Contract Documents, including without limitation the Prime Contract, insofar as they relate in any way to the Work, this Agreement or to subcontractors. Subcontractor further agrees to be bound, and must require its lower-tier subcontractors to be bound, to Contractor in the same manner and to the same extent as Contractor is or will be bound to the obligations of the Prime Contract, to the extent the terms relate in any way to the Work or Subcontractor’s obligations under this Agreement.
 - 1.2.1. Depending on the Project, Contractor may be in the role of a general contractor or design-builder to an Owner, or Contractor may be in the role of a subcontractor to another contractor or design-builder. When Contractor is in the role of a subcontractor to an upper-tier party, then Contractor’s “Upper-Tier Parties” include the company that Contractor is in direct contract with for the Project and all upper-tier parties (if any) with which that company is in direct contract for the Project and so on until and including the Owner, but does not include subcontractors of any Upper-Tier Party that is not in Contractor’s direct chain of contractual privity. When Contractor is in the role of a subcontractor to an Upper-Tier Party, then references to “Owner” in this Agreement will refer to the Upper-Tier Parties. When Contractor is in the role of a subcontractor to an Upper-Tier Party, then the defined term “Prime Contract” will consist of all the contract documents binding Contractor to Contractor’s Upper-Tier Parties, including Contractor’s direct contract with the upper-tier contractor or Owner (as applicable), and the contract, if different, between the Owner and the general contractor or design-builder. If any requirements of the Prime Contract documents conflict, the requirements that are more protective of the Owner followed by any other Upper-Tier Parties will prevail in that order.
- 1.3. Investigation by Subcontractor. Subcontractor warrants that it has carefully reviewed, and is thoroughly familiar with, all of the terms of the Subcontract Documents, the plans and specifications as they pertain to the Work, the location of the Project site, and the conditions under which Subcontractor will perform the Work and all Laws that in any way relate to the Work. Subcontractor enters into this Agreement based upon its investigation of all relevant matters, including, without limitation, investigations, testing, and observations of any existing conditions related to or affecting the Work. Subcontractor is not relying on any opinions or representations of Contractor or any person purporting to act on Contractor’s behalf. If Subcontractor discovers any apparent or actual error, omission, code compliance issue, or deficiency in such documents, location, or conditions (any of the foregoing, a “Deficiency”), Subcontractor must, on or before the earlier of (a) five Days after Subcontractor first becomes aware of a Deficiency, or (b) two Business Days prior to the last day upon which Contractor must report a Deficiency under the Prime Contract, notify Contractor in writing of the possible existence of each Deficiency in detail and take any other actions otherwise required of Contractor under the Prime Contract. If Subcontractor believes that additional cost or time is involved because of modifications to the Work as a result of any Deficiencies as to which Subcontractor has given Notice to Contractor per this Section 1.3, then, subject to the provisions of the Prime Contract, Subcontractor may request a Change Order per Section 6. If Contractor has any obligation under the Prime Contract regarding any investigation, testing or inspection of the site and the conditions under which the Work is to be performed, Subcontractor assumes those obligations with respect to the Work and will be solely

responsible for all costs, expenses and damages that may result from Subcontractor's failure to properly perform such investigation, testing or inspection.

1.4. Prime Contract.

1.4.1. Prime Contract Not Yet Executed. If, as of the execution of a Work Authorization, the Prime Contract has not been executed by Contractor and Owner, the terms and conditions of the draft of the Prime Contract referenced in the Work Authorization, as they relate in any way to the Work, are nonetheless incorporated within the Work Authorization as a Subcontract Document. Upon execution of the Prime Contract and written request by Subcontractor, Contractor will make the executed Prime Contract available to Subcontractor. If in that case the Subcontractor believes that differences between the executed Prime Contract and the referenced draft adversely affects the cost or time of Subcontractor's performance of the Work, then Subcontractor may request a Change Order per Section 6.

1.4.2. Review of Prime Contract. By executing a Work Authorization or commencing the Work, Subcontractor is warranting that Subcontractor has reviewed or has been given ample opportunity to review the Prime Contract (whether in draft or executed) and, subject only to Section 1.4.1, the terms of the Prime Contract have no effect on the cost or time of Subcontractor's performance of the Work.

1.5. Definitions. In this Agreement, the following definitions apply.

1.5.1. An "affiliate" is, with respect to any individual or entity, another individual or business entity directly or indirectly, through one or more intermediaries, controlling, controlled by, or under common control with such individual or entity, and includes without limit any parent or subsidiary company of any tier and any sister company. For this purpose, control exists if the individual or entity (a) owns, directly or indirectly, at least 50 percent of the capital of the entity, or (b) in the absence of such ownership interest, substantially has the power to direct the management of such entity.

1.5.2. "Business Day" means any calendar day except a weekend or federal holiday.

1.5.3. A "Change Order" is a formal instrument titled as a Change Order and issued by Contractor to the Subcontractor for signature to indicate agreement between the parties as to a change in the Subcontract Price, time for performance or other terms of the Agreement.

1.5.4. "Contract Documents" means all of the documents included or referenced as part of the Prime Contract between Contractor and Owner for work at the Project.

1.5.5. "Day" means calendar day.

1.5.6. "Key Personnel" means the Subcontractor's representative and any of its personnel named as key personnel in the Subcontract Documents.

1.5.7. "Laws" are defined in Section 18.1.

1.5.8. "Prime Contract" means the contract between Contractor and Owner for work at the Project, including all documents attached or referenced therein.

1.5.9. "Project Schedule" means Contractor's schedule for the Project as of the effective date of the Work Authorization, as identified in Attachment 4 of the applicable Work Authorization.

1.5.10. "State" means the U.S. State in which the applicable Project is located.

1.5.11. "Subcontract Documents" means the entire Agreement, as described in Section 1.1, inclusive of the Contract Documents. The Subcontract Documents are listed in Attachment 1 and in the applicable Work Authorization. Except as provided in Attachment D, if there is any conflict, inconsistency or ambiguity among the terms and provisions of the various Subcontract Documents, the more stringent, greater or broader Subcontractor duty or obligation will govern.

1.5.12. "Work" refers to all work to be performed by Subcontractor under this Agreement, subject to such changes as may be made per Section 6 below.

SECTION 2. SCOPE OF WORK

2.1. Subcontractor agrees to furnish all labor, services, materials, equipment and other facilities required to timely and properly perform the Work, which is generally described as:

To be determined by separate Work Authorizations

and more particularly described in separate Work Authorizations, subject to such changes as may be made per Section 6 below. The Work must be performed according to the Subcontract Documents and the applicable Work Authorization.

- 2.2. Subcontractor understands that drawings and specifications indicate the general scope of the Project and thus do not necessarily indicate or describe all work required for the full performance of the Work. This Master Subcontract and each Work Authorization is executed on the basis of such documents with the understanding that Subcontractor must furnish and install all reasonably inferable items required to properly perform the Work without adjustment to the Subcontract Price. If a dispute occurs between Contractor and Subcontractor over the scope of the Work under the Subcontract Documents and the applicable Work Authorizations, Subcontractor must continue to perform the Work diligently to completion as directed by Contractor, with any dispute to be resolved per Section 17 below.
- 2.3. Only if Subcontractor's Work includes design or engineering services will this Section 2.3 apply.
 - 2.3.1. Contractor has engaged Subcontractor as an independent contractor to design and construct the Work described in Attachment 2 of the Work Authorization. Subcontractor agrees to perform such Work under the general direction of Contractor and subject to the final approval of the Owner according to the Agreement and the applicable Work Authorization(s).
 - 2.3.2. In performing its design Work, Subcontractor must:
 - 2.3.2.1. Furnish by properly State-licensed and qualified architects or engineers all necessary professional architectural and engineering design services for the design of the Work. All design professionals must comply with the applicable insurance requirements set forth in Attachment A. All agreements between Subcontractor and its design professionals must contain provisions expressly providing that Contractor is a third-party beneficiary of the agreement between Subcontractor and its design professional;
 - 2.3.2.2. Furnish all labor and materials, along with competent supervision, shop drawings and samples, tools, equipment, permits and fees necessary for the Work;
 - 2.3.2.3. Give all notices and comply with all applicable Laws;
 - 2.3.2.4. According to the Project Schedule, submit for Contractor's and Owner's approval design development documents, working drawings, specified shop drawings and samples, and data and specifications of materials proposed to be incorporated in the Work. Subcontractor must provide copies of approved drawings in the form and quantity specified by Contractor. Subcontractor must notify Contractor and affected trades of all design changes to its Work in sufficient time to preclude additional costs and conflicts with work of others on the Project. Subcontractor must reimburse any extra costs incurred by Contractor because Subcontractor failed to provide such timely Notice.
 - 2.3.2.5. Coordinate Subcontractor's Work with the design and construction work performed by others outside of this Agreement. The Architect (unless a different design professional is identified by Contractor to Subcontractor) is primarily responsible for coordinating and integrating the design activities and design work product of Subcontractor and other design firms with each other and with Contractor's other design-build trades (if any). Subcontractor will support the Architect in its role as the design lead, take direction from the Architect regarding design Work that is consistent with Contractor's directions and the Subcontract Documents, and integrate Subcontractor's design services and work product with that of the other design firms on the Project so that there is a complete, coordinated and integrated set of design documents for the Project. Subcontractor will furnish sufficient plans and specifications for the Work to Contractor, Architect and other design firms and trades for coordination, construction, and permit purposes.

SECTION 3. SUBCONTRACT PRICE

- 3.1. For Subcontractor performing the Work in strict compliance with the Subcontract Documents, Contractor agrees to pay Subcontractor the Subcontract Price as defined by the checked box below and according to those associated terms:

- 3.2. Compensation Basis.

X To Be Determined By Separate Work Authorization.

☐ **Lump Sum** of \$ _____, paid in monthly progress payments based on value of Work completed each month.

☐ **Cost-Reimbursable, Not-to-Exceed (NTE):** Contractor will pay the total of Subcontractor's Reimbursable Costs per Section 4.5, plus a percentage fee covering Subcontractor's overhead and profit, not to exceed \$ _____ (the "NTE Amount"). The NTE Amount is not guaranteed by Subcontractor. Subcontractor must notify Contractor when 75% of the NTE Amount has been incurred. Contractor will not be obligated to pay Subcontractor for Reimbursable Cost of Work or fee in excess of the NTE Amount unless and until the NTE Amount has been increased by Change Order.

☐ **Cost-Reimbursable with a Guaranteed Maximum Price (GMP)*:** Contractor will pay the total of Subcontractor's Reimbursable Costs per Section 4.5, plus a percentage fee covering Subcontractor's overhead and profit, the sum of which Subcontractor guarantees will not exceed the GMP of \$ _____.

*If the Work Authorization indicates that the GMP will be determined by Change Order at a future time, then prior to the agreement on the GMP Contractor will pay the total of Subcontractor's Reimbursable Costs per Section 4.5, plus the agreed percentage fee covering Subcontractor's overhead and profit, for authorized Work, and the Work Authorization may provide for certain line items of Work to be compensated on a stipulated sum basis. If and when the GMP is agreed, the GMP will apply to all Subcontractor's Work performed under the Work Authorization. If a GMP is not agreed, the Contractor may elect to continue the Work using the cost-reimbursable, NTE method above or to terminate the Work Authorization per Section 14.2 or, if Subcontractor is in default, per Section 14.1.3.

- 3.3. The Subcontract Price is payable according to the payment schedule set forth in Section 4 below and is subject to additions or deductions for changes in the Work as may be directed in writing by Contractor under Section 6 below.

SECTION 4. PAYMENTS

- 4.1. Timing. See applicable State Rider in Attachment D.

- 4.2. See applicable State Rider in Attachment D.

- 4.3. Payment Applications. As a condition precedent to Contractor's obligation to make any payment to Subcontractor under this Section 4, Subcontractor must furnish to Contractor: (a) a written request for payment in the form and content required by Contractor; and (b) if and when required by Contractor, payroll affidavits, receipts, vouchers, applicable lien waivers and releases of claims by Subcontractor, and by materialmen, suppliers, union trustees and trust funds, and subcontractors hired by Subcontractor in the forms set forth in Attachment B of the applicable Work Authorization or in a form reasonably required by Contractor, stop notice releases, and any other information or documents reasonably requested by Contractor or required to be provided to Owner under the Prime Contract. The format and content of all submissions to Contractor under this Section 4.3 must be satisfactory to Contractor. Subcontractor must organize and code its schedule of values, all payment requests, and invoices as directed by Contractor prior to their submittal for payment. Subcontractor will submit its proposed schedule of values to Contractor for approval within two weeks of Work Authorization award, and Contractor's approval is required prior to Subcontractor's submittal of its first request for payment for the Work. Payment for all materials stored offsite is solely at Contractor's discretion. Subcontractor agrees to hold in trust all money paid to Subcontractor for the Work in favor of third parties furnishing labor and material to Subcontractor for the Work.

- 4.4. Joint Checks. Upon five Business Days' Notice, Contractor, at its option, and for good cause including but not limited to Subcontractor's past or present failure to make timely payments to sub-subcontractors, materialmen or suppliers, may make any payment due under this Section 4 by check made payable jointly to Subcontractor and any sub-subcontractors, materialmen, and suppliers hired by Subcontractor who have performed work or furnished materials under this Agreement or by single party check paid directly to such sub-subcontractors, materialmen, and suppliers and credited against the Subcontract Price. In no event will any joint check or direct payment be construed to create any (i) contract between Contractor and a sub-subcontractor of any tier, (ii) obligations from Contractor to such sub-subcontractor, or (iii) rights in such sub-subcontractor against Contractor.

- 4.5. Cost-Reimbursable Payments. To the extent that Subcontractor is entitled to reimbursement of any costs incurred in the performance of the Work ("Reimbursable Costs"), including without limitation Work performed for a Subcontract Price based on costs incurred plus a fee (whether or not subject to a not-to-exceed amount), or any claim for additional compensation pursuant to Section 6 below, Contractor will pay those Reimbursable Costs according to the Prime Contract's cost reimbursement terms, or in the absence of such Prime Contract terms, according to the cost reimbursement terms of the Work Authorization. Any cost reimbursement terms included in the Work Authorization will not govern in any conflict with the Prime

Contract's cost reimbursement terms. Subcontractor must maintain, in a manner and quality satisfactory to Contractor and Owner, accounting records for Reimbursable Costs including, without limitation, supplier and subcontractor invoices, material receiving reports, purchase orders, payrolls, and other such documentation necessary to fully substantiate each reimbursement request. Those records may be audited by Contractor, Owner, or the designated representative of either, with prior notification to Subcontractor, for a period of five years following completion of the Work, or longer if required by the Prime Contract.

- 4.6. At any times reasonably requested by Contractor, Subcontractor must furnish notarized evidence that all labor, materials, and other costs for which it has received payment from Contractor have been paid in full. Subcontractor agrees to provide Contractor with evidence satisfactory to Contractor showing payment by Subcontractor of any and all contributions for health and welfare payments, payroll taxes and other contributions which may be required by Laws.
- 4.7. Meeting Insurance and Bond Requirements. Subcontractor must not commence work on the Project site, and no payments will be due or payable to Subcontractor, unless and until Subcontractor satisfies all of Subcontractor's obligations to provide insurance and performance and payment bonds pursuant to the terms of this Agreement and the applicable Work Authorization.
- 4.8. Interest. See applicable State Rider in Attachment D.

SECTION 5. TIME

- 5.1. Project Schedule; Coordination. Time is of the essence in Subcontractor's performance of the Work and other obligations under this Agreement. Prior to performing any Work, Subcontractor will provide Contractor with scheduling information and a proposed schedule for performance of the Work, including a projection of man-hours and crew sizes, all in forms acceptable to Contractor. Subcontractor's proposed schedule must conform to the Project Schedule and all revisions or changes made to it from time-to-time. Subcontractor will provide timely, accurate schedule input on a weekly basis in a format acceptable to Contractor. When directed by Contractor, Subcontractor will revise and update Subcontractor's activities in Contractor's then-current schedule. The Project Schedule is not a representation by Contractor that Subcontractor will be able to perform its activities on certain dates. Subcontractor must perform the Work in a prompt and diligent manner in accordance with Contractor's schedule, as updated from time to time, without delaying or hindering Contractor's work or the work of other contractors or subcontractors. Subcontractor's performance of Work outside normal workdays and times must be pre-approved by Contractor and will be at no additional expense to Contractor unless otherwise agreed. Subcontractor must coordinate the Work with that of Contractor and all other contractors and subcontractors, in a manner that will facilitate the efficient completion of the entire Project. Subcontractor is subject in every respect to Contractor's direction regarding access to and activities on the jobsite. Contractor has the right to decide all matters relating to the timely and orderly completion of the Work, including without limitation the relative priority of the Work compared to the work of other subcontractors on the Project and the time and order in which various portions of the Work may be performed by Subcontractor. Subcontractor must attend all coordination and other required meetings as Contractor may schedule from time to time. If Subcontractor fails to maintain progress per Contractor's current schedule, it must, without additional compensation, accelerate the Work as Contractor may direct until the Work accords with Contractor's current schedule.
- 5.2. Delays and Time Extensions. Subcontractor must use its best efforts to mitigate the effect of all delays, hindrances or disruptions to its Work. The Subcontractor's time to complete the Work will only be extended by the number of days Subcontractor has been delayed, through no fault of Subcontractor, in performing the Work by any of the following events (each, an "Excusable Delay"): (a) the act, neglect or default of Owner, Architect, or Contractor; (b) delays directly resulting from any fire or other casualty for which Subcontractor is not responsible; (c) labor unrest to the extent excusable as a delay by the Prime Contract and in no way caused by or resulting from the fault or collusion of Subcontractor; (d) a lock-out by Contractor; or (e) other causes which Contractor determines may justify delay; provided, however, no extension will be made unless Subcontractor presents to Contractor a written claim for an extension within 48 hours of the Excusable Delay's commencement, and under no circumstances will the time of completion be extended to a date that will prevent Contractor from completing the entire Project within the time allowed Contractor by Owner for that completion. Any such time extension will be limited to the days that Subcontractor's overall duration of performance is extended by any Excusable Delay. Subcontractor will not be entitled to a time extension to the extent that an Excusable Delay is concurrent with delays caused by Subcontractor or someone for whom Subcontractor is responsible.
- 5.3. Damages for Delays or Disruptions. If Subcontractor has incurred direct out-of-pocket costs in performing the Work as a result of Excusable Delays, hindrances or disruptions to its Work, it may request a Change Order under Section 6. Notwithstanding anything to the contrary in this Agreement, Subcontractor's right to receive additional compensation under this Section 5.3 is subject to any applicable provisions of the

Prime Contract, and any additional compensation allowed will be payable according to Section 4.5 and the Prime Contract. If Excusable Delays are caused by any reason other than the acts of Contractor that interfere with Subcontractor's performance of the Work, Subcontractor is only entitled to additional compensation if Contractor receives compensation from the Owner for Subcontractor's delays and only in the amount of the compensation received by Contractor from the Owner that is allocable to Subcontractor's Excusable Delay, less any mark-up included by Contractor in the claim for additional compensation made on behalf of the Subcontractor to the Owner. Subcontractor is not entitled to compensation for costs caused by delays to the extent that Excusable Delays are concurrent with delays caused by Subcontractor or someone for whom Subcontractor is responsible. Except as specifically allowed under this Section 5.3, Subcontractor waives all rights to damages due to delays, disruptions or hindrances to its Work.

SECTION 6. CHANGES IN THE WORK

- 6.1. Changes. Subcontractor must make any and all changes in the Work described in this Agreement as directed by Contractor in writing. Such change or written direction does not invalidate this Agreement. If necessary, the Subcontract Price and the time for Subcontractor's performance will be subsequently adjusted by Change Order, documenting mutually agreed additions or deductions. Subcontractor must supply Contractor with all documentation necessary to substantiate the amount of the addition to or deduction from the Subcontract Price or the time required to perform the Work. If Contractor and Subcontractor cannot agree on the amount of the additions or deletions, Subcontractor must nonetheless timely perform the Work as changed by Contractor's written direction. At Contractor's sole discretion, such changed work will be performed on a time and material, lump sum, or unit price compensation basis as indicated in Contractor's written direction. Once Subcontractor receives Contractor's written direction, Subcontractor is solely responsible for timely performance of the Work as changed by the written direction. Despite the foregoing, if the change is directed by the Owner, the adjustment in the Subcontract Price and Subcontractor's time for performance will be limited to the amounts approved by the Owner for such change attributed to the Work to be added to or deleted from the Work performed by Subcontractor under this Agreement.
- 6.2. Written Authorization Required. Subcontractor must not make any changes in the Work or in any way cause or allow its Work to deviate from the Subcontract Documents without written direction from Contractor. If Subcontractor makes any changes in the Work without written direction from Contractor, such change constitutes an agreement by Subcontractor that it has waived its right to claim for compensation or an extension of time for such change and that it will not be paid for that changed work, even if it received verbal direction from Contractor or any form of direction, written or otherwise, from Owner or any other person or entity. In addition, Subcontractor is liable for any and all losses, costs, and liability of any nature that in any way relates to or arises out of any such change made by Subcontractor without written direction from Contractor.
- 6.3. Change Quotation Pricing. Subcontractor must submit change quotation pricing in the form and format required by Contractor. If the Prime Contract sets forth rates, unit prices, or mark-ups to be applied to the changes affecting a subcontractor, Subcontractor must utilize such rates, prices, and mark-ups in submitting a change quotation price. Otherwise, such rates, prices and mark-ups will be as stipulated in (a) Attachment 2 of the applicable Work Authorization; or (b) in the absence of such rates in Attachment 2, as detailed in the Bid Form submitted by Subcontractor and accepted by Contractor; or (c) in the absence of any such rates in the Bid Form, as otherwise mutually agreed by Contractor and Subcontractor. Subcontractor's markups on direct costs in change quotations will be limited to the rates defined in Attachment 2 of the applicable Work Authorization.
- 6.4. Direct Costs; Overhead. Direct costs are defined as craft labor, materials, additional equipment costs, tier-subcontracted work, and other direct costs, when they are incurred in direct performance of the changed work. Overhead includes all indirect costs, including, but not limited to, detailing, engineering, purchasing, shop burden, tools, all equipment costs not defined as direct costs, trucks, trucking costs, non-productive labor, and project management costs (onsite and offsite). No multipliers for any soft costs are allowed in calculating the direct costs of, or rates for, the Work. Unless otherwise provided in the Attachment 2 of the applicable Work Authorization, all supervision (e.g., Superintendent, Project Manager, etc.) above the level of foreman will be included in the Subcontractor's markups for overhead and profit.
- 6.5. Time and Materials Changes.
 - 6.5.1. For any work performed on a time and material basis, Subcontractor must submit, EACH DAY, time and material tickets ("T&M Tickets") for signature by Contractor's authorized representative. Contractor's authorized representative is its Project Manager, or a different delegated representative designated in writing. The signature of Contractor's authorized representative acknowledges that the time and material work that day was performed pursuant to Contractor's

direction and that the time and material quantities indicated on the T&M Ticket appear to be correct. The signature of Contractor's authorized representative will not be deemed to constitute agreement that the work of the T&M Ticket has been performed properly in accordance with the requirements of the Agreement, which will remain Subcontractor's responsibility. Furthermore, the signature of Contractor's authorized representative will not be deemed to constitute agreement that Subcontractor is entitled to payment for the amount(s) shown on the T&M Ticket. Subcontractor will not be entitled to payment for any work claimed to have been performed under this Agreement on a time and material basis when the T&M Tickets documenting such work have not been duly signed by Contractor's authorized representative.

6.5.2. Subcontractor's T&M Tickets must include, at a minimum, the following information:

- a. The date on which the work was performed.
- b. A detailed description of the work performed.
- c. The location of the work performed.
- d. The name of the Contractor representative authorizing such work to be performed.
- e. Names, man-hours, and labor rates actually paid by Subcontractor for all labor performed, with separate identification of straight and overtime hours.
- f. Descriptions and costs for each item of material used to perform the work.
- g. Descriptions and costs for each item of equipment used to perform the work.
- h. The signature of Contractor's authorized representative.
- i. The signature of Subcontractor's authorized representative.
- j. Contractor's tracking number.

6.5.3. For work provided on a time and material basis, Subcontractor must provide within 14 days of completion of the work, or earlier if so directed by Contractor, full and complete documentation and cost detail, in a format approved by Contractor, for all time and material costs incurred that Subcontractor requests to be reimbursed. The time and material costs approved by Contractor for applicable changes in the Work will be addressed in one or more Change Order(s) signed by the parties to adjust the Subcontract Price accordingly.

6.6. Scope Disputes. If a dispute arises between Contractor and Subcontractor about whether there exists a change in the Work, Subcontractor must timely perform the disputed work if and as directed by Contractor in writing. Subcontractor must give written Notice of its intent, if any, to claim for additional compensation for that work pursuant to Section 17. **Such written Notice of claim must be given prior to performance of the disputed work.** Subcontractor's failure to properly give written Notice and submit its claim constitutes an agreement that Subcontractor waives all right to be paid for the disputed work or receive an extension of time. If Contractor and Subcontractor cannot agree on the value of the disputed work, Subcontractor must nonetheless timely perform that work if and as directed by Contractor in writing, and Subcontractor will document all costs of such disputed work on either a time and material or unit price compensation basis as determined by Contractor. If it is later determined that such disputed work is a change to the Work, the method determined by Contractor to track the cost of the disputed work will be the basis of determining the change amount.

6.7. Surety. No change, alteration, or modification to or deviation from the Subcontract Documents, whether made in the manner provided in this Section 6 or not, will release or exonerate, in whole or in part, any bond or any surety on any bond given in connection with the Work, and no notice is required to be given to such surety of any such change, alteration, modification, or deviation.

6.8. Claims. If Subcontractor timely gives Contractor written Notice of a claim for additional compensation pursuant to Section 6.6, the format and content of such claim must conform to the requirements set forth in this Section 6.8 and otherwise be satisfactory to Contractor. The Notice and claims requirements of Section 6.6 and 6.8 are of the essence of this Agreement. Claims must be submitted within the earlier of 30 days after notification of intent to claim or such earlier time as may be required by the Prime Contract, and a notation in a Subcontractor's daily report delivered to Contractor is not sufficient Notice of intent to claim. Claims by Subcontractor must provide sufficient details and attached supporting documentation for Contractor to determine the validity of the claim, including but not limited to: a description of the alleged change; a demonstration of contractual entitlement; a detailed breakdown of the costs; the dates on which the costs were actually incurred; a time impact analysis for any time extension request; and a demonstration of how the disputed Work resulted in the claimed costs. If Contractor rejects the claim in whole or in part,

the claim will be resolved per the resolution procedures of Section 17. Upon request, Contractor may review and audit Subcontractor's project records and actual cost data relating to Subcontractor's claim. Subcontractor must reasonably cooperate with Contractor in appropriately documenting Subcontractor's claims that Contractor will be submitting to Owner, insurers, sureties or other third parties. Notwithstanding anything to the contrary in the Subcontract Documents, if Subcontractor has a claim or cause of action against Contractor of a kind that Contractor is covering in whole or in part through its status as a named insured or bond obligee under an applicable default insurance policy or surety bond, then Subcontractor's recovery from Contractor for the covered portion of the claim or cause of action will be limited to the dollar amount actually paid by the applicable insurer or surety on the Subcontractor's claim.

- 6.9. **Unforeseen Conditions.** An "Unforeseen Condition" is a condition at the Project site that is (a) a subsurface or otherwise concealed physical condition that differs materially from those conditions indicated in the Subcontract Documents or (b) an unknown physical condition of an unusual nature that differs materially from those ordinarily found to exist and generally recognized as inherent in construction activities of the character provided for in the Subcontract Documents, provided that such condition also differs materially from those conditions that should have been discovered by Subcontractor performing the investigations, testing or inspections required of Subcontractor per Section 1.3. If Subcontractor encounters an Unforeseen Condition, then Subcontractor must deliver to Contractor Notice of the Unforeseen Condition promptly before it is disturbed and no later than 24 hours after first observance of the conditions. If the Prime Contract has procedures governing Unforeseen Conditions, Contractor and Subcontractor will comply with those procedures. To the extent the Prime Contract does not provide those procedures, the following procedures of this paragraph will apply. Contractor will initiate a prompt investigation of the Unforeseen Condition, which may in Contractor's discretion include a request to Owner or Architect to investigate. If it is determined that the conditions at the Project site constitute an Unforeseen Condition and causes an increase or decrease in the Subcontractor's cost of, or time required for, performing any part of the Work, an adjustment will be made by Change Order to the Subcontract Price or time for performing the Work, or both, subject to allowability per the Prime Contract. The amount of the adjustment to the Subcontract Price or time for performing the Work, if any, will be limited to the amount of additional costs or time that Contractor receives from Owner on Subcontractor's behalf based upon the claim submitted by Subcontractor. If it is determined that the conditions at the Project site are not Unforeseen Conditions, no equitable adjustment will be made to the Subcontract Price or time for performing the Work. Claims by Subcontractor in opposition to this determination must be made within the earlier of: (y) 21 days after Contractor has given Notice of the decision; or (z) two Business Days prior to the last day that Contractor may oppose a similar determination under the Prime Contract. Subcontractor's rights under this Section 6.9 are subject to Contractor's rights to oppose any determination by Owner or Architect under the Prime Contract or other agreement. Subject to the limitations herein, if Contractor and Subcontractor cannot agree on an adjustment to the Subcontract Price or time for performing the Work, the adjustment will be resolved per Section 17.

SECTION 7. DAMAGES CAUSED BY DELAYS

- 7.1. If Subcontractor defaults in its performance of the Work or otherwise commits any act or omission that delays Contractor or other subcontractors or suppliers or the Project, or delays the completion of the Project, Subcontractor must pay for all losses, costs, expenses, liabilities and damages sustained by Contractor or for which Contractor may be liable to Owner or any other party to the extent caused by Subcontractor's default or act or omission.

SECTION 8. BONDING OF SUBCONTRACTOR

- 8.1. Subcontractor will, if required by Contractor, furnish payment and performance bonds, each in an amount equal to 100% of the Subcontract Price, to secure faithful performance of the Work Authorization and the payment of all Subcontractor obligations for that Project. Bonds must be submitted on the Contractor bond forms included in the bid documents, which bond forms are incorporated by this reference as part of the Agreement for that Project.
- 8.1.1. The surety issuing such bonds must be:
1. Licensed in the state in which the Work is to be performed;
 2. Listed in the latest version of the Department of Treasury's Circular 570, "Companies Holding Certificates of Authority as acceptable Sureties on Federal Bonds and as Acceptable Reinsuring Companies," with bond amount less than or equal to the underwriting limitation;
 3. Rated by A.M. Best at A- VII or better; and
 4. Otherwise reasonably acceptable to Contractor.
- 8.2. Contractor will pay the premium on these bonds at the Subcontractor's actual incurred cost, without markup, and such amount is included in the Subcontract Price.

- 8.3. If at any time after acceptance of Subcontractor's bonds, the surety fails to meet the criteria stated above, Subcontractor must, as a pre-condition to continue the Work and receive further payment, replace the bonds with bonds that meet the stated criteria or other security acceptable to Contractor.
- 8.4. Receipt of bonds by Contractor without objection or failure to collect bonds required by the Subcontract Documents does not constitute a waiver of the requirements.
- 8.5. Subcontractor and its surety agree, without the necessity for any further authorization, to increase the bonds' penal sums, if and when additive changes to the Subcontract Price are executed.
- 8.6. Subcontractor and its surety agree that no change, extension of time, alteration, addition, omission, or other modification of the terms of either the Subcontract Documents or the Prime Contract, or both, will affect the surety's obligation on the bonds, and both Subcontractor and its surety waive notice to the surety of, and consent to, any changes, extensions of time, alterations, additions, omissions, and other modifications.

SECTION 9. LIENS

- 9.1. Satisfaction of Liens. Provided Contractor is not in default of its payment obligations to Subcontractor for the Work, if an action is brought on any claim or lien, by any party for whom Subcontractor is responsible, for labor or services performed or equipment and materials provided in connection with the Work (a "Lien"), Subcontractor must pay and satisfy the Lien.
- 9.2. Removal of Action or Lien. Provided Contractor is not in default of its payment obligations to Subcontractor for the Work, within ten days after Contractor delivers to Subcontractor a written demand to cause any Lien to be removed from the premises Subcontractor must cause the Lien to be removed or dismissed or else post a bond to remove the Lien. If Subcontractor fails to do so, Contractor may take whatever steps it may deem in its sole discretion appropriate to cause the Lien to be removed or dismissed, including posting a bond to remove the Lien. All costs incurred by Contractor regarding a Lien, including actual attorneys' fees, plus a markup of 15% for overhead, will be due and payable to Contractor by Subcontractor upon demand. Subcontractor may litigate the Lien, provided it causes the effects of the Lien to be promptly removed from the Project to the satisfaction of Contractor and Owner. Subcontractor must also take whatever steps are necessary to cause Owner not to withhold any payment to Contractor by reason of the Lien. Contractor is not in default of its payment obligations to Subcontractor for withholding payment as allowed under this Agreement.
- 9.3. Condition Precedent. The full and faithful performance of this Agreement on the part of Subcontractor (including the payment of any obligations due from Subcontractor to Contractor and any amounts due to labor or materialmen furnishing labor or material for the Work or to union trustees or trust funds) is a condition precedent to Subcontractor's right to receive payment for the Work.

SECTION 10. PROVISIONS FOR INSPECTION

- 10.1. All Work is subject to inspection. Subcontractor must at all times furnish to Owner, Architect, Contractor and their representatives, building inspectors and other governmental or private inspectors or their designees safe and ample facilities for inspecting materials at the Project site, shops, factories or any place of business of Subcontractor and its subcontractors and materialmen where materials under this Agreement may be in the course of preparation or manufacture. Special inspections will be scheduled by Subcontractor and coordinated with Contractor. Subcontractor is responsible for notifying the proper inspectors and Contractor not less than one Business Day prior to the required inspection, unless a longer period of time is required by the Prime Contract. Subcontractor is responsible at its cost for all additional fees, penalties, and expenses associated with non-complying Work. Subcontractor must furnish to Contractor as often as required by Contractor full reports of the progress of the Work at any place where materials under this Agreement may be in the course of preparation or manufacture. These reports will show the progress of that preparation and manufacture in such details as may be required by Contractor, including any plans, drawings, or diagrams.
- 10.2. If at any time Contractor has a reasonable concern about Subcontractor's ability to perform the Work Authorization or if Subcontractor is in default of the Work Authorization, then Contractor or its designated representatives may, at any time upon reasonable Notice, inspect, review, and make copies of Subcontractor's books, accounts, records, subcontracts, purchase orders, and other data relating to the Work, all of which Subcontractor must preserve for at least three years after completion of the Work. Such inspection will take place at Subcontractor's offices during normal business hours unless another location and time is agreed by the parties. Unless Owner's audit rights are greater under a specific Prime Contract provision, Contractor's review will not include reviewing any books, accounts, records or other data to the extent any of them involve the calculation, composition or determination of any stipulated or fixed sums or rates agreed by the parties and set forth in the Work Authorization. In addition, within five Days of Contractor's demand, Subcontractor must provide Contractor with a sworn statement reasonably

acceptable to Contractor certifying to (a) the amounts and status of Subcontractor's accounts with its lower-tier subcontractors and suppliers connected with the Work and (b) the status of performance by, and claims asserted by, Subcontractor's lower-tier subcontractors and suppliers connected with the Work. This paragraph is in addition to any Prime Contract rights to audit or review Subcontractor's books and records. Subcontractor must include the requirements of this Section 10.2 in each of its sub-subcontracts at any tier.

SECTION 11. MATERIALS AND WORK FURNISHED BY OTHERS

- 11.1. If the Work includes installation of materials or equipment furnished by others or work to be performed in areas to be constructed or prepared by others, immediately prior to performing that portion of the Work Subcontractor must examine the items or areas to confirm they are of acceptable quality or condition for the Work or else to notify Contractor in writing of unacceptable conditions. If Subcontractor reasonably concludes the items or areas are so acceptable, Subcontractor must secure, handle, store and install the items with sufficient skill and care to complete the Work according to the Subcontract Documents. By using these items or commencing any Work in those areas, Subcontractor is accepting the condition of those items or areas and waiving any right to request additional compensation or an extension of time because of their condition except for latent defects not discovered by Subcontractor or its sub-subcontractors after appropriate examination.

SECTION 12. PROTECTION OF WORK

- 12.1. Subcontractor must secure and protect the Work performed and assume full responsibility for the condition of the Work until final acceptance by Architect, Owner, and Contractor. Subcontractor must also provide the necessary amount of protection to protect the Work and the workmen and property of Contractor, Owner and other contractors and suppliers from Subcontractor's operations. Subcontractor will be responsible at its cost for any loss or damage to any work in place or to any equipment and materials at the Project site caused by Subcontractor or its agents, employees or guests or by Subcontractor's failure to secure and protect the Work until it is accepted.

SECTION 13. LABOR RELATIONS

- 13.1. Representative. Prior to commencing any Work, Subcontractor must designate a responsible representative at the Project site to be available at the Project site at all times when the Work is in progress. Subcontractor's representative must be authorized to represent Subcontractor as to any aspect of the Work and to act on Subcontractor's behalf. The representative, as well as other Subcontractor personnel named as such in Attachment 2 of the applicable Work Authorization, if any, are Key Personnel, who must not be re-assigned or removed from the Project without Contractor's prior written approval. In addition, Subcontractor's personnel assigned to the Project must be fit, experienced, and competent to perform their tasks and must work in a safe, courteous, and cooperative fashion with Contractor and the other participants present at the site at any given time. Subcontractor must promptly remove from the Project any of Subcontractor's personnel who fail to satisfy these requirements or are otherwise objectionable to Contractor or Owner and must replace them with personnel who will satisfy these requirements, at no additional costs or delay to the Project or Contractor.
- 13.2. Disadvantaged Business Status; Local Hiring Requirements. For purposes of this Section 13.2, a "DBE" refers to any of the various certifications or designations used by various public and private entities for historically disadvantaged or underrepresented categories of business owners, including without limitation Disadvantaged Business Enterprise (DBE), Minority Business Enterprise (MBE), Women Business Enterprise (WBE), Veteran Owned Business Enterprise (VBE), Disabled Veteran Business Enterprise (DVBE), Historically Under-utilized Business Zone certified business (HUBZones) and Small Business Enterprise (SBE). Subcontractor warrants that it has reviewed and is thoroughly familiar with all DBE requirements pertaining to the Project, if any. If Subcontractor claims status as any kind of DBE, the Subcontractor must provide all necessary records to Contractor and Owner to confirm that status and Subcontractor's compliance with those requirements. If any sub-subcontractor or supplier of Subcontractor is designated or is required to be any kind of DBE, Subcontractor must ensure that the sub-subcontractor or supplier meets all applicable requirements. If applicable, Contractor is relying on Subcontractor's representations regarding the validity of the status of Subcontractor or its sub-subcontractors or suppliers as the applicable DBE. Misrepresentation of the status of Subcontractor or any of its sub-subcontractors or suppliers as a DBE is a material breach of this Agreement and grounds for immediate termination. If this Agreement or a Work Authorization is terminated due to a material misrepresentation of the status of Subcontractor or any sub-subcontractor or supplier of Subcontractor as a DBE, Subcontractor forfeits any right to compensation not already paid under this Agreement and Contractor may demand that Subcontractor pay any of Contractor's excess costs and expenses related to completing the Work per Section 14.1.3. In addition, Subcontractor must also comply with any applicable municipal or county local

hiring or labor requirements intended to increase the employment of local residents or the use of local or disadvantaged businesses or suppliers.

- 13.3. Employment Laws. See applicable State Rider in Attachment D.
- 13.4. Labor Agreements. See applicable State Rider in Attachment D.
- 13.5. Labor. See applicable State Rider in Attachment D.

SECTION 14. RECOURSE BY CONTRACTOR

14.1. Failure of Performance.

- 14.1.1. Right to Adequate Assurance. If, at any time during Subcontractor's performance of the Work, Contractor has what Contractor, in its sole discretion, believes to be reasonable grounds for insecurity regarding Subcontractor's performance, Contractor may demand in writing that Subcontractor provide adequate assurance of its due performance. If Subcontractor fails to provide such assurance that is reasonably acceptable to Contractor within five Business Days after Subcontractor's receipt of written demand, Subcontractor will be in default under Section 14.1.2.
- 14.1.2. Notice to Cure; Default; Remedies. If Subcontractor at any time: (a) refuses or neglects to supply enough properly skilled workers and proper materials for the Work; (b) fails to properly and diligently perform the Work; (c) fails to comply with Laws or otherwise fails to make prompt and proper payment to its workers, sub-subcontractors, or suppliers, including without limitation any payment required to be made to any employee benefit program or trust; (d) is in breach of any representation, warranty or covenant made by it in the Subcontract Documents; (e) fails to perform in strict accordance with Contractor's safety requirements (including any corrective action plans agreed to between Contractor and Subcontractor as a prerequisite of Contractor's qualification of Subcontractor); (f) fails to provide the documentation required under Section 14.4 within the required timeframe; or (g) commits or fails to commit any act that would constitute a default under the Prime Contract by either Contractor or Subcontractor; then Subcontractor will be in default under this Agreement. If Subcontractor commits a default that is permitted to be cured under the Prime Contract and fails to commence and continue satisfactory correction of the default within 48 hours after receipt of a written Notice thereof from Contractor, or if Subcontractor commits a default that is not permitted to be cured under the Prime Contract, then Contractor, without prejudice to any other rights or remedies, may pursue any or all of the following remedies:
 - a. take any measures toward curing the default, including without limitation supplying workers, material, and equipment as Contractor deems necessary for the orderly and timely performance of the Work, and/or contracting with one or more additional contractors to perform all or part of the Work. Subcontractor must pay upon demand all costs incurred by Contractor to cure the default, plus a markup of 15% for overhead and profit on all expenses incurred by Contractor in performing the Work, plus actual attorneys' fees relating to the default;
 - b. use any materials, equipment, or tools furnished by or belonging to Subcontractor to complete the Work, or furnish those items to other contractors to complete the Work, without additional compensation to Subcontractor; and/or
 - c. withhold payment of any monies due Subcontractor to the extent required by and to the satisfaction of Contractor until the default is cured and/or offset any amounts incurred by Contractor to cure the default against any monies due Subcontractor.

These remedies are cumulative and by pursuing one remedy Contractor will not be deemed to have elected that remedy to the exclusion of any others. In an emergency affecting the safety of persons or property, Contractor may pursue any remedy above without prior Notice.

- 14.1.3. Termination for Default. In addition to any other remedies available to Contractor, including without limitation those specified in Section 14.1.2, if Subcontractor fails to commence and satisfactorily continue correction of any default that is permitted to be cured under the Prime Contract, or if Subcontractor commits a default that is not permitted to be cured under the Prime Contract, or if Subcontractor is in breach of any representation, warranty or covenant made by it in the Subcontract Documents or in any document furnished by it under the Subcontract Documents, then Contractor may immediately terminate Subcontractor's right to perform the Work by written Notice. After termination, Subcontractor will not be entitled to any further payments until the remainder of the Work has been completed. When the remainder of the Work has been completed, all of the costs incurred by Contractor in performing the remainder of the Work, including a markup of 15% for overhead and profit on such costs, plus actual attorneys' fees

relating to the default, will be deducted from the unpaid balance of the Subcontract Price, with any remaining amount of Contractor's costs (including markup) due from Subcontractor upon demand.

14.1.3.1. If a termination for default is later determined by a court or arbitrator to have been made wrongfully or without sufficient cause, then the rights and obligations of the parties will be the same as if the termination had been issued for the convenience of Contractor per Section 14.2. No other loss, cost, damage, or liability may be claimed or recovered by Subcontractor for a wrongful termination by Contractor.

14.1.4. Effective only upon Contractor's written election to Subcontractor following a termination of Subcontractor's right to perform the Work under this Section 14, Subcontractor assigns to Contractor any of those lower-tier subcontracts and purchase orders for the Work that Contractor elects to assume. Subcontractor must include provisions in its tier-subcontracts and purchase orders for such assignment without condition or the need for the consent of such tier-subcontractors or vendors.

14.2. Termination for Convenience. Contractor may at any time and without cause terminate a Work Authorization or this Agreement at Contractor's convenience by delivering to Subcontractor a written Notice of termination.

14.2.1. Upon receipt of a Notice of termination under this Section 14.2, Subcontractor will, unless the Notice directs otherwise, immediately discontinue performing the Work and placing orders for materials, facilities, and supplies for the Work. Subcontractor must, if requested, make every reasonable effort to cancel all existing orders or contracts upon terms satisfactory to Contractor, or at Contractor's option, assign such contracts to Contractor per Section 14.1.4. Following receipt of the Notice of termination, Subcontractor must, if directed by Contractor in writing, perform any work that may be necessary to preserve and protect the Work already in progress and to protect the associated material and equipment at the Project site or in transit thereto until the Work is transitioned to another party.

14.2.2. Upon a termination under Section 14.2, Subcontractor's compensation for the Work will be calculated only as follows, subject to any limitations imposed by the Prime Contract: (a) the actual direct cost of the Work performed in conformity with the Subcontract Documents as verified by Contractor's audit plus 15% as overhead and profit, but the total amount of direct cost plus overhead and profit will be limited to no more than the percentage completion of Subcontractor's Work at the effective date of the termination multiplied by the Subcontract Price; plus (b) any other costs actually incurred by Subcontractor post-termination as are permitted by the Prime Contract and approved by Contractor and Owner. In no event will Subcontractor be entitled to total payments of this Section 14.2 in excess of the Subcontract Price. Any payments made to Subcontractor prior to the date of the termination will be credited towards the compensation payable to Subcontractor under this subparagraph. Subcontractor must submit its request for final payment per Section 4 within 30 days of receiving Contractor's Notice of termination or earlier if so required by the Prime Contract. Subcontractor expressly waives any claim for damages or breach of contract resulting from Contractor's exercise of this termination right, including but not limited to any claim for loss of anticipated profits on Work unperformed or on unfurnished materials or equipment or other damages.

14.3. Grounds for Withholding Payment. Contractor may withhold payment or, on account of subsequently discovered evidence, nullify the whole or part of any previous payment, to the extent Contractor deems it necessary to protect itself from loss, including without limitation costs and attorneys' fees, due to: (a) defective Work not remedied; (b) claims filed, or reasonable evidence indicating a probable filing of a claim, by any third party or any employee, sub-subcontractor, or supplier of Subcontractor relating to the Work or Project; (c) failure of Subcontractor to make proper payments to its employees, sub-subcontractors, suppliers, or any employee benefit program or trust; (d) a reasonable doubt by Contractor that the Work can be completed by Subcontractor in accordance with this Agreement for the balance of the Subcontract Price then unpaid or within the time fixed for completion of the Work; (e) damage caused by Subcontractor or its sub-subcontractors, suppliers or agents to another contractor or supplier; (f) penalties assessed against Contractor or Subcontractor for failure of Subcontractor to comply with Laws; (g) grounds under which Owner may elect to withhold payment under the Prime Contract on account of Subcontractor's performance; (h) Subcontractor's failure, or Contractor's reasonable anticipation that Subcontractor will fail, to comply with any requirement of the Subcontract Documents, including clean-up; (i) Subcontractor's failure to timely and accurately submit any report (including complete Subcontractor's daily reports), submittal, or lien release required pursuant to this Agreement; and/or (j) any other ground for withholding payment allowed by Laws or as provided in this Agreement. In any of those events, any amounts then due and owing

to Subcontractor will be paid or credited to it without interest upon the event being rectified to Contractor's full satisfaction.

- 14.4. Bankruptcy. Upon the occurrence of any Insolvency (defined below), Contractor may demand that Subcontractor or its successor in interest provide: (a) written adequate assurance of future performance of the Work and all other obligations under the terms of this Agreement; and (b) a fully completed and current affidavit showing all lower-tier subcontractors, suppliers, and consultants at any tier and of any value, including their legal entity name, contract price, amounts invoiced to date, total paid to date and contact information. Adequate assurance of future performance must include a plan acceptable to Contractor for Subcontractor to promptly cure all defaults and reimburse Contractor for its actual loss resulting from such defaults and a commitment of any bankruptcy trustee or receiver to support the assumption of the obligations of the Master Subcontract and open Work Authorizations within statutory time limits. If Contractor does not receive the written adequate assurance and the affidavit of subcontractors, suppliers, and consultants within seven days of delivery of the demand, Contractor may terminate the Master Subcontract and any uncompleted Work Authorization for default under Section 14.1.3 upon written Notice to Subcontractor and, if applicable, its surety and trustee or receiver. Thereupon, Contractor may exercise, without limiting other remedies, the rights set forth in Sections 14.1.3 and 14.5. Pending receipt of adequate assurance of performance, bankruptcy court approval of the assumption of Subcontract obligations (to the extent required by Laws), and Subcontractor's complete and prompt cure of all defaults, Contractor may perform Subcontractor's Work with its own forces or with other contractors and suppliers and back charge Contractor's costs and a 15% markup for overhead and profit against the Subcontract Price. "Insolvency" means (i) an assignment (either a general assignment or assignment of rights to payment) for the benefit of creditors; (ii) commencement of proceedings under any federal or state bankruptcy, insolvency, or readjustment of debt or liquidation Laws; or (iii) the appointment of a trustee or receiver for all or a portion of the Subcontractor's estate or assets.
- 14.5. Interim Remedies. Contractor may recoup from any sums due or to become due Subcontractor all Contractor's costs incurred in pursuing any remedy for Subcontractor's failure to perform as required by the Subcontract Documents, including, but not limited to, a 15% charge for overhead and profit on Contractor's costs plus actual attorneys' fees incurred due to Subcontractor's failure to perform as required. Upon demand, Subcontractor must pay Contractor any amount by which such costs may exceed the unpaid balance of the Subcontract Price, in addition to any other remedies available to Contractor.
- 14.6. Offset.
- 14.6.1. If Subcontractor is obligated to pay Contractor any amount under the Subcontract Documents, and if the remaining payments due under the applicable Work Authorization are not sufficient to pay Contractor the amount owed by Subcontractor, Contractor may retain sufficient funds to pay Contractor any amount owed by Subcontractor from any funds due Subcontractor under any subcontract, purchase order or work authorization between Contractor and Subcontractor on any project other than the Project covered by the applicable Work Authorization. Contractor may retain any funds that may be due to Subcontractor on any other project as described above even though Subcontractor has diligently completed the work on the other project and is not in default of the subcontract, purchase order or work authorization from which the funds are being retained by Contractor.
- 14.6.2. Contractor may retain any funds that may be due and owing to Subcontractor on the Project covered by a Work Authorization to cover any excess costs (including profit, overhead and attorneys' fees) incurred by Contractor on any other project covered by a subcontract, purchase order or work authorization between Subcontractor and Contractor as a result of Subcontractor's failure to properly perform under said other subcontract, purchase order or work authorization. Contractor may retain any funds that may be due to Subcontractor on the Project to cover the excess costs of Contractor on another project as described above even though Subcontractor has diligently completed the Work or is diligently completing the Work on the Project and is not in default under the terms and provision of the Subcontract Documents.
- 14.7. Survival. The Contractor's rights and remedies under the Subcontract Documents, including without limitation Subcontractor's obligations of indemnity, warranty and reimbursement of Contractor's costs, survive the termination of this Agreement or any Work Authorization.

SECTION 15. INDEMNIFICATION AND DUTY TO DEFEND

- 15.1. General Indemnity. See applicable State Rider in Attachment D.
- 15.2. Risk of Loss. All Work performed at the Project site or in preparing or delivering materials or equipment, or any or all of them, to the site will be at the risk of Subcontractor exclusively until the Work as completed is

accepted by Contractor, except to the extent that such risk is covered by Builder's Risk insurance, if any, provided by Contractor or Owner.

- 15.3. Protection from Joint Employer Liability. To the fullest extent allowed by Laws, Subcontractor must defend, indemnify and hold harmless Contractor, its joint venture and its joint venture partners, if any, its affiliates, and their respective owners, officers, employees, and agents, from and against any and all claims, allegations, legal proceedings, damages, costs and liability, including actual attorneys' fees, arising out of or related to an allegation or finding that Contractor is a joint employer or statutory employer of, or otherwise legally responsible for, the employees of Subcontractor or any of its lower-tier subcontractors, including without limitation any claims by their employees or by government authorities seeking to hold an indemnitee responsible for the unfair or illegal labor practices of Subcontractor or any of its lower-tier subcontractors, failure to pay wages, failure to pay employment taxes, failure to provide required insurance or benefits or (if applicable) union contributions, failure to protect against harassment, or unsafe working conditions.
- 15.4. No Limitation of Liability. The indemnities set forth in this Section 15 are not limited by, nor will they be deemed to modify, the insurance requirements of Section 16.
- 15.5. Survival. The provisions of this Section 15 will survive the termination or expiration of this Agreement and the completion of the Work.

SECTION 16. INSURANCE

- 16.1. Subcontractor must, at no increase in the Subcontract Price, comply with the insurance provisions set forth in Attachment A and in the Prime Contract that apply to Subcontractor. If there is any conflict, inconsistency or ambiguity between the provisions of Attachment A and the Prime Contract, the more stringent, greater or broader Subcontractor insurance requirements, limits and coverages will apply.

SECTION 17. DISPUTE RESOLUTION PROCEDURES

- 17.1. Means of Resolution. The dispute resolution procedures of the Prime Contract (which procedures are incorporated into the Work Authorization by this reference) apply to any disputes arising in connection with the Work if such disputes involve or are alleged to involve acts or omissions of Owner or its representatives or involve a dispute between Owner and Contractor. For any such dispute involving Owner, Contractor and Subcontractor (together with any surety(ies) that have provided performance and payment bonds guaranteeing Subcontractor's obligations under the Work Authorization (the "Subcontractor Bonding Company") will participate together in the same dispute resolution proceeding unless Owner or Contractor disapproves Subcontractor's participation. Subcontractor agrees, on its own behalf and on behalf of the Subcontractor Bonding Company, if any, to join in any dispute resolution proceeding between Contractor and Owner, if requested by Contractor, and to consolidate those proceedings. If Owner is a party to the arbitration between Contractor and Subcontractor, the rules and procedures applicable to the dispute resolution process between the Owner and Contractor will also apply to the arbitration involving Owner, Contractor, and Subcontractor. If the dispute does not involve acts or omissions of Owner or its representatives, does not involve a dispute between Owner and Contractor related, in any manner to the Work, or if there is no dispute resolution procedure in the Prime Contract, then all claims, disputes and matters in question arising out of or relating to the Work or this Agreement (a "Dispute"), including claims against any payment bond issued for the Project by sureties for Contractor (the "Contractor Sureties"), but excluding any claims which have been waived by Subcontractor by the acceptance of final payment or otherwise, must be decided by the claims procedure set forth in Section 17.2.
- 17.2. Dispute Resolution Procedure.
 - 17.2.1. Dispute Notice. If either Contractor or Subcontractor determines that a Dispute exists, that party (the "Disputing Party") must provide written Notice of the Dispute to the other, setting forth the nature of the Dispute with specific details (a "Dispute Notice").
 - 17.2.2. Informal Resolution. For a reasonable period commencing on the day the Dispute Notice is delivered by the Disputing Party to the other, not to exceed 30 days and prior to commencing any mediation, arbitration or litigation, the parties must appoint senior executives to meet and in good faith attempt to resolve the Dispute. However, this section and Section 17.2.3 do not prevent a Disputing Party from filing Liens or legal actions necessary to preserve rights before statutory deadlines expire, but the Disputing Party must stay any such legal actions during the periods for dispute resolution under Sections 17.2.2 and 17.2.3.
 - 17.2.3. Early Neutral Evaluation. If the parties do not resolve the Dispute during the period in Section 17.2.2, whether or not the parties actually meet during that period, the Disputing Party, if it desires to continue pursuing a resolution to the Dispute, must proceed in good faith with the neutral evaluation process provided under this Section ("Neutral Evaluation") before initiating any legal

action or dispute resolution proceeding under the Agreement. The Disputing Party must commence the Neutral Evaluation by delivering a written Notice thereof to the other party. Within 30 Days after the Disputing Party delivers such Notice to the other, the parties will agree on a disinterested third party ("Evaluator") with expertise in similar projects to hear the Dispute. If the parties fail to agree on an Evaluator within that 30 Day period, then the Disputing Party may request the American Arbitration Association ("AAA") to appoint an Evaluator that is a disinterested third party with expertise in similar projects, provided that the Disputing Party sends a copy of the AAA request to the other party. If requested by Contractor, the Subcontractor Bonding Company, if any, must join the Neutral Evaluation. The Evaluator will provide a non-binding recommendation on how to resolve the Dispute, which the parties will use to structure a framework for settlement or, at a minimum, to streamline the issues for further dispute resolution under the Agreement. To facilitate resolution, each party must prepare a position paper no longer than 15 pages explaining their respective positions. Unless otherwise mutually agreed, each party must also prepare a short presentation, no more than one hour, before the Evaluator and other party, which may take place in-person, by video, or by online meeting. Within seven Days of the presentations, each party may submit a rebuttal statement to the Evaluator and the other party. Upon completion of both parties' presentations, the Evaluator will issue a non-binding recommendation regarding the Dispute within 15 Business Days (unless good cause is shown) but no sooner than 10 Business Days to allow consideration of rebuttal statements, that identifies areas of agreement, forecasts liabilities, and establishes, if applicable, a range for liability that informed the Evaluator's recommendation of a specific resolution. The parties will consider the Evaluator's recommendation and attempt to reach a settlement of the Dispute within 10 Business Days. If the parties fail to agree in writing upon a settlement of the Dispute within such 10 Business Days, the parties will proceed under Section 17.2.3.1. Each party will bear its own costs and expenses of the Neutral Evaluation and share the fees of the Evaluator equally.

17.2.3.1. Mediation Following Neutral Evaluation. If the parties do not resolve the Dispute through the Neutral Evaluation, the Disputing Party, if it desires to continue pursuing a resolution to the Dispute, must proceed with mediation as provided under this Section 17.2.3.1, unless both parties agree in writing otherwise. The Disputing Party will commence mediation by delivering a written Notice thereof (the "Mediation Notice") to the other party and to the Evaluator. The Evaluator will serve as the mediator unless both parties agree upon a different mediator. If requested by Contractor, the Subcontractor Bonding Company, if any, must join the mediation. The parties will use their best efforts to commence mediation promptly after the Disputing Party delivers the Mediation Notice to the other. In this event, each party must in good faith attempt to resolve the Dispute in mediation, with each party bearing its own costs and expenses and the fees of the mediator being shared equally. If the parties do not resolve the Dispute within a reasonable time, not to exceed 15 Days after the first day the mediation proceeding commences, either party may elect to end the mediation.

17.2.4. Arbitration. As a condition precedent to arbitration or litigation of a Dispute, the parties must mediate the Dispute according to Section 17.2.3, unless both parties agree in writing otherwise. If the Dispute is not resolved by the mediation under Section 17.2.3, then, subject to Sections 17.1 and 17.5, the Disputing Party must, if it desires to continue pursuing a resolution to the Dispute, submit the Dispute to binding arbitration pursuant to this Section 17.2.4. Contractor may recover from Subcontractor all attorney's fees incurred in enforcing this arbitration provision or responding to litigation filed in contravention of this Agreement. Subcontractor agrees to stay any and all claims or litigation against the Contractor Sureties pending the conclusion of the arbitration and further waives any right to dispute any request or motion for a stay made by the Contractor Sureties. The Subcontractor Bonding Company, if any, must participate in, and be bound by the results of, the arbitration. Unless the parties mutually agree otherwise, the arbitration will be conducted according to the arbitration provisions of the American Arbitration Association's Construction Industry Rules in effect on the Effective Date and according to the Federal Arbitration Act. The arbitration will determine all rights and obligations under this Agreement and the award of the arbitrator will be final, binding, and enforceable. The arbitrator is empowered to, and must, award Legal Costs only per Section 24. Judgment upon any award issued pursuant to this provision may be entered in any court of competent jurisdiction, and each party consents to that jurisdiction. Exclusive venue for any arbitration will be in the locality in which the Project is located. Subcontractor must bind its lower-tier subcontractors, suppliers, and their respective sureties for the Project to the provisions of this Section 17.2.4. Each such party agrees that it may be joined as an additional party to an arbitration involving Subcontractor's performance or this Master

Subcontract, but the Contractor Sureties are not required to be joined as additional parties to the arbitration.

- 17.3. Disputes Involving Owner. For any Dispute involving Owner, Subcontractor agrees to cooperate with Contractor in resolving the Dispute, including without limit assisting in the discovery and other preparation for dispute resolution proceedings. Subcontractor will not be entitled to receive any greater amount from Contractor than Contractor receives from Owner on account of Subcontractor's claim(s), less any markups or costs to which Contractor is otherwise entitled, and Subcontractor must accept such amount, if any, received by Contractor from Owner on account of Subcontractor's claim(s) as a full accord and satisfaction of all such claims for or on account of acts or omissions of Owner or its representatives. If Subcontractor fails to prosecute claims relating to acts or omissions of Owner through the dispute resolution procedures of the Prime Contract, or fails in any way to adhere to claims procedures contained in the Prime Contract, it will be deemed to have waived its claims and will be barred from asserting such claims against Contractor, the Contractor Sureties, Owner, and Owner's property in any other proceeding or through any other procedures, including, but not limited to, those under Section 17.2 above. Subcontractor must comply with the requirements set forth for Contractor under the Prime Contract with respect to any claims by or against Subcontractor involving Owner. Subcontractor must reimburse Contractor upon demand for any expenses incurred by Contractor, including actual attorneys' fees, for Contractor's prosecution of a claim against Owner on behalf of, and at the request of, Subcontractor. In addition to Subcontractor's indemnity and insurance obligations in the Subcontract Documents, if Owner makes a claim against Contractor for which Subcontractor is alleged to be wholly or partially responsible, Subcontractor must participate in defending such claims at Contractor's direction. If Subcontractor fails to properly defend such claims, Contractor may defend such claim at Subcontractor's expense.
- 17.4. Work Continuation and Payment. Notwithstanding the existence of any Dispute, Subcontractor must continue performing the Work and maintain the schedule of Work as set forth in the Project Schedule pending resolution under this Section 17. To the extent Subcontractor continues to perform the Work despite the existence of a Dispute, Contractor will continue to make payments according to this Agreement, subject to its right to withhold payment under Section 14.3 above.
- 17.5. Consolidated Proceedings. To the extent a Dispute involves a common question of fact or law with any other dispute or claim between Contractor and Owner under the Prime Contract, the Dispute will be resolved according to any applicable resolution provisions under the Prime Contract. In this event, if requested by Contractor, Subcontractor must prepare and present Contractor's case to the extent the resolution proceedings are related to the Work or this Agreement. If Contractor is a party to any arbitration or other proceeding with Owner or others (including other subcontractors on the Project) regarding matters relating to the Work or this Agreement, Subcontractor (and the Subcontractor Bonding Company, if any) will be bound by the result of the arbitration or proceeding to the same degree as Contractor, and that result will be final as to Subcontractor (and the Subcontractor Bonding Company, if any). Further, Subcontractor specifically agrees that it is a proper party to such arbitration or proceeding and must compel its subcontractors, suppliers and their respective sureties to join such arbitration or proceeding. Nothing in this Section 17 requires Contractor to participate in any arbitration with Subcontractor if there is a Dispute between Owner and Contractor involving Subcontractor's Work and Owner and Contractor are not parties to an agreement requiring binding arbitration to resolve the Dispute.
- 17.6. Lien Rights and Remedies; Waiver of Jury Trial. Except as provided in this paragraph, this Section 17 does not limit any rights or remedies that Subcontractor may have under any federal or state mechanics' lien Laws, unless those rights or remedies are expressly waived by Subcontractor. EXCEPT FOR DISPUTES INVOLVING THE OWNER WHERE THE RIGHT TO A JURY TRIAL HAS NOT BEEN WAIVED BY OWNER AND CONTRACTOR, WHICH DISPUTES ARE INSTEAD GOVERNED BY SECTION 17.1 OF THIS AGREEMENT, TO THE FULLEST EXTENT NOW OR HEREAFTER PERMITTED BY LAW, CONTRACTOR AND SUBCONTRACTOR VOLUNTARILY AND INTENTIONALLY WAIVE THE RIGHT EITHER MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY LITIGATION BETWEEN CONTRACTOR AND SUBCONTRACTOR, WHETHER OR NOT INVOLVING A MECHANICS LIEN, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT OR ANY CONDUCT, DEALINGS, ACTS OR OMISSIONS OF EITHER PARTY IN CONNECTION WITH THE PROJECT. THIS PROVISION IS A MATERIAL INDUCEMENT FOR CONTRACTOR ENTERING INTO THIS AGREEMENT. EXCEPT TO THE EXTENT APPLICABLE TO A LEGAL ACTION BETWEEN CONTRACTOR AND THE OWNER INVOLVING A JURY TRIAL TO WHICH THE SUBCONTRACTOR MAY BE JOINED AS PROVIDED IN SECTION 17.1, NEITHER PARTY WILL SEEK TO CONSOLIDATE ANY LEGAL PROCEEDING IN WHICH A JURY TRIAL HAS BEEN WAIVED WITH ANY OTHER PROCEEDING IN WHICH A JURY TRIAL CANNOT OR HAS NOT BEEN WAIVED. NOTHING IN THIS SECTION 17.6 WILL PREVENT CONTRACTOR FROM JOINING THE SUBCONTRACTOR TO ANY DISPUTE RESOLUTION PROCEEDING BETWEEN CONTRACTOR AND OWNER AS PROVIDED IN SECTION 17.1, NOR DOES

THE FOREGOING WAIVER OF JURY TRIAL ABRIDGE IN ANY MANNER THE PROVISIONS OF SECTION 17.2 REQUIRING MEDIATION OR ARBITRATION OF DISPUTES.

SECTION 18. COMPLIANCE WITH LAWS; SAFETY PRACTICES

- 18.1. Subcontractor must comply fully with all laws, orders, building codes, citations, rules, regulations, standards and statutes applicable to the Work or this Agreement (collectively, "Laws"), including without limitation Laws related to occupational health and safety, the handling and storage of hazardous materials, accident prevention, safety equipment and practices including the accident prevention and safety program of Owner and Contractor. Subcontractor must make sure that its subcontractors and suppliers, and their employees, comply with Contractor's site safety requirements and the requirements of any corrective action plans agreed between Contractor and Subcontractor. Subcontractor must conduct inspections to determine that safe working conditions and equipment exist. Subcontractor accepts sole responsibility for: (a) providing a safe place to work for its employees and for employees of its subcontractors, suppliers and agents; (b) the adequacy of, and required use of, all safety equipment; and (c) full compliance with all Laws regarding safety. If Contractor believes that Subcontractor is not performing its Work in compliance with any applicable safety Laws or corrective action plans, Contractor reserves the right to stop Subcontractor's Work until corrective action is taken by Subcontractor. If Subcontractor fails to take corrective action within 48 hours of Contractor's Notice, Contractor, in its sole discretion, may, but is not obligated to, take corrective action and back charge the expense thereof to Subcontractor.

SECTION 19. WARRANTY

- 19.1. Subcontractor warrants to Owner, Architect, and Contractor that all materials and equipment furnished will be new and of good quality, unless otherwise explicitly specified in the Subcontract Documents, and that all Work will be free from faults and defects and fully conform with the Subcontract Documents' requirements. All Work not conforming to these requirements, including substitutions not properly approved and authorized, will be considered defective. The warranty provided in this Section 19 is in addition to and not in limitation of any other warranty or remedy required by Laws or by the Subcontract Documents. The representations and warranties in this Section 19 survive the termination or completion of this Agreement or any Work Authorization.
- 19.2. Subcontractor's warranty under Section 19.1 excludes remedy for damage or defect caused by abuse, alterations to the Work not executed by Subcontractor or those for whom it is responsible, improper or insufficient maintenance, improper operation, or normal wear and tear under normal usage. If, within the Correction Period, any of Subcontractor's Work is found not to conform to the Subcontract Documents' requirements, Subcontractor must correct it promptly after notice from either Contractor or Owner to do so, without cost to Contractor or Owner. The "Correction Period" is the longer of: (a) the period during which Contractor must correct non-conforming work under the Prime Contract; (b) one year after the date of substantial completion of the Project or after the date for commencement of warranties established under any certificate of completion given by Owner or Architect to Contractor; or (c) the term of an applicable special warranty required by the Subcontract Documents. If, during the Correction Period, Subcontractor fails to correct non-conforming Work within a reasonable time after receipt of notice from Contractor or Owner, Contractor or Owner may correct it and demand prompt reimbursement of such costs from Subcontractor. The Correction Period will be extended with respect to portions of Subcontractor's Work first performed after substantial completion by the period between substantial completion and the actual completion of that portion of Subcontractor's Work, or such longer period as may be required under the Prime Contract. Subcontractor must remove from the site portions of Subcontractor's Work that do not conform to the Subcontract Documents' requirements and are not corrected by Subcontractor. Subcontractor will bear the cost of correcting destroyed or damaged construction or property, whether completed or partially completed, of Contractor, other subcontractors, Owner or Owner's separate contractors, caused by Subcontractor's correction or removal of Subcontractor's Work that does not conform to the Subcontract Documents' requirements. The Correction Period does not establish a period of limitation with respect to other obligations Subcontractor has under the Subcontract Documents, nor affect the time to commence proceedings to establish Subcontractor's liability under the Subcontract Documents. Subcontractor further agrees to execute and deliver any written guarantees or warranties, or manufacturer's guarantees or warranties required of the Subcontract Documents for Subcontractor's Work prior to final payment. Subcontractor expressly agrees to the warranty and correction of work requirements in the Prime Contract and Laws as applied to Subcontractor's Work, which will apply unless the warranty and correction of work requirements of the Agreement are more stringent for Subcontractor. Except for warranties set forth in the Subcontract Documents, Subcontractor expressly disclaims all other warranties, express or implied, including the implied warranties of merchantability and fitness for a particular purpose.

SECTION 20. USE OF CONTRACTOR'S EQUIPMENT

- 20.1. If Subcontractor uses Contractor's equipment, materials, labor, supplies, or facilities, Subcontractor must reimburse Contractor for such use at Contractor-established rates unless otherwise provided in the Subcontract Documents. Furthermore, Subcontractor assumes all responsibility for physical damage to any and all Contractor-furnished equipment, materials, labor, supplies, or facilities used by Subcontractor or its tier-subcontractors, employees, or permittees. If Subcontractor uses Contractor's employees, Subcontractor bears full responsibility for all acts or omissions of Contractor's employees during the period Subcontractor uses them. When furnished by Contractor, Subcontractor accepts any and all of Contractor's equipment, materials, labor, supplies, or facilities "as is," without any express or implied warranties.
- 20.2. If the Subcontract Documents provide that Contractor may use Subcontractor's equipment or facilities, all Subcontractor's costs for such use are fully included in the Subcontract Price. If the Subcontract Documents do not provide for Contractor's use of Subcontractor's equipment, then Contractor may use Subcontractor's equipment or facilities as a change in the Work at billing rates that are provided in the Subcontract Documents or else at rates no greater than those generally prevailing in the project's locale. The terms and conditions of the Subcontract Documents exclusively govern Contractor's use of any equipment or facilities of Subcontractor, and Subcontractor may not condition Contractor's use on the execution of any supplemental agreements or indemnities. If Subcontractor does not provide the required equipment or facilities for Contractor's use, then three days after Contractor's Notice demanding that Subcontractor provide such requirement or facilities, Contractor may obtain the equipment or facilities from alternative sources and Subcontractor must reimburse Contractor upon demand for all Contractor's incurred costs in acquiring alternative equipment or facilities plus a 15% markup for Contractor's overhead and profit.

SECTION 21. ASSIGNMENT OF CONTRACT

- 21.1. Subcontractor must not, without the prior written consent of Contractor, assign, transfer, subcontract or sublet any portion or part of the Work, nor assign any payment, claims, or rights hereunder to any third party, and any such unconsented assignment or transfer is void. Contractor may assign this Agreement or any Work Authorization to its surety, joint venture partner, an affiliate or other third party.
- 21.2. Contractor may assign the Work Authorization for a Project to Owner, its designated assignee or its lender in accordance with the terms of the Prime Contract or Owner's loan documents associated with the Project, subject to the prior rights of any surety obligated by this Agreement.
- 21.3. No assignment of any funds becoming due or payable to Subcontractor hereunder is binding upon Contractor, and a purported assignment is void, unless: (a) Contractor has received written Notice of and a true copy of such assignment; (b) Contractor has agreed to such assignment; and (c) the assignee has acknowledged in writing that such assignment is subject to the terms and provisions of this Section 21.3. Each assignment of funds becoming due or payable hereunder is subject to all of the provisions of the Subcontract Documents and the rights of Subcontractor's employees, suppliers and subcontractors to be paid first and in full out of any funds paid to Subcontractor hereunder. All funds received by any assignee under any such assignment must be received and held by it in trust for the benefit of Subcontractor's employees, suppliers and subcontractors on the Project to the extent of all amounts due them on or in connection with the Work. All such employees, suppliers and subcontractors must be paid in full all sums due them on or in connection with the Work before such assignee uses any funds paid hereunder and received by such assignee for any other purpose. If an assignment is approved hereunder and subsequent to that assignment Contractor determines that Subcontractor's employees, suppliers or subcontractors on the Project have not been paid any amount that is due and owing to them, the assignee must pay to such employees, suppliers and subcontractors the full amount of all sums due and owing to such employees, suppliers and subcontractors in connection with the Work. If the assignee does not pay those amounts, the assignee must reimburse Contractor upon demand for any amounts paid by Contractor to such employees, suppliers and subcontractors. Moreover, the assignee must reimburse Contractor for all costs, expenses and attorney's fees incurred by Contractor in recovering from the assignee all of the funds paid by Contractor to any employees, suppliers and subcontractors of Subcontractor. This Section 21.3 is for the benefit and protection of Contractor and may be enforced by it.
- 21.4. Upon any assignment described in Section 21.3, Contractor may make any payments becoming due hereunder to Subcontractor and such assignee, and/or one or more of Subcontractor's subcontractors or suppliers, by joint check, and such payments will be credited against the Subcontract Price.

SECTION 22. INDEPENDENT CONTRACTOR

- 22.1. Subcontractor is an independent contractor. Subcontractor has no authority to bind Contractor in any respect. Subcontractor must at its sole cost and expense as part of the Subcontract Price: (a) fully comply with all Laws; (b) obtain all necessary trade-specific permits, fees and licenses required for the Work; and (c) pay all income taxes, gross receipts taxes, manufacturers' taxes, sales taxes, use taxes, processing taxes, and all other federal, state and local taxes related to the Work, together with insurance and required

contributions for Social Security and unemployment benefits that are measured by wages, salaries, or other remuneration paid to Subcontractor's employees, whether levied under existing or subsequently enacted Laws. Subcontractor, upon request, must furnish evidence satisfactory to Contractor that any or all of the foregoing obligations have been fulfilled.

SECTION 23. CLEAN-UP

- 23.1. At all times during the Project's construction, Subcontractor must perform the Work to maintain the Project site in a clean, safe and orderly condition, and in the condition required under the Subcontract Documents. Upon completion of the Work, Subcontractor must remove from the Project site all hazardous materials, temporary structures, and equipment, unused materials, debris and waste incident to its operation, and Subcontractor must clean all surfaces, fixtures, equipment, etc., impacted by Subcontractor's Work in the manner required of Contractor under the Prime Contract.
- 23.2. Subcontractor must clean its Project jobsite area(s) daily. If Contractor believes that Subcontractor is not cleaning up properly, Contractor may issue to Subcontractor a 24-hour noncompliance Notice. If at the end of 24 hours Subcontractor has not satisfactorily cleaned up its jobsite area(s), Contractor may perform such cleanup work and the costs incurred by Contractor, at Contractor's standard rates plus 15% for overhead and profit, will be back-charged to Subcontractor and deducted from Subcontractor's current payment application, with the Subcontract Price reduced accordingly. Subcontractor agrees that 24 hours is a reasonable time for Notice due to the unsafe conditions associated with a worksite that is not appropriately cleaned.

SECTION 24. ATTORNEYS' FEES

- 24.1. In any arbitration or litigation arising out of or related to the enforcement or interpretation of any of provisions of this Agreement, breaches thereof, or the Work resulting in an award or judgment, the contractually determined Settlement-Oriented Prevailing Party (defined below) will be entitled to recover all costs, expenses, and attorney's fees (including expert witness and other consultants' fees and costs) (collectively, "Legal Costs") incurred for such arbitration, litigation, and appeal or other post-award proceedings. Unless judgment in a litigation goes by default, the Legal Costs due to the Settlement-Oriented Prevailing Party will not be computed in accordance with any court schedule, but will equal all the Settlement-Oriented Prevailing Party's Legal Costs actually incurred in good faith, regardless of the size of a judgment or award. The "Settlement-Oriented Prevailing Party" is the party whose last offer of settlement is closer to the arbitration award or court judgment. If the difference between the award/judgment and the last offer of each party is equal, neither party will be the Settlement-Oriented Prevailing Party. Where there is no Settlement-Oriented Prevailing Party, each party must bear its own Legal Costs. For purposes of this paragraph, an offer of settlement must be in writing and delivered to the other party at least 15 days prior to the start of the arbitration hearing or trial. If a party makes no written offer of settlement, the amount of such party's final claim is treated as its last offer of settlement. Any timely offer of settlement supersedes any offer previously made by that party. This paragraph does not waive or alter any applicable rule of evidence, except to the extent of determining the prevailing party for purposes of this paragraph. However, this provision does not apply to Legal Costs incurred by Subcontractor or its insurer in connection with Claims that are required to be defended or indemnified using the insurance required of Subcontractor under the Subcontract Documents.

SECTION 25. NOTICES

- 25.1. Each notice and other communication required or permitted to be given under this Agreement ("Notice") must be in writing. A notation in a Subcontractor's daily report, in meeting minutes or similar project documentation does not constitute Notice under the Subcontract Documents. Notice is duly given to, and considered received by, the designated representative of the other party upon the earlier of: (a) hand delivery to the other party; (b) delivery by email to the designated representative's current business email address, provided the sender does not receive an automated response indicating that the email was not delivered; (c) three Business Days after the Notice has been deposited with the United States Postal Service as certified mail, return receipt requested, and addressed to the party as set forth on the first page of the Work Authorization; or (d) the next Business Day after the Notice has been deposited with a reputable overnight delivery service, addressed to the party as set forth on the first page of the Work Authorization with next-business-day delivery guaranteed, provided that the sending party receives a confirmation of delivery from the delivery service provider. Each party will make a reasonable, good faith effort to accept or receive Notices to it that are given in accordance with this paragraph. A party may change its address for purposes of this paragraph by giving the other party(ies) Notice of a new address.

SECTION 26. GOVERNING LAW

- 26.1. This Master Subcontract is governed by, and must be interpreted according to, the laws as stipulated in the Prime Contract, or if not so stipulated, the laws applicable to the state and locality in which the Project is located without regard to any state's laws on choice or conflict of law.

SECTION 27. DELIVERABLES AND CLOSE-OUT DOCUMENTATION

- 27.1. During the term of the Agreement, upon Contractor's request Subcontractor agrees to provide updated prequalification information, including, but not limited to, interim and third party prepared financial statements, insurance and safety information. Additionally, Subcontractor must notify Contractor by email to Prequal@dpr.com of any change in Subcontractor's entity or controlling ownership within the earlier of 60 days thereafter or the period (if any) required under the Contract Documents for such a notice; provided that this does not change anything in Section 21 requiring Contractor's written consent for an assignment. Subcontractor must submit all submittals and deliverables required of Subcontractor under the Subcontract Documents by the dates required by Contractor. Subcontractor must submit all final closeout documentation no later than 15 days after the earlier of Subcontractor's demobilization from the Project site or the final acceptance of Subcontractor's Work by Contractor, Architect, and Owner. Subcontractor's acceptance of final payment constitutes a waiver of all Subcontractor's claims against Contractor and Owner arising out of the Work or the Subcontract Documents.

SECTION 28. OWNERSHIP OF PROJECT DOCUMENTS & DESIGN

- 28.1. General. The building information models, all subsidiary models necessary for design and construction of the Project, all electronic design data for the Project, and any two-dimensional drawings, designs, calculations, schedules or specifications created for the Project constitute the "Project Design Material." Those portions or elements of the Project Design Material that were created by or on behalf of the Subcontractor are the "Subcontractor Design Material." Notwithstanding any contrary indications on the Project Design Material and Subcontractor Design Material, the Project Design Material and Subcontractor Design Material are and will be owned as provided in the Prime Contract. To the extent the Prime Contract is silent about the ownership of the Subcontractor Design Material, Subcontractor is deemed to have assigned all intellectual property rights, including copyrights, in the Subcontractor Design Material to Contractor except for Proprietary Subcontractor Material (as defined below), and Contractor will be the owner of such Subcontractor Design Material. If the Prime Contract provides that Subcontractor is the owner of the Subcontractor Design Material, then Subcontractor grants Contractor a limited, nonexclusive, royalty-free, irrevocable license to use, modify and reproduce any Subcontractor Design Material, other than Proprietary Subcontractor Material, for any legitimate purpose, together with a right for Contractor to grant this same limited, nonexclusive, royalty-free, irrevocable license to the Owner or, upon a termination of the Master Subcontract or Work Authorization, a replacement subcontractor. Unless otherwise provided in the Prime Contract, Subcontractor is granted a limited, nonexclusive, royalty-free license to use the Project Design Material for its Work together with the right to keep one archival copy of the Project Design Material in its records for the Project, subject to any applicable confidentiality provisions of the Subcontract Documents.
- 28.2. Proprietary Subcontractor Material. "Proprietary Subcontractor Material" is any proprietary intellectual property, including inventions, processes, know-how, trade secrets, computer technical expertise and software and other intellectual property, that is included by Subcontractor in the Subcontractor Design Material or provided by Subcontractor for use in the Project and that was independently developed by Subcontractor prior to its involvement with the Project and without reference to Owner's or Contractor's specific business practices, designs or processes. Unless otherwise provided in the Prime Contract, Proprietary Subcontractor Material remains under the ownership of Subcontractor and may be used in any form by Subcontractor on other projects or for other clients. Subcontractor will designate those portions or aspects of Subcontractor Design Material that are Proprietary Subcontractor Material. Unless otherwise provided in the Prime Contract, Subcontractor retains all common law, statutory, and other reserved rights, including all copyrights, in Proprietary Subcontractor Material. However, Subcontractor grants Contractor a limited, nonexclusive, royalty-free, irrevocable license to use, modify and reproduce any provided Proprietary Subcontractor Material solely for use in the Project and its future operation, maintenance and renovation, together with a right for Contractor to grant this same limited, nonexclusive, royalty-free, irrevocable license to the Owner; otherwise, Contractor may not assign, delegate, sublicense, or otherwise transfer this license of Proprietary Subcontractor Material to another party without the prior written consent of Subcontractor.
- 28.3. Modification of Subcontractor Design Material. This paragraph is only applicable if the Prime Contract does not allow Owner to hold Contractor responsible for modifications to the Subcontractor Design Material made without Contractor's involvement or written authorization. To the extent that any Subcontractor Design Material (including Proprietary Subcontractor Material) is modified without the involvement of the

Subcontractor, the Subcontractor disclaims all liability for the modified portions of the Subcontractor Design Material.

- 28.4. Upon Termination. If Contractor terminates Subcontractor for convenience, Contractor will retain its rights under Section 28 provided that Contractor pays all undisputed amounts owed to Subcontractor for that Project under the Subcontract Documents. If Contractor terminates Subcontractor for cause, Contractor will unconditionally retain its rights under Section 28.

SECTION 29. SPECIAL PROVISIONS

- 29.1. Severability. Every term, condition or provision of this Agreement is severable from the others. If a court or an arbitrator of competent jurisdiction holds any term, condition or provision of this Agreement to be invalid, unenforceable or illegal in whole or in part for any reason, the validity and enforceability of the remaining terms, conditions or provisions, or portions of them, will not be affected.
- 29.2. Master Agreement Term. This Agreement expires on 12/31/2030, unless modified by the parties hereto by Change Order. This Agreement remains in effect for any and all Work performed under any applicable Work Authorizations with Effective Dates prior to the expiration date of the Agreement, so long as the entire Agreement has not been terminated by Contractor under Section 14.2.
- 29.3. Confidentiality. Except to the extent otherwise provided in the Prime Contract or in a separate non-disclosure or confidentiality agreement applicable to the Work, Subcontractor must not disclose information: (a) relating to the Work as required by the Prime Contract; or (b) that is specifically designated by Contractor or Owner in writing as confidential or that should reasonably be recognized as confidential information; unless withholding such information would violate Laws or prevent Subcontractor from establishing a claim or defense in an adjudicatory proceeding. Also, by signing this Agreement, Subcontractor agrees that these same confidentiality requirements apply to bid documents received by Subcontractor from Contractor for projects not subsequently awarded to Subcontractor. Subcontractor must bind its lower-tier subcontractors and suppliers (and potential lower-tier subcontractors and suppliers) to this provision.
- 29.4. Ethical Conduct. Contractor is committed to supporting and maintaining the highest standards of ethical conduct and respect for human rights and has published The DPR Code (available at DPR's website, www.dpr.com) to help guide employees and parties doing business with Contractor in meeting this commitment. By executing this Agreement, Subcontractor represents that it understands and will comply with The DPR Code in performing its obligations under this Agreement.

SECTION 30. WORK PRIOR TO EXECUTION

- 30.1. Notwithstanding the fact that this Agreement is entered into between Contractor and Subcontractor as of the Effective Date on the cover page, a portion of the Work may have been performed prior to such date. All Work is governed by the terms and conditions of the Subcontract Documents and such previously performed work is a part of the Work, notwithstanding that Work may have been performed prior to the Effective Date pursuant to prior negotiations, statements, agreements, understandings or otherwise. Notwithstanding a later signing by Contractor or Subcontractor, this Agreement is deemed effective not later than the time Subcontractor first commences any of the Work, and Subcontractor commencing performance of the Work or providing any acknowledgement of this Agreement or the Work Authorization will be deemed an acceptance of the terms of this Agreement and the Work Authorization by Subcontractor upon which Contractor will be relying in allowing Subcontractor to commence performance.

IN WITNESS WHEREOF, Contractor and Subcontractor agree to the terms of this Master Subcontract by providing the signatures of their duly authorized representatives below:

CONTRACTOR:

DPR CONSTRUCTION, A GENERAL PARTNERSHIP

DocuSigned by:

Megan Shifflett

08074C711DE6464...

(Signature)

Megan Shifflett

(Typed/Printed Name)

Field Office Coordinator - Sr

(Title)

SUBCONTRACTOR:

PRO-BEL ENTERPRISES LIMITED

Signed by:

Gary Feldman

8BAD4F0C70B842E...

(Signature)

Gary Feldman

(Typed/Printed Name)

VP of Finance

(Title)

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**ATTACHMENT 1
LIST OF MASTER SUBCONTRACT DOCUMENTS
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

This Attachment is incorporated into the Master Subcontract (described below).

Master Subcontract Documents. The following documents are collectively and individually referred to throughout the Master Subcontract as “Subcontract Documents.”

1. This Master Subcontract, dated 03/01/2026, including the following attachments:
 - a. Attachment 1 – List of Master Subcontract Documents, dated 03/01/2026.
 - b. Attachment A – Insurance Requirements, dated 03/01/2026
 - c. Attachment D – State-Specific Provisions, dated 03/01/2026

For Information Only. Each Project’s Work Authorization (to be provided separately for each Project) will add the following documents to the Subcontract Documents for that specific Project:

1. The Work Authorization for the Project, which will also include the following attachments for that Project:
 - a. Attachment 1 - List of Project Subcontract Documents
 - b. Attachment 1A – List of Plans and Specifications
 - c. Attachment 2 – Commercial Terms and Scope of Work
 - d. Attachment 3 – Supplemental Conditions
 - e. Attachment 4 – Schedule
 - f. Attachment B – Billing Package
 - g. Attachment C – Contractor Environmental Health and Safety Plan
2. The Prime Contract for the Project (by reference)

- END OF ATTACHMENT 1 -

**ATTACHMENT A
INSURANCE REQUIREMENTS
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

This Attachment is incorporated into the Master Subcontract. If the Prime Contract imposes additional or higher standards, Subcontractor must meet those as well. Where a Controlled Insurance Program ("CIP") is specified in the Prime Contract or elsewhere in the Subcontract Documents, the insurance requirements in this Attachment A will not apply to coverages supplied by the CIP, but will apply to coverages that Subcontractor is required to carry outside the scope of the CIP. If there is any conflict, inconsistency, or ambiguity between the provisions of this Attachment A and the Prime Contract, the more stringent, greater or broader Subcontractor insurance requirements, limits and coverages will govern.

This Attachment defines the project insurance requirements for all projects incorporated by Work Authorization under this Master Subcontract, unless specifically modified by the terms of such Work Authorization for a specific project.

Promptly send a copy of this information to your insurance broker for compliance.

- 1.0 Certificates of Insurance. Prior to commencing Work, Subcontractor must furnish to Contractor certificates of insurance and attach all required policy endorsements providing additional insured coverage, primary and non-contributory coverage and permitting waiver of subrogation, as evidence of required insurance. Renewal certificates must be provided to Contractor prior to policy expiration. The certificates must be signed by a person authorized by the insurer(s) to bind coverage on their behalf. All policies must include that there will be no cancellation, suspension, or non-renewal of coverage without 30 days' prior written notice to Subcontractor. Subcontractor must provide Contractor with written notification of any cancellation or non-renewal no later than 5 days after receiving insurer's notice so that Contractor has at least 25 days' notice before the policy is cancelled or not renewed. Subcontractor must also provide Contractor with written notice within 5 days of any modification to its policies that results in non-conformance with this Attachment. In lieu of the Subcontractor notification process to Contractor for policy cancellation, non-renewal, or modification, Contractor will accept a policy endorsement issued by each insurer providing agreement to issue 30 days' prior written notice of cancellation, non-renewal or modification direct to Contractor. If Subcontractor fails to give such notice to Contractor or Contractor is subject to damage or a claim because the insurance required by the Subcontract Documents is not in effect or no longer complies with the requirements of the Subcontract Documents, then Subcontractor must indemnify and defend Owner, Owner's Indemnitees and Contractor against such damage or claim to the extent not covered by Subcontractor's insurance. Receipt by Contractor of a non-conforming certificate of insurance or policy without objection, or Contractor's failure to collect a certificate of insurance will not waive or alter Subcontractor's duty to comply with the insurance requirements.
- 2.0 Mandatory Insurance Coverage. Subcontractor must, at its own expense, maintain in effect at all times during the performance of the Work, and for such longer time when specified in the Subcontract Documents, not less than the following coverages and limits of insurance. The coverages and limits set forth below are the minimum acceptable to Contractor. In specifying minimum Subcontractor insurance requirements, Contractor does not represent that such insurance is adequate to protect Subcontractor from loss, damage or liability arising from its work. Subcontractor is solely responsible to inform itself of types or amounts of insurance it may need beyond these requirements to protect itself. Notwithstanding anything to the contrary in the Subcontract Documents, if Subcontractor has procured any insurance coverage or limits (either primary or on an excess basis) that exceed the minimum acceptable coverage or limits set forth in this Attachment A or elsewhere in the Subcontract Documents, the broadest coverage and highest limits actually afforded under the applicable policy(ies) of insurance are the coverage and limits required by this Agreement and such coverage and limits must be provided in full to the additional insureds and indemnified parties under this Agreement. The parties expressly intend that the provisions in the Subcontract Documents will be construed as broadly as permitted to be construed by applicable Laws to afford the maximum insurance coverage available under Subcontractor's insurance policies.
- 2.1 Workers' Compensation and Employer's Liability. Subcontractor must maintain workers' compensation insurance as required by any applicable Laws. Subcontractor must provide employer's liability/stop gap insurance in amounts not less than:
 - \$1,000,000 each accident for bodily injury by accident
 - \$1,000,000 policy limit for bodily injury by disease
 - \$1,000,000 each employee for bodily injury by disease

If there is an exposure of injury to Subcontractor's employees covered by the U. S. Longshoremen's and Harbor Workers' Compensation Act, the Jones Act or under Laws applicable to maritime employees, insurance coverage must be included for such injuries or claims. Subcontractor must voluntarily provide workers' compensation coverage for proprietors, partners, or others that are not statutorily required to maintain their own workers' compensation insurance.

2.1.1 Leased Employees. Use of leased employees by Subcontractor is expressly prohibited without Contractor's written permission. If permitted by Contractor, Subcontractor must:

2.1.1.1 Provide Contractor with a complete copy of its agreement with the company leasing the employees to Subcontractor ("Leasing Company");

2.1.1.2 Require that Leasing Company provide workers' compensation, employers' liability and commercial general liability insurance with coverage and limits no less than Subcontractor insurance requirements for the same type of coverage;

2.1.1.3 Require that Leasing Company provide an Alternate Employer Endorsement naming Contractor and Subcontractor as alternate employer on Leasing Company's workers' compensation policy;

2.1.1.4 Require that Leasing Company add Contractor and the other Additional Insureds (defined below) as an additional insured on its commercial general liability insurance policy subject to the same terms as Subcontractor insurance requirements;

2.1.1.5 Require that Leasing Company provide waiver of subrogation in favor of Contractor, Subcontractor, the Additional Insureds and the Indemnitees (as defined in Section 15 of the Agreement) on both Leasing Company's workers' compensation and commercial general liability insurance policies; and

2.1.1.6 Provide Contractor with a copy of the Leasing Company's certificate of insurance, with endorsements, evidencing the required coverage.

2.2 Commercial General Liability. Subcontractor must maintain insurance covering operations by or on behalf of Subcontractor, with coverage on an occurrence basis, with terms no less broad than the Insurance Services Office ("ISO") Commercial General Liability Form CG0001 (2004 or later edition). Coverage must include, but not be limited to, liability arising from premises, operations, independent contractors, products-completed operations including construction defect, contractual liability, personal injury and advertising injury. The commercial general liability coverage must be endorsed to include terms no less broad than ISO form CG 2274 (Limited Contractual Liability Coverage for Personal and Advertising Injury). There must be no limitations or exclusions of coverage beyond those contained in the above-referenced ISO Commercial General Liability Form, unless such limitations or exclusions are disclosed to Contractor and approved by Contractor in a written amendment to this Attachment.

The commercial general liability policy must not be issued under a "claims-made" policy form or a "modified occurrence" policy form. In addition to procuring and maintaining commercial general liability insurance for the duration of the Work, Subcontractor agrees to continue to procure and maintain products-completed operations liability insurance coverage for the applicable period of statutory limitation of claims (or statute of repose, if applicable) after Project completion. All required terms and conditions of coverage must be maintained during this completed operations period, including the minimum required coverage limits and the requirement to provide additional insured coverage for completed operations.

2.2.1 Minimum Limits of Liability – (Refer to Appendix 1 – Trade Category List)

Category I, II, and III Trades

\$2,000,000 each occurrence bodily injury and property damage

\$2,000,000 personal and advertising injury

\$2,000,000 aggregate for products - completed operations

\$2,000,000 general aggregate

Category IV Trades

\$1,000,000 each occurrence bodily injury and property damage

\$1,000,000 personal and advertising injury

\$2,000,000 aggregate for products - completed operations

\$2,000,000 general aggregate

2.2.2 Per Project General Aggregate. The policy must have an endorsement providing that the general aggregate limit applies separately to the Project. If a per-project aggregate is not provided, the total aggregate limit of liability must be at least \$5,000,000.

- 2.2.3 Any commercial general liability, umbrella or excess liability insurance provided under this Agreement must not contain an exclusion of coverage for Contractor or any Additional Insured if there is an injury to, or death of, an employee of the named insured, nor may any required coverage for an Additional Insured be limited in any way by an amount or type of damages, compensation, or benefits payable under any applicable workers' compensation, disability benefits or other similar employee benefits Laws.
- 2.2.4 Controlled Insurance Programs. If the Project involves a CIP, Subcontractor's Commercial General Liability policy must not include any CIP or wrap-up exclusionary endorsement(s) that exclude coverage under the policy when Subcontractor is not enrolled in the CIP or when a claim occurs outside of the CIP-defined Project site. Subcontractor's CIP exclusionary endorsement, if any, must not be broader than ISO form CG 21 54 12 19.
- 2.3 Automobile Liability. Subcontractor and any transportation broker/carrier used to transport products and materials must maintain insurance covering all owned, hired, and non-owned automobiles with limits of liability not less than \$2,000,000 each accident, combined single limit. Coverage must include liability for bodily injury and property damage arising from the use or operation of any auto, including those owned, hired or otherwise operated or used by or on behalf of Subcontractor or its transportation broker/carrier. The coverage must have terms no less broad than ISO Business Auto Coverage Form CA 0001 (1990 edition or later). Subcontractor and its transportation broker/carrier must also secure cargo insurance to cover damage to or loss of cargo during transit of any materials used in the performance of the Work with limits equal to the maximum replacement cost of any one conveyance, unless otherwise agreed by Contractor. The required insurance shall cover the entire geographic scope in which the Subcontractor and its transportation broker/carrier operates under the Work Authorization.
- 2.4 Subcontractor's Equipment/Property Insurance. Subcontractor must maintain insurance for full coverage for damage to all of Subcontractor's leased or owned equipment, property, and tools used in the Work. If Subcontractor fails to provide insurance coverage for such leased or owned equipment, property, or tools, it nonetheless agrees to release, indemnify and hold Contractor, Owner, other Additional Insureds, and any other subcontractor or sub-subcontractor at any tier, harmless from any claims, loss, or expense associated with damage to such leased or owned equipment, property and tools.
- 3.0 Other Required Insurance Coverage where Exposure Exists. The following insurance must be maintained by Subcontractor and sub-subcontractors of any tier where the associated activities are part of the Work. Limits of liability for policies listed below supersede the limits listed under Section 2.2.1:
- 3.1 Watercraft Liability and Indemnity Insurance. Should any of Subcontractor's Work be performed on or over navigable waterways or involve the use of any vessel, watercraft liability and indemnity insurance must be maintained with limits of liability approved by Contractor in writing.
- 3.2 Aircraft Liability. Should Subcontractor's Work include using any owned, leased, chartered, or hired aircraft of any type (including unmanned aerial vehicles) on the Project, aircraft liability covering such owned, non-owned, leased, chartered or hired aircraft, must be maintained by Subcontractor with minimum limits of liability of \$10,000,000 per occurrence, including Passenger Liability coverage (for other than unmanned aerial vehicles). Where Subcontractor's operations include the use of owned, non-owned, or leased helicopters, the Subcontractor must ensure that the helicopter operations are additionally covered by a minimum of \$50,000,000 in aircraft liability insurance. All aircraft liability policies must also include Aircraft Damage and Slung Cargo.
- 3.3 Railroad Liability. If Work is performed within 50 feet of a railroad right-of-way or affecting railroad property, including but not limited to tracks, bridges, tunnels, and switches, Subcontractor's general liability coverage must be endorsed to include terms no less broad than ISO form CG 2417(Contractual Liability Railroads). Furthermore, at Contractor's option and when required by the Owner or the railroad, Railroad Protective Liability insurance must be maintained with limits of liability approved by Contractor in writing.
- 3.4 Coverage for Crane, Hoist, or Scaffold Services. Should Subcontractor's Work include providing crane, hoist or scaffolding services, then the commercial general liability policy must provide the minimum limits of liability specified below to insure against bodily injury and property damage arising from such crane, hoist or scaffolding operations. The policy covering crane services must either include coverage for Rigger's Liability and must not exclude coverage for damage to property being lifted; or a separate Rigger's Liability policy must be provided with limits not less than the maximum value of property lifted at any one time.
- \$10,000,000 each occurrence bodily injury and property damage
- \$10,000,000 personal and advertising injury
- \$10,000,000 aggregate for products - completed operations

\$10,000,000 general aggregate

Subcontractor is required to bind its lower-tier sub-subcontractor(s) providing crane, hoist or scaffolding services to the requirements of this Agreement and Attachment. If the crane, hoist or scaffolding services are being provided as part of a controlled insurance program, then Subcontractor must further require its lower-tier sub-subcontractor(s) to execute a separate agreement with Contractor acknowledging this requirement. Without exception, when crane, hoist or scaffolding services are part of Subcontractor's scope, its commercial general liability policy must include a "Per Project General Aggregate" per Section 2.2.2 and cannot be written on a "Per Policy" basis.

3.5 Professional Liability. If Subcontractor or its sub-subcontractor of any tier is providing any professional services, including but not limited to design, architecture, engineering, testing, surveying, or design-build services on the Project, Subcontractor must maintain professional liability insurance with minimum limits of \$2,000,000 per claim / aggregate. If coverage is issued on a claims-made form, such coverage must apply with a retroactive date to reflect the date in which professional services commenced under the Work Authorization. Subcontractor agrees to continue to maintain professional liability insurance coverage meeting these requirements for the applicable period of statutory limitation of claims (or statute of repose, if applicable) after the Project completion, or else include an extended reporting period for the equivalent number of years. If Subcontractor's Work includes environmental, engineering, or consulting services involving Hazardous Materials, coverage must not exclude such services.

3.6 Pollution Liability. Subcontractor must provide pollution liability and/or Mold coverage as required in this Section:

3.6.1 Environmental Services. If the Work of Subcontractor or its sub-subcontractor at any tier includes Environmental Services, then Subcontractor must maintain contractor's pollution liability insurance on an occurrence basis, with limits of liability not less than \$2,000,000 per occurrence and \$2,000,000 aggregate or any higher limit as specified by Owner or set forth elsewhere in the Subcontract Documents. "Environmental Services" means any contact with a Hazardous Material, including abatement, removal, remediation, transporting, or disposal of a Hazardous Material or working in areas where contact with such Hazardous Materials may take place. "Hazardous Material" means asbestos, asbestos containing material, lead (including lead-based paint), PCB, silica, silica dust, molds and microbial matter, any other chemical, material, or substance subject to regulation as a hazardous material, hazardous substance, toxic substance, or otherwise, under applicable Laws; and any other chemical, material, or substance that may have adverse effects on human health or the environment. In addition, if Subcontractor or its sub-subcontractor of any tier haul or otherwise transport Hazardous Materials as part of the Work, then Subcontractor and its sub-subcontractor must maintain automobile liability limits of at least \$2,000,000 combined single limit each accident including the broadened pollution liability coverage endorsement (CA 99 48) and the MCS 90 endorsement. In lieu of this coverage, Contractor will consider, as an alternate, a transportation coverage endorsement extension from Subcontractor or its sub-subcontractor's respective contractor's pollution liability policy to cover this requirement and Subcontractor must provide copies of such endorsements and policy for review and approval by Contractor.

3.6.2 Microbial Matter: Mold, Fungi, & Bacteria (Refer to Appendix 1–Trade Category List). If Subcontractor's commercial general liability policy has an exclusion for losses due to microbial matter, including molds, fungi or bacteria (collectively, "Mold"), then:

3.6.2.1 **For Category I Trades (whether Subcontractor or its sub-subcontractors at any tier)** shown on Appendix 1: Subcontractor must maintain insurance for liability arising from Mold with minimum limits of liability of \$2,000,000 per occurrence and \$2,000,000 aggregate.

3.6.2.2 **For Category II Trades** shown on Appendix 1: If Subcontractor or one of its subcontractors at any tier is performing work that is associated with keeping moisture out of the building, work that penetrates the building enclosure, work with liquid conveying piping systems inside the building, or work that may otherwise allow moisture to penetrate the building, even when such work is performed outside of the building, then Subcontractor must maintain insurance for liability arising from Mold with minimum limits of liability of \$2,000,000 per occurrence and \$2,000,000 aggregate.

3.6.2.3 **For Category III & IV Trades** shown on Appendix 1: Subcontractor is not required to provide insurance coverage for Mold, unless otherwise specifically required in the Subcontract Documents.

3.6.3 If coverage required in Section 3.6 is issued on a claims-made form, such coverage must apply with a retroactive date to reflect the date in which Work commenced under the Work Authorization.

Coverage must also be maintained continuously for the applicable period of statutory limitation on claims after the Project completion or else include an extended reporting period for the equivalent minimum number of years.

- 3.7 Coverage for Mass Timber. Should Subcontractor's Work include installation of mass timber, then the commercial general liability policy must provide the minimum limits of liability specified below to insure against bodily injury and property damage arising from the Work.

\$10,000,000 each occurrence bodily injury and property damage
 \$10,000,000 personal and advertising injury
 \$10,000,000 aggregate for products - completed operations
 \$10,000,000 general aggregate (on a "Per Project" basis)

Without exception, when mass timber is part of Subcontractor's scope of Work, its commercial general liability policy must include a "Per Project General Aggregate" per Section 2.2.2 and cannot be written on a "Per Policy" basis.

- 4.0 Acceptance by Contractor. The insurance required of Subcontractor is subject to Contractor's approval. Such insurance must be maintained under policy forms and from companies satisfactory to Contractor and Owner. Each insurance company must have a financial rating of at least A-VII as defined by A.M. Best Company and must be authorized to transact business in the state where Work is being performed. Copies of policies, including all endorsements, must be provided to Contractor within ten days of a request. Any acceptance of policies or certificates of insurance by Contractor, or failure of Subcontractor to provide policies or certificates of insurance, does not limit or relieve Subcontractor of its duties and responsibilities in the Subcontract Documents.
- 5.0 Additional Insured Endorsement and Primary/Non-Contributory Insurance Clause. Subcontractor agrees to name Owner and Contractor, Contractor's joint venture partner and joint venture, if one exists, including their respective officers, partners, agents, employees, affiliates, members, owners and successors, and any person or organization that any of the foregoing is required to indemnify or defend or add as an additional insured by written contract, as additional insured parties under Subcontractor's commercial general liability insurance policy and all other liability insurance policies, with respect to liability arising out of activities, "operations" or "work" performed by or on behalf of Subcontractor, including products and completed operations of Subcontractor. Further, Subcontractor agrees to also name those entities required by separate Work Authorization, if any, Contractor is obligated to name as an additional insured party pursuant to the provisions of the Prime Contract (parties described as additional insured parties in this sentence and the prior one are collectively the "Additional Insureds"). To the maximum extent permitted by Laws, the coverage provided to the Additional Insureds under the commercial general liability policy must be provided by a policy provision or an endorsement that is at least as broad as CG 20 10 07 04 (ongoing operations) in combination with CG 20 37 07 04 (completed operations). Notwithstanding the foregoing, Subcontractor must provide ISO Form B - CG 20 10 11 85 or equivalent coverage where available from its carrier. The additional insured coverage for completed operations must be maintained during the applicable period of statutory limitation on claims (or statute of repose, if applicable). If any policy provided in compliance with this Attachment A states that the insurance afforded to an Additional Insured will not be broader than that required by contract, or words of similar meaning, then Subcontractor agrees that nothing in the Subcontract Documents is intended to restrict or limit the breadth of such insurance. The coverage provided to the Additional Insureds must be at least as broad as the coverage provided to the first named insured, and such additional insured status must be provided regardless of privity of contract between the parties. The applicable policies may not include terms that make the coverage afforded to an Additional Insured excess to other insurance on which such insured is also an additional insured. Samples of policy endorsements are included at the end of this Attachment. Such policy provision(s) or endorsement(s) must further provide that coverage is primary and not excess over or contributory with any other valid, applicable, and collectible insurance or self-insurance in force for the Additional Insureds.
- 6.0 Waiver of Subrogation. Unless prohibited by Laws, Subcontractor waives, and must require (by endorsement or otherwise) all its insurers to waive, subrogation rights against Contractor and other Additional Insureds for losses paid under the insurance policies required by the Subcontract Documents or other insurance applicable to Subcontractor or its sub-subcontractors of any tier. The waiver must apply to all deductibles and/or self-insured retentions applicable to the insurance maintained by Subcontractor or its sub-subcontractors of any tier. Subcontractor must require similar written express waivers of subrogation and insurance clauses from each of its sub-subcontractors of every tier. If the insurance policies referred to in this paragraph require an endorsement to provide for continued coverage where there is a waiver of subrogation, the owners of such policies must cause them to be so endorsed. Samples of policy endorsements are included at the end of this Attachment A. Subcontractor agrees to hold harmless and indemnify Contractor and other Additional Insureds for any loss or expense incurred as a result of Subcontractor's failure to obtain such waivers of subrogation from the Subcontractor's insurers or the insurers of all lower-tier subcontractors.

- 7.0 **Umbrella/Excess Liability.** The insurance limits required by this Attachment A may be met by either providing a primary policy or in combination with umbrella / excess liability policy(ies). To the extent that umbrella/excess coverage is used to satisfy the limits of coverage required hereunder, the terms of such coverage must be following form to, or otherwise at least as broad as, the primary underlying coverage, including amending the "other insurance" provisions as required so as to provide additional insured coverage on a primary and non-contributory basis.
- 8.0 **Deductibles/Self Insured Retentions.** For any policy required of Subcontractor or its sub-subcontractors of any tier, any self-insured retention or deductible in excess of \$10,000 must be declared and is subject to Contractor's approval. Funding of deductibles and/or self-insured retentions maintained by Subcontractor is the sole responsibility of Subcontractor, including any deductible or self-insured retentions applicable to coverage afforded to Contractor or other Additional Insureds. The coverage afforded to the Additional Insureds must not be conditioned upon payment of any deductible or self-insured retention.
- 9.0 **Insurance Requirements for Sub-subcontractors.** Subcontractor must ensure that its sub-subcontractors of any tier maintain insurance that complies with the requirements of the Subcontract Documents, including the additional insured, primary and non-contributory and waiver of subrogation requirements. Copies of the certificate(s) must be provided to Contractor prior to the sub-subcontractors entering the Project site.
- 10.0 Subcontractor's duty to provide the insurance coverage required by the Subcontract Documents is severable from its indemnification and defense obligations in Section 15 of the Agreement and elsewhere in the Subcontract Documents. Nothing in these insurance requirements will limit Subcontractor's liability under the Subcontract Documents. These insurance requirements are minimum requirements and do not relieve Subcontractor from liability in excess of such coverage, nor do they preclude Contractor from taking any actions available to Contractor under any other provisions of the Subcontract Documents.
- 11.0 Failure of Subcontractor to maintain the required insurance is a material breach entitling Contractor to terminate the Master Subcontract and any uncompleted Work Authorization for default, withhold payment, and/or purchase the required insurance at Subcontractor's expense. Any delays in the Work due to Subcontractor's failure to maintain required insurance are delays due to Subcontractor's breach of contract.
- 12.0 **Builder's Risk (Property in the Course of Construction).** To the extent required by the Prime Contract, Contractor and Subcontractor waive all rights against each other and against all other contractors and Owner for loss or damage to the extent reimbursed by Builder's Risk or any other property or equipment insurance applicable to the Work, except such rights as they may have to the proceeds of such insurance. Upon written request of Subcontractor and if available to Contractor, Contractor will provide Subcontractor with a copy of the Builder's Risk insurance policy. Subcontractor must satisfy itself as to the existence and extent of such insurance prior to commencing its onsite Work.
- Except as otherwise allocated under the Prime Contract, if Builder's Risk insurance or any other property or equipment project-specific insurance purchased by Owner or Contractor provides coverage to Subcontractor for loss or damage to Subcontractor's Work, Subcontractor is responsible for the insurance policy deductible amount applicable to the loss or damage to Subcontractor's Work and/or the damage to other work caused by Subcontractor.
- If not covered under the Builder's Risk insurance policy, Subcontractor must maintain at its own expense insurance for its Work and all such other property and equipment (whether owned, leased or rented), including any portions of Subcontractor's Work stored off the site or in transit. Such insurance must also apply to any of Owner's or Contractor's property in the care, custody, or control of Subcontractor.
- If there is a loss insured under the Builder's Risk policy, Subcontractor must provide all documentation required or requested by the insurance company(ies) issuing the Builder's Risk policy to substantiate Subcontractor's claim, and Subcontractor is bound by any adjustment made between Contractor or Owner and the insurer(s). Contractor's liability to Subcontractor for any such loss is in all cases limited to amounts actually paid by the insurer(s) for Subcontractor's claims. Nothing in this paragraph affects any provisions regarding coverage or waivers of subrogation in the Subcontract Documents.
- 13.0 **Miscellaneous.** Any waiver or modification of the requirements stated in this Attachment A must be agreed in writing by Contractor. If any Law limits the enforceability of the requirements of this Attachment A, then Subcontractor must comply with such requirements to the fullest extent of coverage and limits allowed by Laws and this Attachment A will be limited only to the extent required to conform to Laws.

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Appendix 1 to Attachment A Insurance Requirements by Trade

Trade Category I Full Insurance & Mold Requirements

Infection Control	Lath & Plaster
Tilt-Up Concrete	Tile
Glass-Fiber-Reinforced Concrete	Louvers & Vents
Stone/Marble (Adhered)	Environmentally Controlled Rooms
Stone/Marble (Mechanically Fastened)	Clean Rooms
Expansion Control	Pre-Engineered Structures
Dampproofing and Waterproofing	Process Piping
Exterior Insulation and Finish Systems (EIFS)	Medical Gases
Metal Roof and Wall Panels	Fire Protection
Roofing	Pre-Action Fire Suppression
Flashing and Sheet Metal	Plumbing
Joint Sealants	Heating Ventilating Air Conditioning
Entrances and Storefronts	Electrical
Automatic Entrance Doors	Instrumentation & Controls
Windows - Wood & Vinyl	Building Systems Controls
Skylights	Site Remediation & HazMat Abatement
Glass & Glazing (Exterior)	

Trade Category II Full Insurance & Conditional Mold Requirements

Groundwater Treatment Systems	Masonry
Demolition	Wood Framing
Dewatering	Glass & Glazing (Interior)
Tunneling, Boring and Jacking	Specialty Glazing
Fountains & Water Features	Framing & Drywall
Landscaping & Irrigation	Painting & Wallcovering
Cast-in-Place Concrete (Contractors)	Commercial Laundry & Dry Cleaning
Pneumatically Placed Concrete (Shotcrete)	Food Service Equipment
Sand & Water Blasting	Residential Laundry/Kitchen Equipment
Precast Concrete	Swimming Pools and Spas
Cementitious Decks and Underlayment	Hydraulic Elevators and Lifts
Concrete Restoration and Cleaning	

Trade Category III Full Insurance & No Mold Requirements

Testing & Inspection Services	Asphalt Concrete Paving
Const. Elevator/Hoist/Cranes	Paving Specialties
Scaffolding	Concrete
Construction Aids	Unit Pavers
Traffic Control	Athletic and Recreational Surfaces
Jobsite Security Guard Service	Fences and Gates
Survey & Layout	Retaining Walls
Machinery & Equipment Moving (Rigging)	Structural Excavation & Backfill
Shoring and Underpinning	Concrete Formwork (Non-Skin)
Earthwork	Concrete Accessories
Soil Stabilization & Erosion Control	Concrete Reinforcement
Soil Treatment	Post-Tensioning
Driven Piles	Concrete Pump
Site Utilities	Concrete Finishing
Site Utilities (Dry) - Electrical & Tel/Data	
Traffic Signs & Signals	

Trade Category III Full Insurance & No Mold Requirements (continued)

Granite Countertops	Access Flooring
Welding	Fabric/Canvas Awnings Canopies
Structural Steel	Operable Partitions
Structural Steel Erection	Storage Shelving
Metal Joists/Trusses	Sun Control Devices
Metal Deck	Window Washing Equipment
Channel Frame Strut	Theater and Stage Equipment
Miscellaneous Metals	Retail Fixtures & Showcases
Metal Stairs & Ladders	Loading Dock Equipment
Handrails and Railings	Athletic, Recreation, & Therapy Equipment
Ornamental Metal	Laboratory Equipment
Finish Carpentry & Millwork	Lab Equipment Salvage
Plastic Fabrications	Medical Equipment
Traffic Coatings	Lab & Medical Casework Systems
Building Insulation	Manufactured Wood Casework
Fireproofing	Furniture
Fire stopping	Multiple Seating
Metal Doors, Frames & Hardware	Radiation Protection
Doors, Frames & Hardware - Installation	Tennis Court Construction
Doors - Packaged (Total Doors)	Escalators and Moving Walks
Wood and Plastic Doors	Non-Hydraulic Elevators and Lifts
Specialty Doors	Conveyors
Coiling Doors and Grilles	Chutes
Acoustical Ceilings	Pneumatic Tube Systems
Floor Treatment & Coatings	Hoists and Cranes
Specialty Flooring	High Purity QAQC
Wood Flooring	Testing, Adjusting and Balancing
Resilient Flooring	Communications
Carpet & Resilient Flooring	Fire Alarm Systems
Acoustical Wall Treatment	Security Systems
Special Coatings (Epoxy Coatings)	Audio Visual System
Intumescent Fireproofing	

Trade Category IV Minimum Insurance & No Mold Requirements

Temporary Facilities and Controls	Lockers
Jobsite Trailer Rental & Lease	Fire Extinguishers/Cabinets
Temporary Barriers, Enclosures & Fencing	Postal Specialties
Product Delivery Requirements	Audio-Visual Equipment
Equipment Suppliers	Parking Control Equipment
Cleaning	Rugs and Mats
Site Furnishings	Window Treatments
Pavement Markings	Toilet Partitions & Compartments
Concrete Ready Mix	Cubicle Track & Curtains
Lumber Suppliers	Flagpoles
Prefabricated Structural Wood	Wall & Corner Guards
Roof Accessories	Wire Mesh Partitions
Access Doors and Panels	Telephone Specialties
Specialties	Toilet & Bath Accessories
Chalkboards & Markerboards	Shower & Tub Doors
Signage	

POLICY NUMBER:

COMMERCIAL GENERAL LIABILITY

CG 20 37 07 04

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED - OWNERS, LESSEES OR
CONTRACTORS - COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Name of Additional Insured Person(s) Or Organization(s):	Location and Description of Completed Operations
DPR Construction, A General Partnership, its joint venture and joint venture partner if one exists, the Owner, and their respective officers, partners, agents, employees, affiliates, members, owners and successors, and any other person or organization that any of the foregoing is required to indemnify or defend or add as an additional insured by written contract and those entities required by separate Work Authorization	All projects or locations as required by written contract.
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.	

Section II -- Who Is an insured is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury" or "property damage" caused, in whole or in part, by "your work" at the location designated and described in the schedule of this endorsement performed for that additional insured and included in the "products-completed operations hazard"

ISO I Commercial General Liability Forms I 07/01/04

POLICY NUMBER:

COMMERCIAL GENERAL LIABILITY

CG 20 10 07 04

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**ADDITIONAL INSURED - OWNERS, LESSEES OR
CONTRACTORS - SCHEDULED PERSON OR
ORGANIZATION**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Name of Additional Insured Person(s) Or Organization(s):	Location and Description of Completed Operations
DPR Construction, A General Partnership, its joint venture and joint venture partner if one exists, the Owner, and their respective officers, partners, agents, employees, affiliates, members, owners and successors, and any other person or organization that any of the foregoing is required to indemnify or defend or add as an additional insured by written contract and those entities required by separate Work Authorization	All projects or locations as required by written contract.
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.	

- A. Section II -- Who Is an Insured is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:
1. Your acts or omissions; or
 2. The acts or omissions of those acting on your behalf; in the performance of your ongoing operations for the additional insured(s) at the location(s) designated above.
- B. With respect to the insurance afforded to these additional insureds, the following additional exclusions apply:
- This insurance does not apply to "bodily injury" or "property damage" occurring after:
1. All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or
 2. That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.

CG 20 10 07 04

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WORKERS COMPENSATION AND EMPLOYERS LIABILITY INSURANCE POLICY

WC 00 03 13

2nd Reprint

April 1, 1984

Advisory

WAIVER OF OUR RIGHT TO RECOVER FROM OTHERS ENDORSEMENT

We have the right to recover our payments from anyone liable for an injury covered by this policy. We will not enforce our right against the person or organization named in the Schedule. (This agreement applies only to the extent that you perform work under a written contract that requires you to obtain this agreement from us.)

This agreement shall not operate directly or indirectly to benefit anyone not named in the Schedule.

Schedule

DPR Construction, A General Partnership, its joint venture and joint venture partner if one exists, the Owner, and their respective officers, partners, agents, employees, affiliates, members, owners and successors, and any other person or organization that any of the foregoing is required to indemnify or defend or add as an additional insured by written contract and those entities required by separate Work Authorization

© 1983 National Council on Compensation Insurance, Inc.

POLICY NUMBER:

COMMERCIAL GENERAL LIABILITY
CG 24 04 10 93

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WAIVER OF TRANSFER OF RIGHTS OF RECOVERY, AGAINST OTHERS TO US

This endorsement modifies insurance provided under the following:
COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Name of Person or Organization:

DPR Construction, A General Partnership, its joint venture and joint venture partner if one exists, the Owner, and their respective officers, partners, agents, employees, affiliates, members, owners and successors, and any other person or organization that any of the foregoing is required to indemnify or defend or add as an additional insured by written contract and those entities required by separate Work Authorization

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

The TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US Condition (Section IV - COMMERCIAL GENERAL LIABILITY CONDITIONS) is amended by the addition of the following:

We waive any right of recovery we may have against the person or organization shown in the Schedule above because of payments we make for injury or damage arising out of your ongoing operations or "your work" done under a contract with that person or organization and included in the "products-completed operations hazard". This waiver applies only to the person or organization shown in the Schedule above.

CG 24 04 10 93

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**ATTACHMENT D
STATE-SPECIFIC PROVISIONS
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of the State Riders selected below are incorporated into the Master Subcontract only for those Projects located in the State for which such Rider applies or where the Laws governing the Subcontract Documents are those of that State. If there is any conflict, inconsistency or ambiguity between the terms and provisions of the applicable State Rider and those of the Master Subcontract, the State Rider governs.

The selected State Riders are indicated by an "X" in the box next to it below:

- | | |
|--|--|
| ☒ Alabama State Rider | ☒ Nevada State Rider |
| ☐ Arizona State Rider | ☒ New Hampshire State Rider |
| ☐ California State Rider | ☒ New Jersey State Rider |
| ☒ Colorado State Rider | ☒ New Mexico State Rider |
| ☒ Connecticut State Rider | ☒ New York State Rider |
| ☒ Delaware State Rider | ☒ North Carolina State Rider |
| ☒ District of Columbia State Rider | ☒ Ohio State Rider |
| ☐ Florida State Rider | ☒ Oregon State Rider |
| ☒ Georgia State Rider | ☐ Pennsylvania State Rider |
| ☒ Hawaii State Rider | ☒ Rhode Island State Rider |
| ☐ Indiana State Rider | ☒ South Carolina State Rider |
| ☒ Kansas State Rider | ☒ Tennessee State Rider |
| ☒ Kentucky State Rider | ☒ Texas State Rider |
| ☒ Louisiana State Rider | ☒ Utah State Rider |
| ☒ Maine State Rider | ☒ Virginia State Rider |
| ☒ Maryland State Rider | ☒ Washington State Rider |
| ☒ Massachusetts State Rider | ☒ Wyoming State Rider |
| ☒ Mississippi State Rider | ☐ Other: _____ |
| ☒ Nebraska State Rider | |

**ALABAMA STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Alabama or where the Laws governing the Subcontract Documents are those of the State of Alabama. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

A new Section 2.1.1 is added to the Agreement as follows:

- 2.1.1 Subcontractor must provide Contractor with a list of all tier-subcontractors, material suppliers and third-party contractors providing labor and materials for the Work within 15 days of the date of commencement of the Work. This provision is intended to trigger the requirements, rights and responsibilities of Subcontractor under Ala. Code § 35-11-219.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be ten percent or as required under the Prime Contract, whichever is greater. Following fifty percent (50%) completion of the Project, Contractor will no longer withhold any additional retention for the Work. If, and only if, Owner has approved Contractor's payment application to Owner containing Subcontractor's payment application and Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work, then Contractor will make the monthly progress payment within ten Business Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor, including retention withheld, will be made within ten Days after the entire Work has been fully completed for the Project in conformity with the Subcontract Documents and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent and only if Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the Work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

The following is added after the last sentence of Section 4.6 of the Agreement:

All monies paid pursuant to the Work Authorization to Subcontractor are for the benefit of all laborers and materialmen who have substantially complied with their respective scopes of work and/or supplied materials pursuant to their respective tier-subcontracts or purchase orders. Subcontractor agrees that all labor and materials incorporated into the Work will be paid out of the Subcontract Price. This provision is intended to trigger Subcontractor's duties pursuant to Ala. Code § 35-11-219.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is ten Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by law for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor will be limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from the Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Days after Contractor's request for such payment. The parties agree that any interest provided herein is in lieu of and substituted for any interest or penalty provided for by Ala. Code §§ 8-29-1, *et seq.*, which are expressly waived by the parties.

The following is added after the last sentence of Section 9.2 of the Agreement:

The remedies set forth herein are in addition to and not exclusive of those defenses and remedies provided for at Law. Furthermore, Subcontractor waives any requirement of written demand by either Owner or Contractor as a prerequisite to the filing of a notice of cancellation of a Lien once that Lien has been satisfied, and agrees that upon satisfaction of a Lien, no matter the source, Subcontractor must cause the Lien to be cancelled within 30 days of its satisfaction or Subcontractor will be subject to the penalty set forth under Ala. Code § 35-11-231(b).

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 E-Verify. Prior to the earlier of the execution of the Work Authorization, the commencement of the Work, or Subcontractor's mobilization to the Project, Subcontractor must register with the U.S. Department of Immigration and Naturalization E-Verification system and obtain an E-Verify verification on every person with whom they hire, employ or contract to perform Work, regardless as to how they report wages and/or payments to either the Internal Revenue Service or the U.S. Department of the Treasury; Subcontractor must provide a copy of same to Contractor prior to Subcontractor's mobilization.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

- 15.1 Subcontractor's Performance.
- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- a) Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor

- or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
- b) Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
 - c) Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - d) Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - e) Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
 - f) Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - g) Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of one or more Indemnitee, and to Claims voluntarily paid or settled by the Indemnities at any time.

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnities or their agents or employees, or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnities or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnities or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

15.1.4 Subcontractor represents to Indemnities that its employees and Sub-subcontractors, where applicable, engaged in performing the Work are authorized to do so under all Laws, including any and all licensure, immigration and naturalization Laws. Subcontractor further represents that it is in compliance with all labor, employment, wage and hour Laws with regard to its employees, third-party contractors and sub-subcontractors, to the extent applicable. As such, Subcontractor agrees to defend, indemnify, and hold harmless the Indemnities from and against any and all liabilities, claims, penalties, forfeitures, suits, and any costs incident thereto (including costs of defense, settlement, and actual attorney's fees), which the Indemnities may hereafter incur or become responsible for as a result of Subcontractor's failure to abide by or adhere to any and all such Laws, including, without limitation, such Laws that pertain to third-party contractors, employees and sub-subcontractors that it intends or does utilize to perform any portion of the Work.

Public Works Provisions

If, and only if, the Project is an Alabama State public project, then the following additional provisions apply and govern over any contrary provisions in the Subcontract Documents:

- PW-1. The retention will be Five Percent until the work of the Project is at least 50% complete, on schedule and satisfactory in the Architect's and/or engineer's opinion, at which time Owner is obligated by statute to release to Contractor 50% of the retainage held to date. Upon receipt from Owner (or another responsible party) of such retainage withheld on account of Subcontractor's payments, Contractor will distribute the same to Subcontractor. Thereafter, Contractor will not withhold any further amounts in retainage, pursuant to Ala. Code § 39-2-12(c).

- END OF ALABAMA STATE RIDER -

**COLORADO STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Colorado or where the Laws governing the Subcontract Documents are those of the State of Colorado. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

A new Section 3.4 is added to the Agreement as follows:

- 3.4 This paragraph only applies if the applicable City and/or County requires Contractor to pay the Building Permit Use Tax deposit; otherwise Subcontractor must pay the Building Permit Use Tax deposit without additional compensation. Contractor has paid the Building Permit Use Tax deposit to the applicable City and/or County according to the requirements of those jurisdictions. Contractor will provide copies of these Building Permit Use Tax deposits to Subcontractor upon request. Subcontractor agrees that the Subcontract Price excludes any amount of such city or county tax. Subcontractor agrees that it has no right to collect from Contractor or Owner any remuneration based on such city and county taxes

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be five percent or as required under the Prime Contract, whichever is greater. If, and only if, Owner has approved Contractor's payment application to Owner containing Subcontractor's payment application and Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work, then Contractor will make the monthly progress payment within ten Business Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract, or in the absence of an applicable provision under the Prime Contract, within ten Business Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent and only if Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work.
- 4.2 SUBCONTRACTOR ACKNOWLEDGES AND RECOGNIZES THAT SUBCONTRACTOR'S WORK IS A PORTION OF THE WORK INCLUDED IN THE PRIME CONTRACT AND THAT PAYMENT FOR SUBCONTRACTOR'S WORK BY CONTRACTOR IS CONDITIONED UPON PAYMENT FOR SUBCONTRACTOR'S WORK BY OWNER OR OTHER RESPONSIBLE PARTY. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes and assumes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Subcontract.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement

Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is ten Business Days after Contractor receives payment from Owner for Subcontractor's Work, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Business Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor, to the extent permissible under Laws, must comply with, observe, and be bound by all the terms and provisions of any labor agreements executed by Contractor or on Contractor's behalf. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

TBD

Subcontractor hereby expressly agrees that all of the provisions of any applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through

which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

The following additional section is added to Section 14:

- 14.8 Remedies Under Other Agreements Cumulative. To the extent Subcontractor has more than one subcontract, Work Authorization or other agreement with Contractor, Contractor may exercise any remedy with respect to the Subcontract Documents against any other subcontract or agreement, including but not limited to withholding, backcharging or termination. Contractor may also exercise any remedy with respect to any other subcontract or agreement against this Agreement, including but not limited to withholding, backcharging or termination. Any breach of this Agreement by Subcontractor is agreed to be a breach of any other subcontract, Work Authorization or agreement between Subcontractor and Contractor. Any breach of any other subcontract, Work Authorization or agreement between Subcontractor and Contractor is agreed to be a breach of this Agreement.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
 - b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
 - c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - e. Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
 - f. Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply only to the extent that the liability, damages, losses or costs are caused by, or arise out of, the acts or omissions of Subcontractor or its officers, employees, agents, subcontractors, or others for whom Subcontractor is responsible, so as to comply with Colo.Rev.Stat. §13-21-111.5(6)(b).

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- b. to the extent that the liability, damages, losses or costs are caused by, or arise out of, the acts or omissions of Subcontractor or its officers, employees, agents, subcontractors, or others for whom Subcontractor is responsible, pay and satisfy any judgment or decree that may be rendered against

Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and

- c. to the extent that the liability, damages, losses or costs are caused by, or arise out of, the acts or omissions of Subcontractor or its officers, employees, agents, subcontractors, or others for whom Subcontractor is responsible, reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

- 15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Section 26.1 of the Agreement is replaced with the following:

This Master Subcontract is governed by the Laws applicable to the state and locality in which the Project is located without regard to any state's laws on choice or conflict of law.

Public Works Provisions

If, and only if, the Project is a Colorado State "public contract" under Colorado State Laws, then the following additional provisions apply and govern over any contrary provisions in the Agreement:

- PW-1.** Contractor will pay Subcontractor within seven Days of receipt of payment from the public entity if Subcontractor is satisfactorily performing under the Agreement. Subcontractor must pay all suppliers, sub-subcontractors, laborers, and any other persons who provide goods, materials, labor, or equipment to Subcontractor any amounts actually received that were included in Subcontractor's payment application to the Contractor on account of such persons within seven Days of receipt of payment from Contractor.

Contractor's Colorado State Contractor's License Number: 242455

Subcontractor's Colorado State Contractor's License Number: N/A

- END OF COLORADO STATE RIDER -

**CONNECTICUT STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Connecticut or where the Laws governing the Subcontract Documents are those of the State of Connecticut. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be five percent or as required under the Prime Contract. The monthly progress payments will be made within 25 Days after Contractor receives payment from Owner (or another responsible party). Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors within 25 Days from receipt of payment from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than 25 Days after Contractor receives final payment from Owner (or another responsible party) for work performed under the Prime Contract after Owner or its authorized representative issues a certificate of final completion.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible. Moreover, Subcontractor agrees that the liability of the surety on Contractor's payment bond, if any, for payment to Subcontractor, is subject to the same conditions precedent as are applicable to Contractor's liability to Subcontractor. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 1% per month until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is the later of (a) seven Days after Contractor receives payment from Owner for Subcontractor's Work or (b) the expiration of the reasonable time for payment described in Section 4.2, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, unless Laws require otherwise, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Business Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

- North Atlantic States Regional Council of Carpenters on behalf of itself and its member Local Unions

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.**

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Contractor's Connecticut State Contractor's License Number: MCO 0903235

Subcontractor's Connecticut State Contractor's License Number: N/A

- END OF CONNECTICUT STATE RIDER -

**DELAWARE STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Delaware or where the Laws governing the Subcontract Documents are those of the State of Delaware. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Ten Percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else ten Business Days after Contractor receives payment from Owner (or another responsible party) or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within ten Business Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor's right to receive compensation for the Work is not conditioned upon Owner's payment to Contractor under the Prime Contract. If Owner or other responsible party delays making any payment to Contractor from which payment to Subcontractor is to be made, and provided that such delay is not due to the fault of Subcontractor, Contractor or its sureties will make payment to Subcontractor within a reasonable time. A "reasonable time," as used herein, will be determined according to the relevant circumstances, but in no event will it be less than the time required for Contractor, Contractor's sureties (if any), and Subcontractor to fully pursue their legal remedies to conclusion against Owner or any other responsible parties to obtain payment, including, without limitation, mechanic's lien remedies. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is the later of (a) ten Business Days after Contractor receives payment from Owner for Subcontractor's Work or (b) the expiration of the reasonable time for payment described in Section 4.2, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Business Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

- Eastern Atlantic States Regional Council of Carpenters, Affiliated with the United Brotherhood of Carpenters and Joiners of America, and its member Local Unions

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.**

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Public Works Provisions

If, and only if, the Project is a Delaware “public works” contract under Delaware law, then the following additional provisions apply and govern over any contrary provisions in the Agreement:

PW-1. Prevailing Wage Requirements.

- a. Pursuant to 29 Del. C. § 6960(a), if this subcontract relates to a public works project in excess of \$500,000 for new construction (including painting and decorating) or \$45,000 for alteration, repair, renovation, rehabilitation, demolition or reconstruction (including painting and decorating of buildings or works) to which the State of Delaware or any subdivision thereof is a party and for which the State of Delaware appropriated any part of the funds and which requires or involves the employment of mechanics and/or laborers, Subcontractor must adhere to the minimum wages to be paid various classes of laborers and mechanics which shall be based upon the wages that will be determined by the Delaware Department of Labor, Division of Industrial Affairs, to be prevailing in the county in which the work is to be performed.
- b. Pursuant to 29 Del. C. § 6960(b), if this subcontract satisfies the specifications identified in subsection (a) of PW-1, Subcontractor must pay all mechanics and laborers employed directly upon the site of the work, unconditionally and not less often than once a week and without subsequent deduction or rebate on any account, the full amounts accrued at time of payment, computed at wage rates not less than those stated in the specifications, regardless of any contractual relationship which may be alleged to exist between subcontractor and such laborers and mechanics.
- c. Pursuant to 29 Del. C. § 6960(b), if this subcontract satisfies the specifications identified in subsection (a) of PW-1, the scale of wages to be paid must be posted by Subcontractor in a prominent and easily accessible place at the site of the work. There may be withheld from Subcontractor so much of accrued payments as may be considered necessary by the Department of Labor to pay to laborers and mechanics employed by Subcontractor the difference between the rates of wages required by the subcontract to be paid laborers and mechanics on the work and rates of wages received by such laborers and mechanics to be remitted to the Department of Labor for distribution upon resolution of any claims.
- d. Pursuant to 29 Del. C. § 6960(c), if this subcontract satisfies the specifications identified in subsection (a) of PW-1, sworn payroll information shall be furnished weekly by Subcontractor to the Department of Labor.

- END OF DELAWARE STATE RIDER -

**DISTRICT OF COLUMBIA STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the District of Columbia or where the Laws governing the Subcontract Documents are those of the District of Columbia. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Section 1.2 of the Agreement is modified to add the following at the end:

The parties intend that all the terms of the Prime Contract, not just those relating to the scope or technical aspects of the Work, and expressly including contract administration and dispute resolution procedures, are incorporated into the Subcontract Documents to the extent the terms relate in any way to the Work or Subcontractor's obligations under this Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Ten Percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven days after receipt by Contractor of payment from the Owner or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is seven days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited

exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions and areas of coverage listed below:

- Eastern Atlantic States Regional Council of Carpenters, Affiliated with the United Brotherhood of Carpenters and Joiners of America, and its member Local Unions
- Metropolitan Area of Philadelphia/Baltimore/Washington Laborers' District Council, LIUNA

Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction. To the extent Subcontractor performs, subcontracts, authorizes or otherwise assigns work of the type covered by the Applicable Labor Agreements, Subcontractor hereby expressly agrees that all of the provisions of the Applicable Labor Agreements are incorporated into this Agreement for the Project and that the following subsections will apply:

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Public Works Provisions

If, and only if, the Owner is the District of Columbia (the "District") or any of its subordinate agencies, instrumentalities, employees of the District government, independent agencies, boards, or commissions, pursuant to D.C. Code § 2-351.05, then the following additional provisions apply and govern over any contrary provisions in the Agreement for that Project:

PW-1. Payment. Pursuant to D.C. Code §§ 2-221.02(d)(1)-(3), with respect to sub-subcontractor payments:

- a. Within seven Days after receipt of amounts paid to Subcontractor by Contractor for work performed by a sub-subcontractor under the sub-subcontract:
- i. Subcontractor must pay the sub-subcontractor for the proportionate share of the total payment received from Contractor attributable to the work performed by the sub-subcontractor under the sub-subcontract; or
- ii. Notify Contractor and sub-subcontractor, in writing, of Subcontractor's intention to withhold all or a part of the sub-subcontractor's payment with the reason for nonpayment.

PW-2. Change Orders. Pursuant to D.C. Code § 2-221.02(d)(4)(B):

- a. Within five Business Days of receipt of the notice from the contracting officer required by D.C. Code § 2-221.02(d)(4)(A) regarding change orders, Contractor will provide subcontractor with notice of the approved amount to be paid to Subcontractor based on the portion of the additional work to be completed by Subcontractor;
- b. Contractor will pay subcontractor any undisputed amount to which Subcontractor is entitled for any additional work within ten Days of receipt of payment for the additional work from the District; and
- c. If Contractor withholds payment from Subcontractor, Contractor will notify Subcontractor in writing and state the reason why payment is being withheld and provide a copy of the notice to the contracting officer.

PW-3. Dispute Resolution. Pursuant to D.C. Code § 2-221.02(d)(5), with respect to dispute resolution, Contractor is required, at the election of Subcontractor, to participate in negotiation or mediation as an alternative to administrative or judicial resolution of a dispute.

PW-4. In accordance with D.C. Code § 2-220.04:

- a. **Living Wage Payment.** Pursuant to D.C. Code § 2-220.03, all recipients of contracts or government assistance in the amount of \$100,000 or more must pay their affiliated employees no less than the living wage. All subcontractors of recipients of these contracts that receive funds of \$15,000 or more must pay their affiliated employees no less than the living wage; provided, that this receipt of funds is from the contract funds received by the recipient from the District. All subcontractors of recipients of government assistance must pay their affiliated employees the living wage if the subcontractor receives \$50,000 or more from a recipient; provided, that this receipt of funds is from government assistance received by the recipient from the District.
- b. **Notice of Living Wage Required.** Pursuant to D.C. Code § 2-220.06, each recipient of a contract or government assistance and any subcontractor of a recipient must provide to each affiliated employee a fact sheet concerning the payment of and enforcement of the District's Living Wage requirements and must also post a notice concerning these requirements in a conspicuous site in its place of business. The District's Mayor will provide the fact sheet and notice to each recipient.
- c. **Payroll Records.** Pursuant to D.C. Code § 2-220.07, all recipients of a contract or government assistance and any subcontractors thereto must retain payroll records created and maintained in the regular course of business under District of Columbia law for a period of at least three years or the prevailing federal standard at the time the record is created, whichever is greater, from the payroll date for employees subject to the District's Living Wage Requirements.
- d. **Enforcement.** Pursuant to D.C. Code § 2-220.08, failure to pay wages in conformance with that subchapter will constitute unpaid wages and will subject the violator to all procedures, liquidated damages and penalties, and any other remedies or relief applicable under District of Columbia law.

Contractor's District of Columbia Contractor's License Number: 77025XXXX-70100292

Subcontractor's District of Columbia Contractor's License Number: N/A

- END OF DISTRICT OF COLUMBIA STATE RIDER -

**GEORGIA STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Georgia or where the Laws governing the Subcontract Documents are those of the State of Georgia. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Ten Percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven days after receipt by Contractor of payment from the Owner or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of Contractor's acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is seven days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Immigration Compliance. In addition to and not in lieu of any other provision requiring compliance with Laws, Subcontractor warrants and represents to Contractor that Subcontractor: (1) has fully complied and will continue to fully comply, at its own cost, with all Laws governing immigration, as may be amended from time to time, including but not limited to the Immigration Reform and Control Act of 1986 ("IRCA"), the Georgia Security & Immigration Compliance Act of 2006 ("GSIC") O.C.G.A. §13-10-90, -91, and O.C.G.A. § 36-60-6, along with their I-9 employer verification provisions (collectively, "the Immigration Compliance Requirements"); (2) if required by the Immigration Compliance Requirements or the Subcontract Documents, has upon signing this Agreement contemporaneously signed and returned to Contractor a Subcontractor affidavit that strictly conforms to the requirements of the Subcontract Documents, or if the form is not provided therein, with the Immigration Compliance Requirements; (3) has properly trained and will continue to properly train its staff regarding the execution and retention of I-9 employment verification forms; (4) is not now in violation of the Immigration Compliance Requirements; (5) has provided written notice to Contractor of all prior citations by any government agency for violations of the Immigration Compliance Requirements; (6) if required by the Immigration Compliance Requirements or the Subcontract Documents, has implemented and will continue to implement a company-wide I-9 employment verification policy (including, but not limited to the use of the EEV/Basic Pilot for employment eligibility verification of all new hires and current employees assigned to the Project, where such usage is required by the Subcontract Documents or Laws); and (7) if required by the Immigration Compliance Requirements or the Subcontract Documents, Subcontractor has and will cause all lower-tier subcontractors to sign a subcontractor affidavit that Subcontractor will return to Contractor, and to comply with all other requirements of this provision. Subcontractor further warrants that should Subcontractor become aware of any government audit of its employees or employer verification procedures, it will immediately notify Contractor in writing of such an audit and provide Contractor a copy of the findings when they are made available.
- 13.4.1 To the fullest extent permitted by Laws, Subcontractor must indemnify, defend and hold harmless Contractor and all of its affiliates, parents, subsidiaries, officers, directors, employees, successors and assigns from and against all claims, damages, losses, costs and expenses, including but not limited to attorneys' fees, public relations costs, and work stoppages, arising out of or resulting from the failure of Subcontractor or its employees, agents, subcontractors or suppliers, to properly verify workers or otherwise to fully comply with such immigration Laws, including but not limited to any fines or penalties incurred by Contractor or Owner in connection therewith.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Not used.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

- 15.1 Subcontractor's Performance.
- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of

use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnitee;

- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Contractor's Georgia State Contractor's License Number: GCCO005730

Subcontractor's Georgia State Contractor's License Number: N/A

- END OF GEORGIA STATE RIDER -

**HAWAII STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Hawaii or where the Laws governing the Subcontract Documents are those of the State of Hawaii. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be ten percent or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else ten Business Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within ten Business Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Subcontract.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is ten Business Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor will be limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from the Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Business Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

TBD

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in this Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their

respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence, active negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Section 18.1 is amended to add the following sentence: "Only if the Project involves work on a public construction project in the State of Hawaii, then the provisions of the attached Hawaii Public Contract Subcontract Addendum will apply."

Attachment A is modified to add the following to Section 2.2:

For any and all Work to be performed in the State of Hawaii, Subcontractor must procure and produce a Hawaii Amendatory Endorsement for Contractors and Subcontractors, addressing the amendment of the definition of

occurrence for construction projects. Pursuant to such endorsement, the definition of "occurrence" must be amended and defined as follows:

"Occurrence" means:

- a. An accident, including continuous or repeated exposure to substantially the same general harmful conditions; or
- b. Your act or omission, but only with respect to "property damage" caused by:
 - (1) "Your product" supplied to or for a "construction project" or
 - (2) "Your work" performed on or for a "construction project."
- c. For purposes of this endorsement, "Construction Project" means the building, renovation, repair, expansion, or demolition of any structure or part of any structure by you under a written contract, but only with respect to the conduct of your business.

Contractor's Hawaii State Contractor's License Number: CT-33604

Subcontractor's Hawaii State Contractor's License Number: N/A

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**HAWAII PUBLIC CONTRACT SUBCONTRACT ADDENDUM
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

1. The provisions of this Hawaii Public Contract Subcontract Addendum only apply to a subcontract for work on a public construction project in the State of Hawaii, which are subject to the mandatory contract provisions of the Hawaii Procurement Code, Haw. Rev. Stat. Chapter 103D, the accompanying Hawaii Administrative Rules for Chapter 103D, and the requirements for Wages and Hours of Employees on Public Works under Haw. Rev. Stat. Chapter 104.
2. Subcontractor acknowledges and agrees that contractual provisions for construction contracts required by Hawaii's procurement code Haw. Rev. Stat. Chapter 103D, and the accompanying Hawaii Administrative Rules, may be incorporated into the Prime Contract as a matter of law and will be controlling on the Subcontractor pursuant to Section 1.2 of the Agreement, unless said contractual provisions are modified by the designated Procurement Officer, in which case the modified provisions will be controlling.
3. Subcontractor acknowledges and agrees to be bound by any modified statutory contractual provisions incorporated in the bid documents issued by the public agency Owner through the designated Procurement Officer.
4. Subcontract provisions that may be affected by the Prime Contract, general terms and conditions of any public agency Owner, and any statutory or rule-mandated contract provisions therein, include but are not limited to provisions regarding (1) payments; (2) timing of the Work; (3) changes in the Work; (4) unforeseen site conditions; (5) damages caused by delays; and (6) termination for convenience.
5. Subcontractor agrees that any and all potential rights and remedies it may have under its Agreement are conditioned upon Subcontractor's compliance with (1) applicable procedural requirements for claims; and (2) applicable limitations on recovery under the Prime Contract, applicable terms and conditions of any public agency Owner, including any provisions of the Hawaii Procurement Code, Chapter 103D, and accompanying Hawaii Administrative Rules, as incorporated or modified by the bid documents. Any and all Subcontractor claims must be presented to Contractor within sufficient time and with sufficient documentation to allow Contractor to present such claims to the public agency within the time limits required for claims under the Prime Contract, and in all instances, Subcontractor's recovery is conditioned upon Contractor's recovery under the Prime Contract.
6. In addition to the terms of its Agreement, the Prime Contract, applicable terms of the Hawaii Procurement Code, Chapter 103D, and accompanying Hawaii Administrative Rules, as incorporated or modified by the bid documents, Subcontractor must follow and comply with all labor and employment requirements of Haw. Rev. Stat. Chapter 104, Wages and Hours of Employees on Public Works.
7. Change Orders: Subcontractor acknowledges and agrees to abide by the statutory requirements for change orders, as may be modified by the Project's Procurement Officer. In order for Subcontractor to be entitled to either an extension of time or adjustment in the Subcontract Price, due to a claimed change in Subcontractor's performance, Contractor will not be held liable for any claim by Subcontractor, unless Subcontractor provides Contractor with sufficient notice and time for Contractor to investigate, evaluate and submit Subcontractor's claim to the Owner within the time requirements of the Prime Contract. Further, the requirement for filing a timely written claim cannot be waived and is a condition precedent to the Subcontractor's assertion of a claim. No claim by the Subcontractor for an extension of time or adjustment in the Subcontract Price is allowed if the claim is not received by Contractor prior to final payment to Contractor under the Prime Contract. Subcontractor entitlement to an extension or adjustment is conditioned upon Contractor's receipt of an adjustment under the terms of the Prime Contract.
8. Price Adjustment in Construction Contracts: Unless otherwise modified by the Procurement Officer, in determining an adjustment in price resulting from a claimed change, to the extent such price adjustment is warranted and/or allowed by the Subcontract, the allowances for all overhead, extended overhead resulting from extension of time, including home office and branch office overhead) and profit combined must not exceed 20% of the cost for work performed by the Subcontractor's own forces. Subcontractor will not charge more than 10% markup for any work performed by Subcontractor's subcontractor. Subcontractor will not be paid any markup for labor or materials provided by any contractor working at a tier lower than sub-subcontractor.

9. Suspension of work for construction contract: Subcontractor acknowledges and agrees that the Procurement Officer for this public works project may, by written order, suspend the performance of the work, which may include Subcontractor's Work, either in whole or in part, for periods as the Procurement Officer may deem necessary for any cause. In such case, Subcontractor will conform to the provisions for total or partial suspension of work set forth in Hawaii's Procurement Code and accompanying administrative rules, as may be modified in writing by the Procurement Officer. Unless so modified, any Subcontractor claim arising out of the suspension must be made in accordance with the procedural requirements of these provisions.
10. Differing site conditions for construction contracts: Subcontractor acknowledges and agrees that the Prime Contract may require that any and all differing site conditions be treated as Contractor's responsibility. In such instance, Subcontractor accepts the conditions at the construction site as they eventually may be found to exist and warrants and represents that the Agreement can and will be performed under such conditions, and that all materials, equipment, labor, and other facilities required because of any unforeseen conditions (physical or otherwise) will be wholly at Subcontractor's own cost and expense, anything in this Agreement to the contrary notwithstanding.
11. To the extent the Prime Contract recognizes a differing site condition as a basis for additional recovery under the Prime Contract, Subcontractor agrees that it will comply with the knowledge, notification, timeliness, and price adjustment requirements and limitations of the Prime Contract.
12. Oral Directives: Any oral order, direction, instruction, interpretation, or determination from the Procurement Officer to Contractor that is in turn passed on to the Subcontractor can be considered a change only if the Subcontractor gives Contractor written notice of its intent to treat the oral order, direction, instruction, interpretation, or determination as a change directive, in time for Contractor to provide said notice to the Procurement Officer. Subcontractor agrees to abide by the requirements and restrictions applicable to oral directives issued during the course of its Work, as may be modified in writing by the Procurement Officer.
13. Subcontractor Delay: If the Subcontractor refuses or fails to perform the Work, or any separable part thereof, with such diligence as will assure its completion within the time specified in this Agreement, or any extension thereof, fails to complete the Work within such time, or commits any other substantial breach of this Agreement, and further fails within seven days after receipt of written notice to commence and continue correction of the refusal or failure with diligence and promptness, the Subcontractor may be declared in breach and its right to proceed with the work or the part of the work as to which there has been delay may be terminated.
14. Subcontractor agrees to abide by the terms of the Procurement Code and accompanying administrative rules, as may be modified by the Procurement Officer, if its right to proceed with all or part of its work has been terminated under this section.
15. Termination for convenience: Subcontractor agrees and acknowledges the Procurement Officer may terminate the Prime Contract in whole or in part, for the convenience of the Owner, and Contractor may terminate this Agreement or the applicable Work Authorization for the convenience of Contractor. Subcontractor agrees in such instance it will be bound by the terms and limitations of Hawaii's procurement code and the accompanying administrative rules governing termination for convenience, subject to written modifications by the Procurement Officer or by specific terms of the Agreement.
16. Prompt payment for contractors to subcontractors: Any money, other than retainage, paid to Contractor will not be dispersed to Subcontractor unless the Subcontractor has met all the terms and conditions of the Subcontract Documents and there are no bona fide disputes. Provided Subcontractor has met all terms and conditions of the Subcontract Documents and there are no bona fide disputes between Contractor and Subcontractor, monies paid to Contractor will be paid to Subcontractor within ten days, and Subcontractor must make payments to sub-subcontractors within ten days thereafter.
17. Subcontractor agrees to abide by the requirements set forth for contractors in the Wages and Hours of Employees on Public Works under Haw. Rev. Stat. Chapter 104.
18. Nothing in this Addendum will be deemed to limit, eliminate, or alter Subcontractors' responsibility to comply with existing State and Federal Laws applicable to Subcontractor's Work.

- END OF HAWAII STATE RIDER -

**KANSAS STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Kansas or where the Laws governing the Subcontract Documents are those of the State of Kansas. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be ten percent (five percent if required by Laws for a public Project) unless increased by Owner pursuant to K.S.A. 16-1804 or 16-1904. If, and only if, Owner has approved Contractor's payment application to Owner containing Subcontractor's payment application and Owner (or another responsible party) has actually made payment to Contractor for Subcontractor's labor, services, materials, or equipment, then Contractor will make the monthly progress payment within seven Days after the date Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent and only if Owner (or another responsible party) has actually made payment to Contractor for Subcontractor's labor, services, materials or equipment.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the Work and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes, assumes, and bears the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Subcontract.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is ten Business Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Business Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor, to the extent permissible under Laws, must comply with, observe, and be bound by all the terms and provisions of any labor agreements executed by Contractor or on Contractor's behalf. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

TBD.

Subcontractor hereby expressly agrees that all of the provisions of any applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.
- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.
- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.**

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee (including Contractor);
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of one or more Indemnatee (including Contractor). **Subcontractor, however, is not obligated under this Agreement to indemnify an Indemnatee for Claims arising from the sole negligence or willful misconduct of that Indemnatee, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

CONTRACTORS ARE REGULATED IN KANSAS BY LOCAL COUNTY AND CITY REGULATIONS PERTAINING TO THE LOCALITY IN WHICH THE PROJECT IS LOCATED. SUBCONTRACTOR SHALL COMPLY WITH ALL APPLICABLE LAWS AND REGULATIONS INCLUDING LICENSING REQUIREMENTS.

- END OF KANSAS STATE RIDER -

**KENTUCKY STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Kentucky or where the Laws governing the Subcontract Documents are those of the State of Kentucky. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Ten Percent of the amount due until 50% of the Owner's Project is complete, and after 51% of the Owner's Project has been complete any further retention will be limited to an amount that causes the aggregate amount of retention to equal 5% of the Subcontract Price. When the Work is substantially complete, Contractor may withhold 200% of the estimated cost of the balance of Subcontractor's incomplete Work. If, and only if, Owner has approved Contractor's payment application to Owner containing Subcontractor's payment application and Owner (or another responsible party) has actually made payment to Contractor for Subcontractor's labor, services, materials, or equipment, then Contractor will make the monthly progress payment to Subcontractor within 15 Business Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors within 15 Business Days of payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract, or in the absence of an applicable provision under the Prime Contract, within 15 Business Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent and only if Owner (or another responsible party) has actually made payment to Contractor for Subcontractor's Work.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is expressly conditioned upon Contractor's receipt of payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is 15 Business Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay

Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is 15 Business Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Not used.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
 - 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
 - 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
 - 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

- 15.1 Subcontractor's Performance.
 - 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
 - a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
 - b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
 - c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
 - f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims to the extent they arise from the negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. to the extent that the liability, damages, losses or costs are caused by, or arise out of, the acts or omissions of Subcontractor or its officers, employees, agents, tier-subcontractors, or others for whom Subcontractor is responsible, pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. to the extent that the liability, damages, losses or costs are caused by, or arise out of, the acts or omissions of Subcontractor or its officers, employees, agents, tier-subcontractors, or others for whom Subcontractor is responsible, reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

- END OF KENTUCKY STATE RIDER -

**LOUISIANA STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Louisiana or where the Laws governing the Subcontract Documents are those of the State of Louisiana. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent, and as a condition precedent, Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be five percent or as required under the Prime Contract, whichever is greater. If, and only if, Owner has approved Contractor's payment application to Owner containing Subcontractor's payment application and Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work, then Contractor will make the monthly progress payment within ten Business Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor will be made within ten Days after the entire Work has been fully completed for the Project in conformity with the Subcontract Documents and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent and only if Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work.
- 4.2 **SUBCONTRACTOR ACKNOWLEDGES AND RECOGNIZES THAT SUBCONTRACTOR'S WORK IS A PORTION OF THE WORK INCLUDED IN THE PRIME CONTRACT AND THAT PAYMENT FOR SUBCONTRACTOR'S WORK BY CONTRACTOR IS EXPRESSLY CONDITIONED UPON PAYMENT FOR SUBCONTRACTOR'S WORK BY OWNER OR OTHER RESPONSIBLE PARTY.** Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is ten Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by law for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor will be limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from the Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

TBD

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.
- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.
- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.**

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), to the extent caused or alleged to be caused by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
 - b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
 - c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - e. Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
 - f. Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.
- 15.1.2 Defense of Claims. Subcontractor must:
- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
 - b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
 - c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.
- 15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.
- 15.1.4 Subcontractor must procure insurance to insure the indemnity obligations of this Section 15.1. Contractor and Subcontractor agree and stipulate that in accordance with La.R.S.9:2780.1, Subcontractor must include in its Subcontract Price the cost to provide the insurance to fulfill Subcontractor's indemnity obligations.

A new Sub-section 29.4 of the Agreement is added, as follows:

- 29.4 Statutory Employer. For the purposes of the Subcontract Documents, Contractor and Subcontractor jointly agree, stipulate and recognize that Contractor will be the statutory employer of any and all of Subcontractor's employees and/or all employees of any subcontractors hired or retained in any manner by Subcontractor and/or any other person for whom Subcontractor may be held responsible, while any of the above-described persons are performing any work or providing any services under the Subcontract Documents. Contractor and Subcontractor further stipulate, agree and recognize that all Work is considered part of Contractor's trade, business or occupation and shall be specifically considered an integral part of or essential to the ability of Contractor to generate its goods, products or services. Nothing in this section will relieve Subcontractor from its responsibility to maintain worker's compensation insurance for its employees or relieve any of its subcontractors from its obligation provide and maintain worker's compensation insurance during the period required by the Subcontract Documents. The parties expressly agree that the recognition of Statutory Employer is made pursuant to and solely for the purposes of La. R.S. 23:1061 of the Louisiana Worker's Compensation statute for projects located in Louisiana.

- END OF LOUISIANA STATE RIDER -

**MAINE STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Maine or where the Laws governing the Subcontract Documents are those of the State of Maine. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be five percent or as required under the Prime Contract, whichever is greater. If, and only if, Owner has approved Contractor's payment application to Owner containing Subcontractor's payment application and Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work, then Contractor will make the monthly progress payment within ten Business Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor will be made within ten Days after the entire Work has been fully completed for the Project in conformity with the Subcontract Documents and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent and only if Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work.
- 4.2 **SUBCONTRACTOR ACKNOWLEDGES AND RECOGNIZES THAT SUBCONTRACTOR'S WORK IS A PORTION OF THE WORK INCLUDED IN THE PRIME CONTRACT AND THAT PAYMENT FOR SUBCONTRACTOR'S WORK BY CONTRACTOR IS CONDITIONED UPON PAYMENT FOR SUBCONTRACTOR'S WORK BY OWNER OR OTHER RESPONSIBLE PARTY.** Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement. **SUBCONTRACTOR ACKNOWLEDGES AND RECOGNIZES THAT CONTRACTOR'S OBLIGATION TO PAY SUBCONTRACTOR ONLY UPON CONTRACTOR'S RECEIPT OF PAYMENT FOR SUBCONTRACTOR'S WORK FROM OWNER IS AN EXPRESS CONTRACTUAL AGREEMENT FOR THE TIMING OF CONTRACTOR'S PAYMENT OBLIGATION TO SUBCONTRACTOR UNDER THE MAINE PROMPT PAYMENT ACT, 10 M.R.S.A. §§ 1111, ET SEQ.**

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is ten Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by law for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor will be limited

exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from the Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:
- North Atlantic States Regional Council of Carpenters on behalf of itself and its member Local Unions
 - Massachusetts & Northern New England Laborers' District Council on behalf of itself and its member Local Unions

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.
- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.
- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.**

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
 - Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
 - Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
 - Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of one or more Indemnitee.

15.1.2 Defense of Claims. Subcontractor must:

- at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

- 15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

- END OF MAINE STATE RIDER -

**MARYLAND STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Maryland or where the Laws governing the Subcontract Documents are those of the State of Maryland. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Section 1.2 of the Agreement is modified to add the following at the end:

The parties agree that incorporation of the terms of the Prime Contract into the Subcontract Documents to the extent the terms relate in any way to the Work or Subcontractor's obligations under this Agreement is of the essence of this Agreement, that Subcontractor has accounted for such terms in its Subcontract Price, and that such incorporation does not result in surprise or hardship to Subcontractor.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Ten Percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven days after receipt by Contractor of payment from Owner or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.6 of the Agreement is replaced with the following:

- 4.6 At any times reasonably requested by Contractor, Subcontractor will, and will cause each of its lower-tier subcontractors to, furnish notarized evidence that all labor, materials, and other costs for which it has received payment from Contractor have been paid in full. Subcontractor agrees to provide, and will cause each of its lower-tier subcontractors to provide, Contractor with evidence satisfactory to Contractor showing payment by Subcontractor or its lower-tier subcontractor of any and all contributions for health and welfare payments, payroll taxes and other contributions which may be required by Laws.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is seven days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions and areas of coverage listed below:
- Eastern Atlantic States Regional Council of Carpenters, Affiliated with the United Brotherhood of Carpenters and Joiners of America, and its member Local Unions
 - Metropolitan Area of Philadelphia/Baltimore/Washington Laborers' District Council, LIUNA

Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction. To the extent Subcontractor performs, subcontracts, authorizes or otherwise assigns work of the type covered by the Applicable Labor Agreements, Subcontractor hereby expressly agrees that all of the provisions of the Applicable Labor Agreements are incorporated into this Agreement for the Project and that the following subsections will apply:

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.
- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.
- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
 - a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
 - b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
 - c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
 - f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

- 15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Public Works Provisions

If, and only if, the Project is with a Maryland "public body" under Maryland law, then the following additional provisions apply and govern over any contrary provisions in the Agreement:

PW-1. Discrimination Prohibited. Pursuant to Md. Code, State Fin. & Proc. § 19-114, as a condition of entering into this Agreement, Subcontractor represents and warrants that it will comply with the State's Commercial Nondiscrimination Policy, as described under Title 19 of the State Finance and Procurement Article of the Annotated Code of Maryland. As part of such compliance, Subcontractor may not discriminate on the basis of race, color, religion, ancestry or national origin, sex, age, marital status, sexual orientation, or on the basis of disability or other unlawful forms of discrimination in the solicitation, selection, hiring, or commercial treatment of tier-subcontractors, vendors, suppliers, or commercial customers, nor will Subcontractor retaliate against any person for reporting instances of such discrimination. Subcontractor must provide equal opportunity for tier-subcontractors, vendors, and suppliers to participate in all of its public sector and private sector subcontracting and supply opportunities, provided that nothing contained in this clause shall prohibit or limit otherwise lawful efforts to remedy the effects of marketplace discrimination that have occurred or are occurring in the marketplace. Subcontractor understands and agrees that a material violation of this clause is considered a material breach of this Agreement and may result in termination of this Agreement, disqualification of Subcontractor from participating in State contracts, or other sanctions. This clause is not enforceable by or for the benefit of, and creates no obligation to, any third party.

PW-2. Payment. Pursuant to Md. Code, State Fin. & Proc. § 15-226(c), with respect to payments to a subcontractor:

- a. A contractor shall pay a subcontractor an undisputed amount to which the subcontractor is entitled within 10 days of receiving a progress or final payment from the State.
- b. If a contractor withholds payment from a subcontractor, within the time period in which payment normally would be made, the contractor must:
 - i. notify the subcontractor in writing and state the reason why payment is being withheld; and
 - ii. provide a copy of the notice to the procurement officer for the State.

PW-3. Retainage Requirements. Pursuant to Md. Code, State Fin. & Proc. § 17-110, with respect to retainage requirements:

a. Subcontractors:

- i. Contractor may not retain a percentage of payments due Subcontractor that exceeds the percentage of payments retained by the public body.
- ii. Section (i) of this subsection may not be construed to prohibit Contractor from withholding any amount in addition to retainage if Contractor determines that Subcontractor's performance under the Subcontract Documents provides reasonable grounds for withholding the additional amount.

b. Lower tier subcontractors:

- i. Subcontractor may not retain a percentage of payments due a lower-tier subcontractor that exceeds the percentage of payments retained from Subcontractor.
- ii. Paragraph (b)(i) of this subsection may not be construed to prohibit Subcontractor from withholding any amount in addition to retainage if Subcontractor determines that a lower-tier subcontractor's performance under the tier-subcontract provides reasonable grounds for withholding the additional amount.

Contractor's Maryland State Contractor's License Number: 13339665

Subcontractor's Maryland State Contractor's License Number: 16467468

- END OF MARYLAND STATE RIDER -

**MASSACHUSETTS STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the Commonwealth of Massachusetts or where the Laws governing the Subcontract Documents are those of the Commonwealth of Massachusetts. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be as set forth in Section 4.8. Subcontractor's payment applications required under Section 4.3 must be submitted on a 30 day payment cycle beginning with the end of the first calendar month occurring at least fourteen days after Subcontractor commences Work on the Project. Contractor will approve or reject, in whole or in part, Subcontractor's payment application within 15 days of submission (or, if different, within the time period afforded Contractor under M.G.L c. 149 §29E or the Prime Contract). To the extent Contractor rejects, in whole or in part, Subcontractor's payment application, said rejection will be made in writing, will include an explanation of the factual and contractual basis for the rejection, and will be certified as made in good faith. A rejection in whole or in part of a payment application is subject to the dispute resolution procedures of the Subcontract Documents. Contractor will pay Subcontractor within five Business Days of receipt of funds from Owner but in any event not later than 45 Days after approval of Subcontractor's payment application, subject to the condition precedent set forth below when applicable. In each instance, and to the fullest extent allowed by Laws, Contractor's obligation to make progress payments or final payment to Subcontractor is expressly conditioned upon Contractor's receipt of such payment by Owner, and no payment is due Subcontractor from Contractor, its payment bond surety, or its statutory lien bond surety unless or until, and then only to the extent, Owner has made such payment to Contractor. With respect to progress payments, receipt of payment from Owner by Contractor will, in each instance, be an express condition precedent to Contractor's obligation to pay Subcontractor and Subcontractor's right to receive payment from Contractor to the extent of amounts not received by Contractor from Owner because Subcontractor failed to perform according to its obligations under the Subcontract Documents and failed to cure such non-performance within the time required by the Subcontract Documents after receipt of written notice, or, to the extent of amounts not received by Contractor from Owner because Owner is or becomes insolvent, within 90 Days after the date of submissions of Subcontractor's application for the payment at issue. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract, or in the absence of an applicable provision under the Prime Contract, within seven days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract, but in no event longer than is required by applicable Laws.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided,

however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Sections 4.8 through 4.12 of the Agreement are as follows:

- 4.8 Retainage. If the Project is not subject to the Massachusetts Retainage Law, M.G.L. c. 149, §29F, Contractor will withhold retainage at 10% of the total value of the Subcontract Price, or if different, as required by the Prime Contract or Laws, until final payment.
- 4.9 If the Project is subject to the Massachusetts Retainage Law, M.G.L. c. 149, §29F, Contractor will withhold retainage equal to 5% of the value of each Subcontractor payment application, with such retainage released as follows:
 - 4.9.1 Provided that all conditions precedent to progress and final payment set forth in Subcontract Documents are satisfied, retainage will be paid in the next payment application submitted after Substantial Completion of the entire work of Contractor as defined in the Contract Documents and Laws, subject to the following hold-backs, if applicable: (i) for incomplete or missing deliverables, the reasonable value of the deliverables, which will not exceed 2.5% of the Subcontract Price; (ii) 150% of the amount necessary to complete or correct Subcontractor's punch list items and defective work; and (iii) the reasonable value of claims relating to the Work (and any forecast of costs, expenses and attorneys' fees to be incurred as a result of such claims). If, following Substantial Completion of Contractor's entire work, Contractor determines that it is entitled to continue to withhold retainage, Contractor will provide to Subcontractor a written description of the incomplete or defective work items and incomplete, incorrect or missing deliverables, the factual and contractual basis for the claims and the value attributable to each incomplete or defective work item, deliverable and claim, all certified as made in good faith. Retention not previously released will be released when all conditions precedent to final payment have occurred.
- 4.10 Not later than seven Days following receipt of a punch list from Owner, Contractor will supplement such punch list (if deemed appropriate by Contractor in its sole discretion) and forward such punch list to Subcontractor along with a certification that Subcontractor's punch list, as supplemented, has been made in good faith. Subcontractor must correct and complete punch list items within 30 Days and assist Contractor in conducting final inspections. Any disputes regarding the appropriateness or completion of any punch list items are subject to the dispute resolution processes of the Subcontract Documents.
- 4.11 The Subcontractor may submit a payment application for retainage upon the 60th day following the date established for Substantial Completion of Contractor's entire work, or within the time period required by Laws. Contractor will pay such amount pursuant to the terms of the Prime Contract and the requirements of this section, but in no event longer than is required by Laws.
- 4.12 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is seven days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions and areas of coverage listed below:

- North Atlantic States Regional Council of Carpenters on behalf of itself and its member Local Unions
- Massachusetts & Northern New England Laborers' District Council on behalf of itself and its member Local Unions

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs,

actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

- END OF MASSACHUSETTS STATE RIDER -

**MISSISSIPPI STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Mississippi or where the Laws governing the Subcontract Documents are those of the State of Mississippi. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

A new Section 2.1.1 is added to the Agreement as follows:

- 2.1.1 Subcontractor must provide Contractor with a list of all tier-subcontractors, material suppliers and third-party contractors providing labor and materials for the Project within 15 days of the date of commencement of the Work. This provision is intended to trigger the requirements, rights and responsibilities of Subcontractor under West's A.M.C. § 85-7-407(1) (Rev. 2014).

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be the lesser of ten percent, the amount required under the Prime Contract or the amount required under Mississippi Laws, as applicable. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else 15 Business Days after Contractor receives payment from Owner (or another responsible party) or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within ten Business Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract; provided Subcontractor has provided to Contractor the following: (x) a properly executed release and duly certified voucher for payment; (y) a release of all claims against Owner arising under and by virtue of the Subcontract Documents other than such claims of Subcontractor, if any, that are specifically excluded by Subcontractor from operation of the release in stated amounts set forth in the release; and (z) proof of completion.
- 4.2 Subcontractor's right to receive compensation for the Work is not conditioned upon Owner's payment to Contractor under the Prime Contract. If Owner or other responsible party delays making any payment to Contractor from which payment to Subcontractor is to be made, and provided that such delay is not due to the fault of Subcontractor, Contractor or its sureties will make payment to Subcontractor within a reasonable time. A "reasonable time," as used herein, will be determined according to the relevant circumstances, but in no event will it be less than the time required for Contractor, Contractor's sureties (if any), and Subcontractor to fully pursue their legal remedies to conclusion against Owner or any other responsible parties to obtain payment, including, without limitation, mechanic's lien remedies. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

The following is added after the last sentence of Section 4.6 of the Agreement:

All monies paid pursuant to this Agreement to the Subcontractor are for the benefit of all laborers and materialmen who have substantially complied with their respective scopes of work and/or supplied materials pursuant to their respective tier-subcontracts or purchase orders. Subcontractor agrees that all labor and materials incorporated into the Project will be paid out of the Subcontract Price. This provision is intended to trigger Subcontractor's duties pursuant to West's A.M.C. § 85-7-407(1) (Rev. 2014).

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is the later of (a) 15 Business Days after Contractor receives payment from Owner for Subcontractor's Work or (b) the expiration of the reasonable time for payment described in Section 4.2, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is 15 Business Days after Contractor's request for such payment. The parties agree that any interest provided herein is in lieu of and substituted for any interest or penalty provided for by West's A.M.C. §§ 87-7-5 or 31-5-27, which are expressly waived by the parties.

Section 9.2 of the Agreement is modified to add the following at the end:

The remedies set forth in this Section are in addition to and not exclusive of those defenses and remedies provided for at Law, to include, but not be limited to those remedies found at West's A.M.C. §§85-7-407(3); 85-7-413(1)(a),(b) & (2); 85-7-413(1) (Rev. 2014). Furthermore, Subcontractor waives any requirement of written demand by either Owner or Contractor as a prerequisite to the filing of a notice of cancellation of a Lien, once such Lien has been satisfied, and understands and agrees that upon satisfaction of a Lien, no matter the source, Subcontractor must cause such Lien to be cancelled within 15 days of its satisfaction or Subcontractor will be subject to the penalty set forth under West's A.M.C. §85-7-421(3).

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 E-Verify. Prior to the earlier of the execution of a Work Authorization, the commencement of the Work, or to the Subcontractor's mobilization to the Project, Subcontractor must register with the U. S. Department of Immigration and Naturalization E-Verification system and shall obtain an E-Verify verification on every person with whom they hire, employ or contract to perform work on the Project, regardless as to how they report wages and/or payments to either the Internal Revenue Service or the U.S. Department of the Treasury, and must provide a copy of same to Contractor prior to mobilization.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

- 15.1 Subcontractor's Performance.
- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), to the extent caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees and apply to Claims voluntarily paid or settled by the Indemnitees at any time. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims to the extent arising from the negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

15.1.4 Subcontractor represents and warrants to Indemnitees that: (a) it is duly licensed and authorized to do the Work, to the extent required by Laws; (b) its employees and tier-subcontractors engaged in performing the Work, where applicable, are authorized to do so under all Laws, including any and all licensure, immigration and naturalization Laws; (c) it complies all Laws regarding labor, employment, and wages and hours with regard to its employees, third-party contractors and tier-subcontractors, to the extent applicable. Subcontractor agrees to indemnify, save harmless, and defend the Indemnitees from and against any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's failure to comply with all Laws regarding labor, employment, and wages and hours with regard to its employees, third-party contractors and tier-subcontractors that it intends or does utilize to perform any portion of the Work.

Public Works Provisions

If, and only if, the Project is Mississippi State public project, then the following additional provisions apply and govern over any contrary provisions in the Agreement:

PW-1. The retention will be Five Percent until the work of the Project is at least 50% complete, on schedule and satisfactory in the Architect's and/or engineer's opinion, at which time Owner is obligated by statute to release to Contractor 50% of the retainage held to date. Upon receipt from Owner (or another responsible party) of such retainage withheld on account of Subcontractor's payments, Contractor will distribute the same to Subcontractor. Thereafter, Contractor will hold retainage at 2.5%, which retainage will be distributed to Subcontractor upon Contractor's receipt of same from Owner (or another responsible party) upon final payment for the Project.

Contractor's Mississippi State Contractor's License Number: 599846

Subcontractor's Mississippi State Contractor's License Number: N/A

- END OF MISSISSIPPI STATE RIDER -

**NEBRASKA STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Nebraska or where the Laws governing the Subcontract Documents are those of the State of Nebraska. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Section 1.3 is amended to include the following sentence at the end:

“Any violation by Subcontractor of the representations and warranties in this Section 1.3 constitutes an unconditional and absolute waiver of the right to make any claim for extra time or compensation as a result of the terms of the Subcontract Documents, the plans and specifications as they pertain to the Work, the location of the Project site, and the conditions under which the Work is to be performed by Subcontractor.”

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be ten percent or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else ten Business Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within ten Business Days after (y) the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, and (z) the Contractor has received funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor's right to receive compensation for the Work is not conditioned upon Owner's payment to Contractor under the Prime Contract. If Owner or other responsible party delays making any payment to Contractor from which payment to Subcontractor is to be made, and provided that such delay is not due to the fault of Subcontractor, Contractor or its sureties will make payment to Subcontractor within a reasonable time. A “reasonable time,” as used herein, will be determined according to the relevant circumstances, but in no event will it be less than the time required for Contractor, Contractor's sureties (if any), and Subcontractor to fully pursue their legal remedies to conclusion against Owner or any other responsible parties to obtain payment, including, without limitation, mechanic's lien remedies. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The “Interest Commencement Date” for amounts due to Subcontractor is the later of (a) ten Business Days after Contractor receives payment from Owner for Subcontractor's Work or (b) the expiration of the reasonable time for payment described in Section 4.2, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The “Interest Commencement Date” for amounts due from Subcontractor to Contractor is ten Business Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the

Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

TBD

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.
- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.
- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

An additional Section 13.6 is added to the Agreement, as follows:

- 13.6 Verification of Work Authorization. Subcontractor verifies that, in compliance with Neb.Rev.Stat. § 4-114(2), it has registered with, is authorized to use, and uses the federal work authorization program commonly known as E-verify, or any subsequent replacement program, to verify the work authorization status for all employees hired during the contract period who physically perform Work within the State of Nebraska.

Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.**

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
 - Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
 - Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
 - Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

- 15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Contractor's Nebraska State Contractor's License Number: 36319

Subcontractor's Nebraska State Contractor's License Number: N/A

- END OF NEBRASKA STATE RIDER -

**NEVADA STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Nevada or where the Laws governing the Subcontract Documents are those of the State of Nevada. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be five percent. Subject to Section 4.2, Contractor will make the monthly progress payment within ten Days after the date Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work, provided that Contractor has received all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. Subject to Section 4.2, the final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable Law, or in the absence of an applicable provision under the Prime Contract, within ten Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Owner (or another responsible party) has paid Contractor for Subcontractor's labor, services, materials or equipment.
- 4.2 Subcontractor's right to receive compensation for the Work is not conditioned upon Owner's payment to Contractor under the Prime Contract. If Owner or other responsible party delays making any payment to Contractor from which payment to Subcontractor is to be made, and provided that such delay is not due to the fault of Subcontractor, Contractor or its sureties will make payment to Subcontractor within 45 Days after the 25th of the month in which Subcontractor submits an application for payment. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is ten Business Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Business Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor, to the extent permissible under Laws, must comply with, observe, and be bound by all the terms and provisions of any labor agreements executed by Contractor or on Contractor's behalf. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

Southwest Regional Council of Carpenters and its Affiliated Local Unions who are members of said Council, including Carpenters Local 897, 1780, 1607, 1977 and 2375.

Subcontractor hereby expressly agrees that all of the provisions of any applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.
- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.
- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
 - 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
 - 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
 - 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
 - a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;

- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of one or more Indemnitee. **Subcontractor, however, is not obligated under this Agreement to indemnify an Indemnitee for Claims arising from the sole negligence or willful misconduct of that Indemnitee, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

CONTRACTORS ARE REQUIRED BY LAW TO BE LICENSED AND REGULATED BY THE NEVADA STATE CONTRACTORS STATE LICENSE BOARD. ANY QUESTIONS CONCERNING A CONTRACTOR MAY BE REFERRED TO THE REGISTRAR OF THE BOARD, WHOSE ADDRESSES ARE:

**2310 Corporate Circle, Suite 200
Henderson, NV 89074**

**9670 Gateway Drive, Suite 100
Reno, NV 89521**

Contractor's Nevada State Contractor's License Number: 0076972

Subcontractor's Nevada State Contractor's License Number: 57034

- END OF NEVADA STATE RIDER-

**NEW HAMPSHIRE STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of New Hampshire or where the Laws governing the Subcontract Documents are those of the State of New Hampshire. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be ten percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else ten Days after receipt by Contractor of payment from the Owner or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within ten Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is expressly conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is ten Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Days after Contractor's request for such payment.

Section 9.1 of the Agreement is amended to add the following text prior to the first sentence:

Subcontractor waives, relinquishes, and discharges any right it may have to file a mechanic's lien pursuant to RSA 447 concerning the Project, Owner's property, or any interest therein. Subcontractor covenants that it will not file a mechanic's lien concerning the Project, Owner's property, or any interest therein for any work, labor, services, or materials provided on the Project pursuant to this Agreement or otherwise. Subcontractor agrees to include a similar waiver of mechanic's liens in each and every lower-tier subcontract, agreement, and purchase order it executes concerning the Project.

Section 9.2 of the Agreement is replaced with the following text:

- 9.2 Removal of Action or Lien. Provided Contractor is not in default of its payment obligations to Subcontractor for the Work, within ten days after Contractor delivers to Subcontractor a written demand to cause any Lien to be removed from the premises Subcontractor must cause the Lien to be removed or dismissed or else post a bond to remove the Lien provided the claimant agrees to accept a bond. If Subcontractor fails to do so, Contractor may take whatever steps it may deem in its sole discretion appropriate to cause the Lien to be removed or dismissed, including posting a bond to remove the Lien if the claimant agrees to accept a bond. All costs incurred by Contractor regarding a Lien, including actual attorneys' fees, plus a markup of 15% for overhead, will be due and payable to Contractor by Subcontractor upon demand. Subcontractor must also take whatever steps are necessary to cause Owner not to withhold any payment to Contractor by reason of the Lien. Contractor is not in default of its payment obligations to Subcontractor for withholding payment as allowed under this Agreement.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions and areas of coverage listed below:
- North Atlantic States Regional Council of Carpenters on behalf of itself and its member Local Unions
 - Massachusetts & Northern New England Laborers' District Council on behalf of itself and its member Local Unions.

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.
- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Section 22 of the Agreement is amended to add a new Section 22.2 as follows:

22.2 Subcontractor warrants that it is, and has held itself out to be, an independent contractor in business for itself and is registered with the State of New Hampshire as a business. The contractual terms of this Agreement reflect the independence from any employee relationship between Contractor and Subcontractor, and no employees of Subcontractor are employees of Contractor. Subcontractor:

- a. must have a Federal Identification number;
- b. has control and discretion over the means and manner of performance of Subcontractor's Work, so long as it is performed in a manner consistent with the Subcontract Documents and is satisfactorily completed without interfering with Contractor or any other contractor on the Project;
- c. has control over the time when Subcontractor's Work is performed so long as it is consistent with the Subcontract Documents and the current Project Schedule (e.g., Contractor cannot mandate when Subcontractor's workers take breaks);
- d. is solely responsible for controlling the employment terms and conditions of its employees; that is, Subcontractor is solely responsible for, without limitation, the hiring, firing, training, scheduling, disciplining, approving overtime, and paying its employees and is solely responsible for supervising and directing the Work performed by Subcontractor's employees and tier-subcontractors and the quality and timeliness of their Work;
- e. is responsible for its expenses related to the service or work performed;
- f. will supply the principal tools and instrumentalities used in completing Subcontractor's Work;
- g. understands that it is not required to work exclusively for Contractor; and
- h. no independent contractors will be employed by Subcontractor or any tier-subcontractor for the Project without the express written permission of Contractor. Unless Contractor expressly agrees in writing that Subcontractor may hire sub-subcontractors, all workers onsite performing any portion of Subcontractor's Work must be employees of Subcontractor, and Subcontractor agrees to comply with all applicable employment Laws, including but not limited to, the payment of wages (including, where applicable, the prevailing wage) and anti-discrimination Laws. If Contractor agrees to allow Subcontractor to hire sub-subcontractors, Subcontractor must ensure that each sub-subcontractor meets the requirements of this Section 22, including, without limitation, compliance with all applicable employment Laws such as the payment of wages (including, where applicable, the prevailing wage) and anti-discrimination Laws. Subcontractor must require each sub-subcontractor to certify that it is in compliance with this Section 22 and must provide the signed certification to Contractor before the sub-subcontractor begins its work.

SUBCONTRACTORS PERFORMING PLUMBING, ELECTRICAL, OR ASBESTOS ABATEMENT MUST BE LICENSED BY THE STATE OF NEW HAMPSHIRE.

- END OF NEW HAMPSHIRE STATE RIDER -

**NEW JERSEY STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of New Jersey or where the Laws governing the Subcontract Documents are those of the State of New Jersey. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Ten Percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven days after receipt by Contractor of payment from the Owner or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. This condition precedent also applies to Contractor's obligation to pay retainage, if any; Contractor will never be obligated to pay retainage until Contractor has received its retainage in full. This provision applies to payment for any Work performed under this Agreement, including payment for Work that falls outside the scope of the Work Authorization. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is seven days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received

by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

- New Jersey Building Construction Laborers' District Councils and Local Unions 3 and 77 of the State of New Jersey
- Eastern Atlantic States Regional Council of Carpenters, affiliated with the United Brotherhood of Carpenters and Joiners of America, on behalf of itself and its member Local Unions

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.**

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Section 22.1 of the Agreement is amended to add the following at the end:

Subcontractor may be exempt from the State of New Jersey sales tax under state Laws. When applicable, Subcontractor must obtain the Sales Tax Exempt Purchase Certificate Form ST-13 from Contractor, which may be used solely for the purposes of purchasing materials, supplies, and services for construction of the applicable Project.

Public Works Provisions

If, and only if, the Project is New Jersey State public project, then the following additional provisions apply and govern over any contrary provisions in the Agreement:

- PW-1. By commencing the Work, Subcontractor is certifying that it is registered with the New Jersey Department of Labor and Workforce Development in accordance with the Public Works Contractor Registration Act, N.J.S.A. 34:11-56.48, et seq. Subcontractor must comply with all requirements and regulations thereunder including, without limitation, any applicable prevailing wage and apprenticeship requirements. Subcontractor must maintain this registration throughout the duration of the Work.
- PW-2. Subcontractor must strictly comply with the New Jersey Prevailing Wage Act, N.J.S.A. 34:11-56.25, et seq., and all requirements and regulations thereunder.
- PW-3. By commencing the Work, Subcontractor is certifying that it is in compliance with all state and local "pay to play" laws, including, without limitation N.J.S.A. 19:44A-20.13 et seq., N.J.S.A. 19:44A-20.3 et seq., Executive Order 117, and Executive Order 118.
- PW-4. Subcontractor must defend, indemnify, and hold harmless Contractor for any claims, allegations, legal proceedings, damages, costs, penalties, or liability associated with Subcontractor's failure to comply with the "Public Works Provisions" of this Rider. Additionally, any failure by Subcontractor to comply with the terms in these Public Works Provisions is a material breach of the Agreement.

Contractor's New Jersey State Contractor's License Number: *per Work Authorization*

Subcontractor's New Jersey State Contractor's License Number: N/A

- END OF NEW JERSEY STATE RIDER -

**NEW MEXICO STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of New Mexico or where the Laws governing the Subcontract Documents are those of the State of New Mexico. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. If, and only if, Owner has approved Contractor's payment application to Owner containing Subcontractor's payment application and Owner (or another responsible party) has actually made payment to Contractor for Subcontractor's labor, services, materials, or equipment, then Contractor will make the monthly progress payment within seven Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor will be made within ten Days after proof of completion and after the last to occur of: (1) entire Work has been fully completed for the Project in conformity with the Subcontract Documents and a properly executed release and duly certified voucher for payment has been delivered to and accepted by Owner, Architect, and Contractor; (2) all liens of Subcontractor or any of its subcontractors, laborers, suppliers, or materialmen are released or removed from the property of the Owner or the Project; and (3) Owner (or another responsible party) has actually made payment to Contractor for Subcontractor's labor, services, materials, or equipment.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Subcontract.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 1.5% of the undisputed amount per month until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is the eighth Day after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by law for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor will be limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by

Contractor from the Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is the eighth Day after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

TBD

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.**

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
 - Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
 - Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
 - Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply only to the extent that the liability, damages, losses or costs are caused by, or arise out of, the acts or omissions of Subcontractor or its officers, employees, agents, subcontractors, or others for whom Subcontractor is responsible, so as to comply with N.M. Stat. §56-7-1.

15.1.2 Defense of Claims. Subject to the provisions of Section 15.1.1, Subcontractor must:

- at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- to the extent that the liability, damages, losses or costs are caused by, or arise out of, the acts or omissions of Subcontractor or its officers, employees, agents, subcontractors, or others for whom Subcontractor is responsible, pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- to the extent that the liability, damages, losses or costs are caused by, or arise out of, the acts or omissions of Subcontractor or its officers, employees, agents, subcontractors, or others for whom Subcontractor is responsible, reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees and appellate attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Section 26.1 of the Agreement is modified to read as follows:

This Agreement is governed by the laws applicable to the state and locality in which the Project is located without regard to any state's laws on choice or conflict of law.

In Attachment A, Section 5.0 is modified to add the following sentence at the end:

The obligations set forth and arising under this Section 5.0 do not require coverage for any act or omission of Subcontractor that Subcontractor is not responsible for under Section 15 of the Subcontract.

Contactor's New Mexico State Contractor's License Number: 368711

Subcontractor's New Mexico State Contractor's License Number: N/A

- END OF NEW MEXICO STATE RIDER -

**NEW YORK STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of New York or where the Laws governing the Subcontract Documents are those of the State of New York. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Section 2.3.2.1 of the Agreement is replaced with the following paragraph:

2.3.2.1 Furnish by New York State properly licensed and qualified architects or engineers all necessary professional architectural and engineering design services for the design of the Work, who must exercise the highest level of care for design professionals providing similar services and who, in performing the Work, must comply with and cause their professional work product to comply with all Laws (collectively, the "Standard of Care"). All design professionals must comply with the applicable insurance requirements set forth in Attachment A. All agreements between Subcontractor and its design professionals must contain provisions setting forth the Standard of Care and expressly providing that Contractor is a third-party beneficiary of the agreement between Subcontractor and its design professional;

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for undisputed Work actually completed by Subcontractor in strict accordance with the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be ten percent or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor's right to receive compensation for the Work is not conditioned upon Owner's payment to Contractor under the Prime Contract. If Owner or other responsible party delays making any payment to Contractor from which payment to Subcontractor is to be made, and provided that such delay is not due to the fault of Subcontractor, Contractor or its sureties will make payment to Subcontractor within a reasonable time. A "reasonable time," as used herein, will be determined according to the relevant circumstances, but in no event will it be less than the time required for Contractor, Contractor's sureties (if any), and Subcontractor to fully pursue their legal remedies to conclusion against Owner or any other responsible parties to obtain payment, including, without limitation, mechanic's lien remedies. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.3 of the Agreement is modified as follows:

Add the following after the second sentence: "Contractor will approve or disapprove of Subcontractor's payment requests within 12 Business Days after Contractor's receipt."

Revise the last sentence to read as follows: "Subcontractor agrees to hold in trust, pursuant to the New York Lien Law, all money paid to Subcontractor for the Work in favor of third parties furnishing labor and material to Subcontractor for the Work."

The last sentence of Section 4.5 of the Agreement is modified to change “five years” to “six years”.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The “Interest Commencement Date” for amounts due to Subcontractor is the later of (a) seven Days after Contractor receives payment from Owner for Subcontractor’s Work or (b) the expiration of the reasonable time for payment described in Section 4.2, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor’s obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor’s pro rata share of any interest received by Contractor from Owner on late payments. The “Interest Commencement Date” for amounts due from Subcontractor to Contractor is seven Days after Contractor’s request for such payment.

Insert new Sections 4.9 and 4.10 of the Agreement as follows:

- 4.9 Withholding Payment of Funds. Contractor may withhold funds for any of the reasons set forth under Section 14.3, in addition to any rights to withhold funds under Laws. Contractor must, upon Subcontractor’s written request, provide a written explanation for the withholding of any funds due to Subcontractor.
- 4.10 Due Date of Funds from Owner. Contractor is only entitled to payment for the Work as set forth in the Prime Contract, and the due date for receipt of such funds is specified in the Prime Contract. Subcontractor is not entitled to interest based on any other due date whether set forth by statute or otherwise.

Section 9.2 of the Agreement is replaced with the following:

- 9.2 Removal of Action or Lien. Provided Contractor is not in default of its payment obligations to Subcontractor for the Work, within ten days after Contractor delivers to Subcontractor a written demand to cause any Lien to be removed from the premises Subcontractor must cause the Lien to be removed or dismissed or else file a bond to discharge the Lien in accordance with Laws. If Subcontractor fails to do so, Contractor may take whatever steps it may deem in its sole discretion appropriate to cause the Lien to be removed or dismissed, including posting a bond to discharge the Lien. All costs incurred by Contractor regarding a Lien, including actual attorneys’ fees, plus a markup of 15% for overhead, will be due and payable to Contractor by Subcontractor upon demand. Subcontractor may litigate the Lien, provided it causes the effects of the Lien to be promptly removed from the Project to the satisfaction of Contractor and Owner. Subcontractor must also take whatever steps are necessary to cause Owner not to withhold any payment to Contractor by reason of the Lien. Contractor is not in default of its payment obligations to Subcontractor for withholding payment as allowed under this Agreement.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

- North Atlantic States Regional Council of Carpenters on behalf of itself and its member Local Unions

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor’s good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor’s ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the “Applicable Labor Agreements”) as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments

into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused in part by an Indemnitee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;

- f. Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of the Indemnitees. **Except to the extent allowed under Laws, Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the negligence or willful misconduct of Indemnitees.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Attachment A is modified to include the following:

Notwithstanding anything to the contrary in Attachment A, Subcontractor must maintain the required commercial liability, automobile, pollution liability, and professional liability insurance coverages (including any applicable additional insured coverage) for the longer of (a) 10 years from Project completion and acceptance by Owner or (b) the applicable statute of limitations period.

- END OF NEW YORK STATE RIDER -

**NORTH CAROLINA STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of North Carolina or where the Laws governing the Subcontract Documents are those of the State of North Carolina. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Ten Percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven Days after Contractor receives payment from Owner (or another responsible party) or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor's right to receive compensation for the Work is not conditioned upon Owner's payment to Contractor under the Prime Contract. If Owner or other responsible party delays making any payment to Contractor from which payment to Subcontractor is to be made, and provided that such delay is not due to the fault of Subcontractor, Contractor or its sureties will make payment to Subcontractor within a reasonable time. A "reasonable time," as used herein, will be determined according to the relevant circumstances, but in no event will it be less than the time required for Contractor, Contractor's sureties (if any), and Subcontractor to fully pursue their legal remedies to conclusion against Owner or any other responsible parties to obtain payment, including, without limitation, mechanic's lien remedies. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is the later of (a) seven Days after Contractor receives payment from Owner for Subcontractor's Work or (b) the expiration of the reasonable time for payment described in Section 4.2, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven Days after Contractor's request for such payment.

A new Section 9.4 of the Agreement is added as follows:

- 9.4 Lien Agent/Project Statement. The contact information for the Lien Agent designated for a Project is set forth in an attachment or exhibit to the Work Authorization for that Project. If applicable, the statutorily required Project Statement for the Project is included as an exhibit to the Work Authorization for that Project. By executing a Work Authorization or performing Work on a Project, Subcontractor acknowledges that the Lien Agent information and, if applicable, the Project Statement were timely provided. Subcontractor must provide the Lien Agent contact information and, if applicable, the Project Statement to all of its subcontractors, suppliers, and vendors who have a direct contract with Subcontractor within three Business Days of contracting with such entities, and must contractually require such subcontractors, suppliers, and vendors to provide the same to their lower-tier subcontractors, suppliers, and vendors within three Business Days of contracting with them.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

- TBD

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind to the extent arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
 - b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
 - c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
 - f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

Subcontractor, however, is not obligated under this Agreement to indemnify or hold harmless an Indemnatee for Claims arising out of bodily injury to persons or damage to property to the extent proximately caused by or resulting from the negligence of that Indemnatee.

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

- 15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Section 17.6 of the Agreement is replaced with the following:

17.6 This Section 17 does not limit any rights or remedies that Subcontractor may have under any federal or state mechanics' lien Laws, unless those rights or remedies are expressly waived by Subcontractor.

Contractor's North Carolina State General Contractor's License Number: NC 70110

Subcontractor's North Carolina State Contractor's License Number (where applicable): N/A

- END OF NORTH CAROLINA STATE RIDER -

**OHIO STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Ohio or where the Laws governing the Subcontract Documents are those of the State of Ohio. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Ten Percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven days after receipt by Contractor of payment from the Owner or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is seven days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to

timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven days after Contractor's request for such payment.

Section 5.3 of the Agreement is amended as follows:

Delete the third sentence and replace it with the following: If Excusable Delays are caused by any reason other than the acts of Contractor or Owner that proximately cause a delay in Subcontractor's performance of the Work, Subcontractor is only entitled to additional compensation if Contractor receives compensation from the Owner for Subcontractor's delays and only in the amount of the compensation received by Contractor from the Owner that is allocable to Subcontractor's Excusable Delay, less any mark-up included by Contractor in the claim for additional compensation made on behalf of the Subcontractor to the Owner.

Add the following new fourth sentence: Subcontractor agrees that, apart from the foregoing compensation, the Subcontractor's sole and exclusive remedy for such Excusable Delays will be an extension in the time for performance of Subcontractor's Work.

Section 9.2 of the Agreement is amended as follows:

Add the following new second sentence:

If Subcontractor provides a Lien release bond, Subcontractor must immediately take all necessary steps, at Subcontractor's sole cost, pursuant to Ohio Revised Code section 1311.11(C)(1) to have such bond approved by the Court of Common Pleas for the county in which the Project is located, and have the Court's order properly recorded with the county's records, so that the Lien is cleared from title.

Add the following sentence at the end of Section 9.2:

However, nothing in this Section 9 will prohibit Subcontractor from filing a claim to protect Lien rights under Ohio Revised Code Sections 153.56, 1311.06 or 1311.26 from expiring during the pendency of Subcontractor's receipt of payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions and areas of coverage listed below:

TBD

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take

any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.
- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
 - 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
 - 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
 - 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
 - a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable but only to the extent that the Indemnitee did not proximately cause the personal injury or property damage by its negligence;
 - b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
 - c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
 - f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or

- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

- 15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws, and Subcontractor waives, and agrees that it will not assert, any defense of immunity under any applicable workers' compensation laws, including but not limited to Ohio Revised Code section 4123.74, with respect to Subcontractor's indemnity obligations to anyone directly or indirectly employed by them, or anyone for whose acts they may be liable in connection with claims by third parties.

Add the following new subsection 2.1.2 et seq. to Attachment A as follows:

- 2.1.2 Ohio Bureau of Workers' Compensation. Workers' compensation coverage must comply with all statutory requirements for workers' compensation insurance for any employee or designated representative of Subcontractor and any entity working for Subcontractor. Subcontractor must provide Contractor with a Certificate of Insurance evidencing coverage through the Ohio Bureau of Workers' Compensation ("BWC"), or must otherwise provide satisfactory confirmation to Contractor, in Contractor's sole discretion, that coverage through BWC is not required. In addition to the coverage provided through BWC, employer's liability/stop gap coverage is required per Section 2.1 of Attachment A.

Attachment A, Section 2.2 is amended to include the following new sentences at the end of this Section:

All commercial general liability policies must provide coverage for damage to Subcontractor's Work during completed operations if the damaged work or the work out of which the damage arises was performed on Subcontractor's behalf by a subcontractor, consultant, vendor, or suppliers of any tier. All commercial general liability policies must include, by endorsement or otherwise, provisions that specifically include defective construction as an "occurrence" under the policy. Subcontractor must provide Contractor with copies of such endorsements or other policy language evidencing such coverage is in place prior to the starting its Work.

- END OF OHIO STATE RIDER -

**OREGON STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Oregon or where the Laws governing the Subcontract Documents are those of the State of Oregon. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be as required under the Prime Contract, not to exceed five percent. The monthly progress payments will be made no later than seven Days after Contractor receives payment from Owner (or another responsible party) for satisfactory performance, and after Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. If, through no fault of the Subcontractor, Contractor has not timely paid Subcontractor and Subcontractor has a right to suspend its Work under ORS 701.635, then upon seven days' written notice, Subcontractor may suspend its Work until payment is made. The final payment to Subcontractor will be made upon receipt of a complete, total and unequivocal waiver of all claims known or unknown related to Subcontractor's Work and within seven Days after receipt by Contractor of final payment from Owner (or another responsible party) for Subcontractor's Work if Subcontractor has provided the documentation required by Section 4.
- 4.2 **Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party.** Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Subcontract.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the lowest rate required by ORS 701.630 (or any successor statute) until paid. The "Interest Commencement Date" for amounts due to Subcontractor is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor will be limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from the Owner on late payments. Subcontractor must include in each of its tier-subcontracts and purchase orders an interest clause conforming to the standards of ORS 701.625 and the terms of the Agreement. The "Interest

Commencement Date" for amounts due from Subcontractor to Contractor is seven Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

- Pacific Northwest Regional Council of Carpenters of the United Brotherhood of Carpenters and Joiners of America and its affiliated Local Unions
- Oregon & Southern Idaho District Council of Laborers and its affiliated Local Unions

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.**

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), but only to the extent caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
 - Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
 - Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
 - Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.

15.1.2 Defense of Claims. Subcontractor must:

- at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.
- If any Claim alleges concurrent negligence of Contractor and Subcontractor, Subcontractor agrees to defend Contractor until such time as there is a final adjudication apportioning liability between Contractor and Subcontractor. Upon such determination, Contractor will remit to Subcontractor its apportioned share of liability for the costs associated with defending only the portion of the Claim(s) involving concurrent negligence. Subcontractor agrees to maintain records sufficient to allow Contractor to determine its appropriate apportioned share.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Section 24.1 is modified to add the following after “last offer of settlement”: “(whether or not made pursuant to Rule 54E of the Oregon Rules of Civil Procedure)”.

Section 1.0 of Attachment A is modified to add the following after “waiver of subrogation” in the first sentence: “, only if, and to the fullest extent, permitted by Laws,”

Section 2.1.1.5 of Attachment A is modified to add the following after “waiver of subrogation” in the first sentence: “, only if, and to the fullest extent, permitted by Laws,”

Section 6.0 of Attachment A is modified to add the following introductory phrase in the first sentence: “Only if, and to the fullest extent, permitted by Laws,”

Public Works Provisions

If, and only if, the Project is an Oregon State “public contract” under Oregon State Laws, then the following additional provisions apply and govern over any contrary provisions in the Agreement:

- PW -1. Contractor will pay Subcontractor for satisfactory performance under this Agreement within ten days out of such amounts as are paid to Contractor by the public contracting agency under the Prime Contract. Contractor will pay to Subcontractor an interest penalty on amounts due in the case of each payment not so made as set forth in ORS 279C.580 or as otherwise provided by Laws.
- PW-2. Contractor has provided to Subcontractor, and Subcontractor acknowledges receipt of, a standard form that the first-tier subcontractor may use as an application for payment and by which Subcontractor may claim a payment due from Contractor. Contractor will use the same form and regular administrative procedures for processing payments during the entire term of this Agreement. Contractor will only change the form, or the regular administrative procedures Contractor uses for processing payments if Contractor: (a) notifies Subcontractor in writing at least 45 days before the date on which the Contractor makes the change; and (b) includes with the written notice a copy of the new or changed form or a description of the new or changed procedure.
- PW-3. Subcontractor must include in each of its tier-subcontracts and purchase orders a payment clause and an interest penalty clause conforming to the standards of ORS 279C.580(3) and ORS 279C.580(4). Subcontractor must also include in each of its sub-subcontracts a provision requiring the sub-subcontractor to have a public works bond filed with the Construction Contractors Board before starting work on the Project unless exempt according to Laws. Subcontractor must also require each of its tier-subcontractors to include such clauses in their contracts with each lower-tier subcontractor or supplier.
- PW-4. Notwithstanding the foregoing public works provisions, Contractor may retain, in the event of a good faith dispute, an amount not to exceed 150% of the amount in dispute from amounts otherwise due Subcontractor, without incurring any obligation to pay a late payment interest penalty, so long as notice is given to Subcontractor and to the public contracting agency. As used herein, “good faith dispute” means a documented dispute concerning: (a) unsatisfactory job progress; (b) defective work not remedied; (c) third party claims filed or reasonable evidence that claims will be filed; (d) failure to make timely payments for labor, equipment and materials; (e) damage to prime contractor or subcontractor; (f) reasonable evidence that the Work cannot be completed for the unpaid balance of the Subcontract Price, or (g) any other breach of the terms of the Subcontract Documents. The Contractor may also withhold all or part of Subcontractor’s request for payment in good faith and for good cause, without incurring an obligation to pay a late payment interest penalty, so long as the required notice is given.
- PW-5. Notice of any withholding will be issued to Subcontractor, with a copy to the public contracting agency, specifying: (a) the amount to be withheld; (b) the specified causes for the withholding under the terms of the Agreement; and (c) the remedial actions to be taken by Subcontractor in order to receive payment of the amounts withheld.
- PW-6. Notwithstanding the foregoing public works provisions, Contractor may retain 25% of any amount earned by Subcontractor until Subcontractor has filed with the public agency owner certified statements regarding payment of prevailing wages as required by Laws and Contractor has verified such filing. Workers of Subcontractor and its tier-subcontractors must be paid not less than the specified minimum hourly rate of wage in accordance with Laws. Subcontractor must have a public works bond filed with the Construction Contractors Board before starting work on the project, unless exempt according to Laws.
- PW-7. If Contractor fails, neglects or refuses to make payment to Subcontractor in connection with the public improvement contract, Subcontractor may file a complaint with the Construction Contractors Board, unless payment is subject to a good faith dispute as defined in ORS 279C.580.

- PW-8. If Subcontractor believes that Contractor has failed to make timely payment to Subcontractor for any amount due Subcontractor, it must inform Contractor of such in writing stating the date it believes the payment was due, and the specific amount Subcontractor believes was due. Subcontractor must defend and indemnify Contractor against any claim arising out of or relating its failure to provide written notice according to this provision.
- PW-9. On certain ODOT projects if the Work, at any tier, is modified by Contract Change Order (CCO) or Extra Work Order (EWO), Contractor may be required to submit a subcontract amendment to the ODOT Project Manager for approval. The Project Manager must provide written consent to such Subcontract amendment before any of the modified Work can commence. If the ODOT Project Manager declines to approve a CCO or EWO, then Subcontractor must perform such work without an increase to the Subcontract Price or its time for performance to the same extent that Contractor is required to perform such Work without adjustment to the Prime Contract's contract price or time.

Contractor's Oregon State Contractor's License Number: 212973

Subcontractor's Oregon State Contractor's License Number: 117001

- END OF OREGON STATE RIDER -

**RHODE ISLAND STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Rhode Island or where the Laws governing the Subcontract Documents are those of the State of Rhode Island. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 This paragraph only applies if the Project is not a public project. Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be five percent or as required under the Prime Contract. The monthly progress payments will be made within 25 Days after Contractor receives payment from Owner (or another responsible party). Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors within 25 Days from receipt of payment from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than 25 Days after Contractor receives final payment from Owner (or another responsible party) for work performed under the Prime Contract after Owner or its authorized representative issues a certificate of final completion.

This paragraph only applies if the Project is a public project. Payments are governed by RIGL § 42-11.1 *et seq.* Generally, and without limitation, Contractor will pay Subcontractor within ten Days of Contractor's receipt of payment from Owner on account of the Work; provided, however, that Contractor may set off a payment due to Subcontractor by an amount equal to the amount of an unpaid legally enforceable debt owed by Subcontractor to Contractor or any amount which Contractor is entitled to withhold under the terms of the Subcontract Documents, or any amount owed by Subcontractor to Contractor by way of a statutory obligation, or enforceable lien, of which Contractor or Subcontractor had previous knowledge or notice, or has reason to believe exists.

- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible. Moreover, Subcontractor agrees that the liability of the surety on Contractor's payment bond, if any, for payment to Subcontractor, is subject to the same conditions precedent as are applicable to Contractor's liability to Subcontractor. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement will not bear any interest.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required

by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

- North Atlantic States Regional Council of Carpenters on behalf of itself and its member Local Unions
- Rhode Island Laborers' District Council on behalf of itself and its member Local Union 271

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs,

actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnitee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of the Indemnites. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnites for Claims proximately caused by or resulting from the negligence of Indemnites, or independent contractors who are directly responsible to Owner or Contractor.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnites or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnites or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnites or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

- END OF RHODE ISLAND STATE RIDER -

**SOUTH CAROLINA STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

THIS CONTRACT IS SUBJECT TO BINDING ARBITRATION PURSUANT TO SOUTH CAROLINA CODE OF LAWS§ 15-48-10 ET SEQ.

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of South Carolina or where the Laws governing the Subcontract Documents are those of the State of South Carolina. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, subject to when Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. **Subcontractor expressly waives the requirements of S.C. Code Sections 29-6-30 and 29-6-50.** The retention will be Ten Percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else ten Business Days after Contractor receives payment from Owner (or another responsible party) or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract, or in the absence of an applicable provision under the Prime Contract, within ten Business Days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor's right to receive compensation for the Work is not conditioned upon Owner's payment to Contractor under the Prime Contract. If Owner or other responsible party delays making any payment to Contractor from which payment to Subcontractor is to be made, and provided that such delay is not due to the fault of Subcontractor, Contractor or its sureties will make payment to Subcontractor within a reasonable time. A "reasonable time," as used herein, will be determined according to the relevant circumstances, but in no event will it be less than the time required for Contractor, Contractor's sureties (if any), and Subcontractor to fully pursue their legal remedies to conclusion against Owner or any other responsible parties to obtain payment, including, without limitation, mechanic's lien remedies. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. **Subcontractor expressly waives the requirements of S.C. Code Sections 29-6-30 and 29-6-50.** The "Interest Commencement Date" for amounts due to Subcontractor is the later of (a) ten Business Days after Contractor receives payment from Owner for Subcontractor's Work or (b) the expiration of the reasonable time for payment described in Section 4.2, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then the timing of Contractor's payment of interest to Subcontractor will be similarly delayed. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Business Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.3.1 Immigration Compliance. In addition to and not in lieu of any other provision requiring compliance with Laws, Subcontractor warrants and represents to Contractor that Subcontractor: (a) has fully complied and will continue to fully comply, at its own cost, with all Laws governing immigration, as may be amended from time to time, including but not limited to the Immigration Reform and Control Act of 1986 ("IRCA") and the South Carolina Illegal Immigration Reform Act, in particular Section 8, Illegal Aliens and Private Employment of Title 41, Labor and Employment, S.C. Code 41-8-10 to -140, along with their I-9 employer verification provisions (collectively, "the Immigration Compliance Requirements"); (b) if required by the Immigration Compliance Requirements or the Subcontract Documents, has upon signing the Work Authorization contemporaneously signed and returned to Contractor a Subcontractor affidavit that strictly conforms to the requirements of the Subcontract Documents, or if the form is not provided therein, with the Immigration Compliance Requirements; (c) has properly trained and will continue to properly train its staff regarding the execution and retention of I-9 employment verification forms; (d) is not now in violation of the Immigration Compliance Requirements; (e) has provided written notification to Contractor of all prior citations by any government agency for violations of the Immigration Compliance Requirements; (f) if required by the Immigration Compliance Requirements or the Subcontract Documents, has implemented and will continue to implement a company-wide I-9 employment verification policy (including, but not limited to the use of the EEV/Basic Pilot for employment eligibility verification of all new hires and current employees assigned to the Project, where such usage is required by the Subcontract Documents or Laws); and (g) if required by the Immigration Compliance Requirements or the Subcontract Documents, Subcontractor will cause all lower-tier subcontractors to (1) sign a subcontractor affidavit that Subcontractor must return to Contractor and (2) comply with all other requirements of this provision. Should Subcontractor become aware of any government audit of its employees or employer verification procedures, it must immediately notify Contractor in writing of such an audit and provide Contractor a copy of the findings when they are made available.
- 13.3.2 To the fullest extent permitted by Laws, Subcontractor must indemnify, defend and hold harmless Contractor and all of its affiliates, officers, directors, employees, successors and assigns, from and against all claims, damages, losses, costs and expenses, including but not limited to actual attorneys' fees, public relations costs, and work stoppages, arising out of or resulting from the failure of Subcontractor or its employees, agents, tier-subcontractors or suppliers, to properly verify workers or otherwise to fully comply with the Immigration Compliance Requirements, including but not limited to any fines or penalties incurred by Contractor or Owner in connection therewith.
- 13.4 Not used.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Not used.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

- 15.1 Subcontractor's Performance.
- 15.1.1. To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnites, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnitee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of the Indemnites. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnites for Claims arising from the sole negligence or willful misconduct of Indemnites, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnites or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnites or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnites or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Contractor's South Carolina State Contractor's License Number: G116258

Subcontractor's South Carolina State Contractor's License Number: N/A

- END OF SOUTH CAROLINA STATE RIDER -

**TENNESSEE STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Tennessee or where the Laws governing the Subcontract Documents are those of the State of Tennessee. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Five Percent, or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven days after receipt by Contractor of payment from the Owner or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is expressly conditioned upon Contractor's receipt of payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is seven days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Not used.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:15.1 Subcontractor's Performance.

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnitee;
 - b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
 - c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnitee therefrom;
 - f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.**

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Contractor's Tennessee State Contractor's License Number: TN 00065266

Subcontractor's Tennessee State Contractor's License Number: N/A

- END OF TENNESSEE STATE RIDER -

**TEXAS STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Texas or where the Laws governing the Subcontract Documents are those of the State of Texas. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be ten percent or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven days after Contractor has received final payment under the Prime Contract, but only to the extent Contractor receives funds from Owner (or another responsible party) in final payment for Subcontractor's Work. If Owner releases all or part of the retention applicable to Subcontractor's Work prior to final payment under the Prime Contract, Contractor will pay such amount pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute.
- 4.2 Conditions Precedent. Subject to the terms and provisions of Chapter 56 of the Texas Business and Commerce Code regardless of any conflicting or contrary provisions in the Subcontract Documents, Subcontractor expressly understands and agrees that Contractor's receipt of payment from Owner (or another responsible party) is a condition precedent to any payment for the Work becoming due to Subcontractor under this Agreement. The risk of Owner's non-payment is expressly borne by each of Contractor and Subcontractor to the extent that Owner does not pay for such party's work or materials. If this condition precedent has not been met, regardless of the reason, no payment is due to Subcontractor. The parties agree that Contractor has no liability for payments to Subcontractor or for any breach of this Agreement or for any damages or loss resulting from or by reason of any act, omission, neglect, delay, or requirement by Owner or Architect, or any failure or refusal of Owner to provide Contractor with funds to make payments to Subcontractor for the Work. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.3 of the Agreement is modified so that the last sentence now read as follows:

Subject to the applicable trust fund provisions of Texas Laws, Subcontractor agrees to hold in trust all money paid to Subcontractor for the Work in favor of third parties furnishing labor and material to Subcontractor for the Work.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is seven days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor

is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4: NOT USED
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

- 15.1.1 **GENERAL INDEMNITY: TO THE FULLEST EXTENT PERMITTED BY LAWS, THE SUBCONTRACTOR EXPRESSLY AGREES TO DEFEND, INDEMNIFY, AND HOLD HARMLESS OWNER, CONTRACTOR, ITS JOINT VENTURE AND ITS JOINT VENTURE PARTNERS, IF ANY, ITS AFFILIATES AND THEIR RESPECTIVE OWNERS, OFFICERS, AGENTS, EMPLOYEES, INSURERS, AND SURETIES, AND OTHER ENTITIES, IF ANY, WHICH CONTRACTOR IS OBLIGATED TO INDEMNIFY, DEFEND OR HOLD HARMLESS PURSUANT TO THE PRIME CONTRACT (COLLECTIVELY, "INDEMNITEES"), FROM ANY AND ALL CLAIMS, ALLEGATIONS, LEGAL PROCEEDINGS, DAMAGES, COSTS, ACTUAL ATTORNEYS' FEES, LOSSES OR LIABILITIES, IN LAW OR IN EQUITY OF EVERY KIND ARISING OUT OF OR RELATED TO SUBCONTRACTOR'S PERFORMANCE OF THE WORK ("CLAIMS"). THE OBLIGATIONS OF SUBCONTRACTOR STATED ABOVE INCLUDE, BUT ARE NOT LIMITED TO, CLAIMS ON ACCOUNT OF OR IN CONNECTION WITH INJURIES TO OR THE DEATH OF ANY PERSON, OR ANY DAMAGES OF ANY TYPE OR CHARACTER INCLUDING, BUT NOT LIMITED TO, PROPERTY DAMAGE, REGARDLESS OF POSSESSION OR OWNERSHIP, WHICH INJURIES, DEATH OR DAMAGES ARISE FROM OR ARE IN ANY MANNER CONNECTED WITH THE WORK PERFORMED BY OR FOR THE SUBCONTRACTOR'S ACCOUNT FOR THE PROJECT, OR ARE CAUSED IN WHOLE OR IN PART BY THE ACTS OR OMISSIONS OR PRESENCE OF THE PERSON OR PROPERTY OF SUBCONTRACTOR OR ANY OF ITS EMPLOYEES, AGENTS, REPRESENTATIVES, TIER-SUBCONTRACTORS, OR SUPPLIERS. THE FOREGOING OBLIGATIONS INCLUDE, BUT ARE NOT LIMITED TO, INJURIES, DEATH, OR DAMAGES THAT ARISE FROM OR IN CONNECTION WITH ANY ACT, ERROR, OMISSION OR NEGLIGENCE OF ANY INDEMNITEES. THE FOREGOING OBLIGATION OF SUBCONTRACTOR TO DEFEND THE INDEMNITEES REQUIRES SUBCONTRACTOR TO DEFEND ANY CLAIMS AT SUBCONTRACTOR'S EXPENSE AND WITH COUNSEL ACCEPTABLE TO CONTRACTOR. THE INDEMNIFICATION OBLIGATIONS UNDER THIS AGREEMENT ARE NOT LIMITED IN ANY WAY BY ANY LIMITATION ON THE AMOUNT OR TYPE OF DAMAGES, COMPENSATION, OR BENEFITS PAYABLE BY OR FOR SUBCONTRACTOR UNDER WORKER'S OR WORKMEN'S COMPENSATION ACTS, DISABILITY LAWS, OR OTHER EMPLOYEE BENEFIT LAWS. THESE INDEMNIFICATION OBLIGATIONS EXTEND TO AND INCLUDE ANY ACTIONS BROUGHT BY OR IN THE NAME OF ANY EMPLOYEE OF SUBCONTRACTOR OR ANY THIRD PARTY TO WHOM SUBCONTRACTOR MAY SUBLET A PART OF THE WORK. IN ENTERING THIS AGREEMENT, SUBCONTRACTOR ACKNOWLEDGES THAT THE AGREEMENTS BY SUBCONTRACTOR SET FORTH IN THIS SECTION 15 ARE INTENDED TO PROTECT, INDEMNIFY AND HOLD THE INDEMNITEES HARMLESS FROM THE CONSEQUENCES OF THE INDEMNITEES' OWN**

NEGLIGENCE AND ACTIONS AND THE NEGLIGENCE AND ACTIONS OF THE INDEMNITEES' EMPLOYEES, REPRESENTATIVES, OFFICERS AND AGENTS. THE FOREGOING INDEMNITY DOES NOT APPLY TO CLAIMS ASSERTED AGAINST AN INDEMNITEE BASED SOLELY ON THAT INDEMNITEE'S SOLE NEGLIGENCE UNLESS THE CLAIM IS ASSERTED BY ANY EMPLOYEES, AGENTS, OR REPRESENTATIVES OF SUBCONTRACTOR OR ANY LOWER-TIER SUBCONTRACTORS OR SUPPLIERS OF SUBCONTRACTOR. IT IS THE INTENT OF CONTRACTOR AND SUBCONTRACTOR THAT IF THE PROVISIONS OF SUBCHAPTER C OF CHAPTER 151 OF THE TEXAS INSURANCE CODE APPLY TO THIS AGREEMENT, NOTHING IN THE SUBCONTRACT DOCUMENTS WILL IMPOSE ANY REQUIREMENTS ON SUBCONTRACTOR THAT ARE PROHIBITED BY SUCH SUBCHAPTER, AND THAT ANY OF THESE PROVISIONS THAT ARE NOT PROHIBITED BY SUCH SUBCHAPTER WILL REMAIN IN FULL FORCE AND EFFECT. ACCORDINGLY, IF IN CONSTRUING AND INTERPRETING THIS AGREEMENT, A COURT OF COMPETENT JURISDICTION OR IF APPLICABLE, AN ARBITRATOR, DETERMINES THAT SUBCHAPTER C OF CHAPTER 151 OF THE TEXAS INSURANCE CODE APPLIES TO THIS AGREEMENT, THEN THE COURT OR ARBITRATOR MUST REFORM THE PROVISIONS OF THIS AGREEMENT SO AS TO COMPLY WITH SUCH SUBCHAPTER, AND SUCH REFORMATION WILL NOT AFFECT THE VALIDITY OF ANY PROVISIONS OF THIS AGREEMENT THAT ARE NOT PROHIBITED BY SUCH SUBCHAPTER.

- 15.1.2 **Indemnity against Claims and Liens:** In addition, Subcontractor must turn the Work over to Contractor in good condition and free and clear from all claims, encumbrances, and liens for labor, services, or materials, and must defend (at Subcontractor's expense and with counsel acceptable to Contractor) indemnify, and hold harmless Contractor, Owner, and the Project from and against all claims, encumbrances, and liens arising out of or in connection with Subcontractor's Work. If Subcontractor fails to pay for all labor, services, and materials used or purchased for use in the Work, Contractor may, in addition to all other rights and remedies of Contractor, and without notice to Subcontractor, pay all such claims and deduct the amounts therefrom from the Subcontract Price.
- 15.1.3 **Intellectual Property Infringement:** Without limiting Subcontractor's other obligations and covenants under Section 15, and except to the extent otherwise provided in the Prime Contract, Subcontractor agrees to defend (at Subcontractor's expense and with counsel acceptable to Contractor), indemnify, and hold harmless, the Indemnitees from and against any claims or legal proceedings for infringement or violation of any patent, trademark, or other proprietary rights by Subcontractor or those for whom it is responsible, and further agrees to pay all loss and expense incurred by Contractor by reason of any such claims or proceedings, including all legal costs.

NOTE: CERTAIN MUNICIPALITIES REQUIRE SOME CONTRACTORS TO OBTAIN LICENSES THROUGH THE LOCAL MUNICIPALITY

- END OF TEXAS STATE RIDER -

**UTAH STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Utah or where the Laws governing the Subcontract Documents are those of the State of Utah. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be five percent or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else ten Business Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment to Subcontractor, including retention, will be made after the entire Work has been fully completed for the Project in conformity with the Subcontract Documents and has been delivered to and accepted by Owner, Architect, and Contractor, within ten Business Days after Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and agrees that Subcontractor's Work is a portion of the scope of work included in the Prime Contract and that payment for Subcontractor's Work by Contractor is specifically conditioned upon Contractor's receipt of payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work solely on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor assumes the risk that it will not be paid for Subcontractor's Work, or any portion thereof, if Contractor is not paid by Owner for such work and exonerates Contractor from all liability therefrom. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien and take necessary legal action to preserve that claim of lien. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bond are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.3 of the Agreement is modified to revise clause (b) as follows:

- (b) if and when required by Contractor, payroll affidavits, receipts, vouchers, applicable lien waivers and releases of claims by Subcontractor, and by materialmen, suppliers, union trustees and trust funds, and subcontractors at all tiers hired by or through Subcontractor in the forms set forth in Attachment B of the applicable Work Authorization or in a form reasonably required by Contractor, stop notice releases, and any other information or documents reasonably requested by Contractor or required to be provided to Owner under the Prime Contract.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to

Subcontractor is ten Business Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by law for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor will be limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from the Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Business Days after Contractor's request for such payment.

Section 5.2 is modified as follows:

Without implying a different meaning for Projects in other states, the reference to "no fault of Subcontractor" will be interpreted to mean "through no fault of Subcontractor or those at any tier for whom Subcontractor is responsible."

Section 9.2 is replaced with the following text:

- 9.2 Removal of Action or Lien. Provided Contractor is not in default of its payment obligations to Subcontractor for the Work, within ten days after Contractor delivers to Subcontractor a written demand to cause any Lien to be removed from the premises Subcontractor must cause the Lien to be removed or dismissed, or post a bond to remove the Lien, or else provide substitution of alternate security as provided by Utah Laws. If Subcontractor fails to do so, Contractor may take whatever steps it may deem in its sole discretion appropriate to cause the Lien to be removed or dismissed, including posting a bond or substituting alternate security to remove the Lien. All costs incurred by Contractor regarding a Lien, including actual attorneys' fees, plus a markup of 15% for overhead, will be due and payable to Contractor by Subcontractor upon demand. Subject to Section 17, Subcontractor may litigate the claims associated with the Lien, provided it causes the effects of the Lien to be promptly removed from the Project to the satisfaction of Contractor and Owner. Subcontractor must also take whatever steps are necessary to cause Owner not to withhold any payment to Contractor by reason of the Lien. Contractor is not in default of its payment obligations to Subcontractor for withholding payment as allowed under this Agreement.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor, to the extent permissible under Laws, must comply with, observe, and be bound by all the terms and provisions of any labor agreements executed by Contractor or on Contractor's behalf. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

TBD

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.
- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so. Subcontractor must also provide to Contractor a list of all labor agreements that may relate to the Work as well as all trust funds or other beneficiaries of the labor agreements.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to any progress or final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 30 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
 - b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
 - c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - e. Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
 - f. Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify**

Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees, or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons. The parties intend that the rights and duties arising under this Section 15 should be interpreted and applied so as to comply with the provisions of UCA §13-8-1.

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Section 21.4 is modified to add the following sentence at the end:

Subcontractor agrees that any assignment made does not act as a release or relieve Subcontractor from any obligations it may have under the Subcontract Documents.

CONTRACTORS ARE REQUIRED BY LAW TO BE LICENSED AND REGULATED BY THE UTAH DIVISION OF OCCUPATIONAL AND PROFESSIONAL LICENSING. ANY QUESTIONS CONCERNING A CONTRACTOR MAY BE REFERRED TO THE REGISTRAR OF THE BOARD, WHOSE ADDRESS IS:

Utah Division of Occupational and Professional Licensing
160 East 300 South
Salt Lake City, Utah 84111

Contractor's Utah State Contractor's License Number: 7832447-5501

Subcontractor's Utah State Contractor's License Number: N/A

- END OF UTAH STATE RIDER -

**VIRGINIA STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the Commonwealth of Virginia or where the Laws governing the Subcontract Documents are those of the Commonwealth of Virginia. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Section 1.2 of the Agreement is modified to add the following at the end:

The parties intend that all the terms of the Prime Contract, not just those relating to the scope or technical aspects of the Work, and expressly including waivers and other limitations of rights, are incorporated into the Subcontract Documents to the extent the terms relate in any way to the Work or Subcontractor's obligations under this Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work satisfactorily completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be Ten Percent, or as required under the Prime Contract. The monthly progress payments will be made within the earlier to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else seven days after receipt by Contractor of payment from the Owner or (b) a reasonable time after all of the following have occurred: (1) Owner's acceptance of the Work; (2) Contractor's receipt of Subcontractor's invoice following satisfactory completion of the portion of the Work for which Subcontractor has invoiced; and (3) Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors, to the extent of their respective interests therein. The final payment to Subcontractor, including any retention, will be made pursuant to the terms of the Prime Contract but in no event longer than is required by applicable statute, or in the absence of an applicable provision under the Prime Contract, within seven days after the Work has been fully completed and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor's right to receive compensation for the Work is not conditioned upon Owner's payment to Contractor under the Prime Contract. If Owner or other responsible party delays making any payment to Contractor from which payment to Subcontractor is to be made and provided that such delay is not due to the fault of Subcontractor, Contractor or its sureties will make payment to Subcontractor within a reasonable time. A "reasonable time", as used herein, will be determined in accordance with the relevant circumstances, but in no event will be less than the time required by Laws. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing set forth above. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 0.5% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is the later of (a) seven Days after Contractor receives payment from Owner for Subcontractor's Work or (b) the expiration of the reasonable time for payment described in Section 4.2, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Laws for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor is limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is seven Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.

13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions and areas of coverage listed below:

- Metropolitan Area of Philadelphia/Baltimore/Washington Laborers' District Council, LIUNA
- Eastern Atlantic States Regional Council of Carpenters, affiliated with the United Brotherhood of Carpenters and Joiners of America, on behalf of itself and its member Local Unions
- West Virginia and Appalachian Laborers' District Council Laborers' International Union of North America, AFL-CIO, and its Local Union #980.

Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction. To the extent Subcontractor performs, subcontracts, authorizes or otherwise assigns work of the type covered by the Applicable Labor Agreements (defined below), Subcontractor hereby expressly agrees that all of the provisions of the Applicable Labor Agreements are incorporated into this Agreement for the Project and that the following subsections will apply:

13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in this Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.

13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.

13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.

13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.

13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 14.3 of the Agreement is modified as follows:

- 14.3. Grounds for Withholding Payment. Contractor may withhold payment or, on account of subsequently discovered evidence, nullify the whole or part of any previous payment, to the extent Contractor deems it necessary to protect itself from loss, including without limitation costs and attorneys' fees, due to: (a) defective Work not remedied; (b) claims filed, or reasonable evidence indicating a probable filing of a claim, by any third party or any employee, sub-subcontractor, or supplier of Subcontractor relating to the Work or Project; (c) failure of Subcontractor to make proper payments to its employees, sub-subcontractors, suppliers, or any employee benefit program or trust; (d) a reasonable doubt by Contractor that the Work can be completed by Subcontractor in accordance with this Agreement for the balance of the Subcontract Price then unpaid or within the time fixed for completion of the Work; (e) damage caused by Subcontractor or its sub-subcontractors, suppliers or agents to another contractor or supplier; (f) penalties assessed against Contractor or Subcontractor for failure of Subcontractor to comply with Laws; (g) grounds under which Owner may elect to withhold payment under the Prime Contract on account of Subcontractor's performance; (h) Subcontractor's failure, or Contractor's reasonable anticipation that Subcontractor will fail, to comply with any requirement of the Subcontract Documents, including clean-up; (i) Subcontractor's failure to timely and accurately submit any report (including complete Subcontractor's daily reports), submittal, or a complete and accurate payment application including a fully completed affidavit and lien releases required pursuant to this Agreement; and/or (j) any other ground for withholding payment allowed by Laws or as provided in this Agreement. In any of those events, any amounts then due and owing to Subcontractor will be paid or credited to it without interest upon the event being rectified to Contractor's full satisfaction.

Section 14.6 of the Agreement (captioned "Offset") is deleted.**Section 15.1 of the Agreement is as follows:**15.1 Subcontractor's Performance.

15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:

- a. Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable regardless of whether that personal injury or damage is caused by an Indemnatee;
- b. Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provide;
- c. Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
- d. Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
- e. Subject to Section 9, Claims and liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
- f. Subcontractor's breach of any covenant, representation or warranty made by it in Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
- g. Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any active and/or passive negligent act or omission of the Indemnitees. **Subcontractor, however, is not obligated under this Agreement to indemnify Indemnitees for Claims arising from the sole negligence or willful misconduct of Indemnitees,**

or independent contractors who are directly responsible to Owner or Contractor, or for defects in design furnished by these persons.

15.1.2 Defense of Claims. Subcontractor must:

- a. at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees or any of them;
- b. pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and
- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Public Works Provisions

If, and only if, the Project is a Virginia "public works" contract under Virginia law, then the following additional provisions apply and govern over any contrary provisions in the Agreement:

PW-1 Discrimination Prohibited. Pursuant to Va. Code § 2.2-4311:

- a. Subcontractor will not discriminate against any employee or applicant for employment because of race, religion, color, sex, national origin, age, disability, or other basis prohibited by state law relating to discrimination in employment, except where there is a bona fide occupational qualification reasonably necessary to the normal operation of the contractor. Subcontractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause.
- b. Subcontractor, in all solicitations or advertisements for employees placed by or on behalf of Subcontractor, will state that Subcontractor is an equal opportunity employer.
- c. Notices, advertisements and solicitations placed in accordance with federal law, rule or regulation shall be deemed sufficient for meeting the requirements of PW-1(a)-(b).

PW-2 Drug-free workplace. Pursuant to Va. Code 2.2-4312:

- a. During the performance of the Work, Subcontractor agrees to (i) provide a drug-free workplace for subcontractor's employees; (ii) post in conspicuous places, available to employees and applicants for employment, a statement notifying employees that the unlawful manufacture, sale, distribution, dispensation, possession, or use of a controlled substance or marijuana is prohibited in Subcontractor's workplace and specifying the actions that will be taken against employees for violations of such prohibition; and (iii) state in all solicitations or advertisements for employees placed by or on behalf of Subcontractor that Subcontractor maintains a drug-free workplace; and
- b. For the purposes of PW-2, "drug-free workplace" means a site for the performance of work done in connection with a specific subcontract awarded to a subcontractor in accordance with the Virginia Public Procurement Act, the employees of whom are prohibited from engaging in the unlawful manufacture, sale, distribution, dispensation, possession or use of any controlled substance or marijuana during the performance of the subcontract.

PW-3 Payment. Pursuant to Va. Code § 2.2-4354:

- a. Within seven Days after receipt of amounts paid to Subcontractor by Contractor for work performed by a sub-subcontractor under any sub-subcontract, Subcontractor must:
 - i. pay the sub-subcontractor for the proportionate share of the total payment received from Contractor attributable to the work performed by the sub-subcontractor under the sub-subcontract; or
 - ii. notify Contractor and sub-subcontractor, in writing, of Subcontractor's intention to withhold all or a part of the sub-subcontractor's payment with the reason for nonpayment.
- b. Subcontractor must provide Contractor: (i) the social security numbers of sub-subcontractors that are natural persons; and (ii) the federal employer identification numbers of sub-subcontractors that are proprietorships, partnerships, and corporations.

- c. Subcontractor must pay interest to any sub-subcontractor on all amounts owed by Subcontractor that remain unpaid after seven Days following receipt by Subcontractor of payment from Contractor for work performed by the sub-subcontractor, except for amounts withheld as allowed pursuant to PW-3(a).
- d. Unless otherwise provided under the terms of the sub-subcontract, interest will accrue at the rate of one percent per month.
- e. All lower-tier subcontracts of Subcontractor must be made subject to the same payment and interest requirements in this PW-3.

Contractor's Virginia State Contractor's License Number: 2705137646 A

Subcontractor's Virginia State Contractor's License Number: 2705081204

- END OF VIRGINIA STATE RIDER -

**WASHINGTON STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Washington or where the Laws governing the Subcontract Documents are those of the State of Washington. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Contractor's Washington State Contractor's Registration Number: DPRCOG833BP

Subcontractor's Washington State Contractor's Registration Number: PROBEEL000PU

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less retention, to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The retention will be five percent or as required under the Prime Contract. The monthly progress payments will be made within the last to occur of: (a) the time period for Contractor to pay subcontractors under the Prime Contract or else ten Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work or (b) a reasonable time after the Contractor's receipt of all information required of Subcontractor by Section 4. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. When Subcontractor believes it has fully performed its Work, Subcontractor must notify Contractor in writing. No final payment may become due and owing to Subcontractor without such notification having first been given. Then, the final payment to Subcontractor will be made within ten Days after the entire Work has been fully completed for the Project in conformity with the Subcontract Documents and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent Contractor receives funds from Owner (or another responsible party) in final payment for work performed under the Prime Contract.
- 4.2 Subcontractor acknowledges and recognizes that Subcontractor's Work is a portion of the work included in the Prime Contract and that Contractor's duty to pay Subcontractor for its Work is conditioned upon payment for Subcontractor's Work by Owner or other responsible party. Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Subcontract.

Section 4.8 of the Agreement is as follows:

- 4.8 Interest.
- 4.8.1 Progress Payments. Progress payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor for progress payments is ten Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by Law for interest

charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor for progress payments will be limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from the Owner on late payments.

- 4.8.2 Final Payment. The final payment, if due and unpaid under the Work Authorization and not including amounts properly withheld by Contractor under the Agreement, will bear interest from the Interest Commencement Date at the rate of 1% per month until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for the amount due to Subcontractor as final payment is 30 Days after Subcontractor has fully performed its Work and Owner has accepted the Work, unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date set forth by Law for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor for final payment will be limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from the Owner on the late payment.
- 4.8.3 Amounts Due to Contractor. Payments due from Subcontractor to Contractor and unpaid under this Agreement will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Days after Contractor's request for such payment.

Section 5.3 is amended to add the following sentence at the end:

However, nothing in this Section is intended to conflict with the rights of Subcontractor pursuant to RCW 4.24.360, and if any provision of this Section is determined to be void or otherwise unenforceable, the remaining provisions will continue in full force and effect and this Section must be read so as to provide the broadest possible waiver of Subcontractor's damages due to delays, disruptions or hindrances allowed under Laws.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:
- Carpenters, Pile Drivers, and Millwrights of the Pacific Northwest Regional Council of Carpenters and Joiners of America
 - Washington and Northern Idaho District Council of Laborers and its affiliated Local Unions
 - Drywall Finishing and Taping: International Union of Painters and Allied Trades District Council 5, AFL-CIO

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon

request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.

- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.
- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
 - 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
 - 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
 - 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

- 15.1 Subcontractor's Performance. Subcontractor agrees to defend, indemnify and hold Owner, Contractor, and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively "Indemnified Parties") harmless from any and all claims, allegations, legal proceedings, damages, costs, reasonable attorneys' fees, losses or liability (including without limitation, any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability arising out of death, bodily injury, property damage or economic loss) to or by any and all persons or entities (including without limitation, Owner, Contractor, and any other subcontractor, and their respective employees, agents, licensees, or representatives) arising out of, resulting from, or connected with work performed or to be performed under this Agreement by the agents or employees of Subcontractor or its sub-subcontractors of any tier to the fullest extent permitted by Laws and subject to the limitations provided in the subsections of this Section 15.1 below.
 - 15.1.1 Subcontractor's duty to defend Indemnified Parties includes all reasonable attorney fees and costs incurred by the Indemnified Parties. If the allegations raised in any claim, legal proceeding or other dispute resolution, by any party against an Indemnified Party, alleges the claim arises, results from, or is connected with, in whole or in part, the Work performed, or to be performed, by or on behalf of Subcontractor, Subcontractor agrees to defend the Indemnified Party. If there are allegations or claims involving the concurrent negligence of Subcontractor and an Indemnified Party, Subcontractor agrees to defend the Indemnified Party until such time as there is a final adjudication (whether in litigation or arbitration) apportioning liability between Subcontractor and the Indemnified Party(ies). Upon such determination, the Indemnified Party will remit to Subcontractor its apportioned share of liability for the costs associated with defending only the portion of the claim involving concurrent negligence. Subcontractor agrees to maintain records sufficient to allow the Indemnified Party to determine its appropriate apportioned share. Subcontractor's duty to defend and hold the Indemnified Parties harmless includes, as to all claims, allegations, legal proceedings, damages, costs, losses or liability to which it applies, the Indemnity Party's personnel-related costs, all reasonable attorney fees, court costs and all other claim-related expenses. **Subcontractor is not required to defend an Indemnified Party from liability for damages caused by or resulting from the sole negligence of the Indemnified Party or its agents or employees.**
 - 15.1.2 Subcontractor's duty to indemnify the Indemnified Parties does not apply to liability for damages arising out of bodily injury or property damage caused by the sole negligence of an Indemnified Party or an Indemnified Party's agents or employees. Subcontractor's duty to indemnify the Indemnified Parties for liability for damages arising out of bodily injury or property damage caused by the concurrent negligence

of (a) an Indemnified Party or its agents or employees and (b) Subcontractor or Subcontractor's agents or employees will apply only to the extent of the negligence of Subcontractor or Subcontractor's agents or employees. Subcontractor specifically and expressly waives any immunity that may be granted it under the Washington State Industrial Insurance Act, Title 51 RCW. The parties acknowledge by their initials in the space indicated below that the above waiver of the immunity conferred under Title 51 RCW in the State of Washington has been mutually adopted by Contractor and Subcontractor.

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- 15.1.3 Further, Subcontractor's duty to indemnify the Indemnified Parties is not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable to or for any third party under worker's compensation acts, disability benefits acts, or other employee benefits acts.
- 15.1.4 Upon an Indemnified Party's tender of defense under this indemnity provision, Subcontractor agrees to appoint counsel to defend the Indemnified Party subject to the Indemnified Party's reasonable approval. Until final adjudication as provided in Section 15.1.1 above, such counsel will be at the sole expense of Subcontractor. If in the sole discretion of Contractor, a conflict of interest would exist with one attorney representing both Contractor and another Indemnified Party together with Subcontractor and any other defendant, then Subcontractor must furnish and pay for separate counsel for Contractor and the other Indemnified Parties where such conflicts exist.

Insert the following at the end of Section 17.1: "Subcontractor waives all entitlement to make any claim connected with the Work that is in the nature of quasi-contract, quantum meruit, quantum valebant, or any other similar or related theory in law or equity."

Revise the 4th sentence of Section 6.0 of Attachment A to read as follows: "If the policies of insurance referred to in this paragraph require an endorsement to provide for continued coverage where there is a waiver of subrogation, the owners of such policies will cause them to be so endorsed except where Monopolistic states do not issue such written waivers."

Public Works Provisions

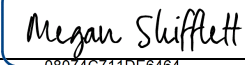
If, and only if, the Project is a Washington State "public contract" under Washington State Laws, then the following additional provisions apply and govern over any contrary provisions in the Agreement:

- PW1. Contractor will pay Subcontractor for satisfactory performance under this Agreement within ten working days out of such amounts as are paid to Contractor by the public contracting agency under the Prime Contract. Contractor will pay to the Subcontractor interest on amounts due in the case of each payment not so made. Interest will be for the period beginning on the day after the required payment date and ending on the date on which payment of the amount due is made. Interest will be computed at an interest rate that is equal to the amount set out in the applicable statute.
- PW2. Contractor will withhold five percent from the moneys earned by Subcontractor as retainage. Contractor will pay interest on retainage to Subcontractor at a rate equal to that received by Contractor from retained funds, if any. If the public contracting agency accepts a bond in lieu of retained funds from Contractor, Contractor will accept like bonds from Subcontractor.
- PW3. Notwithstanding anything in this Agreement to the contrary, Contractor may withhold all or any portion of any payment if Contractor determines that the performance of the Work by Subcontractor or its sub-subcontractors or suppliers of any tier is unsatisfactory.
- PW4. If, after making a request for payment to the public body but before making payment to Subcontractor, Contractor discovers that part or all of the payment otherwise due Subcontractor is subject to withholding under the Agreement for unsatisfactory performance, Contractor may withhold the amount from Subcontractor. If Contractor withholds an amount under this section, Contractor will:
- give Subcontractor notice of the remedial actions that must be taken as soon as practicable after determining the cause for the withholding but before the due date for Subcontractor payment;
 - give the contracting officer of the public body a copy of the notice furnished to Subcontractor under RCW 39.76.011(2)(e)(i)(A); and
 - pay Subcontractor within eight working days after Subcontractor satisfactorily completes the remedial action identified in the notice.
- PW5. Subcontractor, and each of its tier-subcontractors, must pay not less than the prevailing rate of wage for an hour's work in the same trade or occupation in the locality within the state where such labor is performed. Apprentice workers employed upon public works projects for whom an apprenticeship agreement has been registered and approved with the state apprenticeship council pursuant to chapter 49.04 RCW must be paid at least the prevailing hourly rate for an apprentice of that trade. Any worker for whom an apprenticeship agreement has not been

registered and approved by the state apprenticeship council is considered to be a fully qualified journey level worker, and, therefore, must be paid at the prevailing hourly rate for journey level workers.

- PW6. If Subcontractor believes that Contractor has failed to make timely payment to Subcontractor for any amount due Subcontractor, it must inform Contractor of such in writing, stating the date Subcontractor believes the payment was due and the specific amount Subcontractor believes was due. Subcontractor must defend and indemnify Contractor against any claim arising out of or relating its failure to provide written notice according to this provision.
- PW7. Subcontractor must also defend and indemnify Contractor against any claim arising out of or relating its failure to strictly comply with the requirement to pay prevailing wages and maintain proper records thereof.

THE UNDERSIGNED HEREBY CERTIFY THAT THIS RIDER WAS MUTUALLY NEGOTIATED.

Dated:	03/25/2026 11:51:33 PDT	Dated:	03/24/2026 10:50:25 PDT
Contractor:	DPR CONSTRUCTION, A GENERAL PARTNERSHIP	Subcontractor:	PRO-BEL ENTERPRISES LIMITED
By:	 08074C711DE6464...	By:	 8BAD4F0C70B842E...
Title:	Field Office Coordinator - Sr	Title:	VP of Finance

- END OF WASHINGTON STATE RIDER -

**WYOMING STATE RIDER
TO ATTACHMENT D
TO THE MASTER SUBCONTRACT BETWEEN
DPR CONSTRUCTION, A GENERAL PARTNERSHIP
AND
PRO-BEL ENTERPRISES LIMITED**

The provisions of this State Rider are incorporated into the Master Subcontract only for those Projects located in the State of Wyoming or where the Laws governing the Subcontract Documents are those of the State of Wyoming. If there is any conflict, inconsistency or ambiguity between the terms and provisions of this State Rider and those of the Master Subcontract, this State Rider governs. Section reference numbers refer to the sections of the Agreement.

Sections 4.1 and 4.2 of the Agreement are as follows:

- 4.1 Subject to the provisions of this Section 4, Contractor agrees to pay to Subcontractor monthly progress payments for Work actually completed by Subcontractor according to the Subcontract Documents, less normal retention and tax retention (if applicable – see Section 4.1.1 below), to the extent Contractor receives funds from Owner (or another responsible party) for Work performed by Subcontractor as reflected in Contractor's applications for payment. The "normal retention" will be five percent or as required under the Prime Contract, whichever is greater. If, and only if, Owner has approved Contractor's payment application to Owner containing Subcontractor's payment application and Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work, then Contractor will make the monthly progress payment within ten Business Days after Contractor receives payment from Owner (or another responsible party) for Subcontractor's Work. Subcontractor must, in turn and in the same manner, make progress payments to its suppliers and subcontractors upon payment to Subcontractor from Contractor for Work performed and materials furnished by suppliers and subcontractors to the extent of their respective interests therein. The final payment, excluding any tax retention, to Subcontractor will be made within ten Days after the entire Work has been fully completed for the Project in conformity with the Subcontract Documents and has been delivered to and accepted by Owner, Architect, and Contractor, to the extent and only if Owner (or another responsible party) has actually paid Contractor for Subcontractor's Work.
- 4.1.1 Unless, prior to the commencing the Work, Subcontractor submits to Contractor a notarized certification that Subcontractor is not a nonresident subcontractor as defined in Wyoming Stat Section 39-15-301(a)(iv) (or any successor statute providing for sales tax withholding on payments to a nonresident subcontractor), Contractor will withhold "tax retention" of four percent of each progress payment to Subcontractor, which tax retention is in addition to normal retention. However, if Subcontractor provides satisfactory documentation to Contractor evidencing that Subcontractor has posted the bond with the Wyoming Department of Revenue ("Department") that is described in Wyoming Stat Section 39-15-306(b)(iv) (or any successor statute) that was deemed sufficient by Department, then Contractor will not withhold tax retention and will release, if applicable, to Subcontractor any tax retention previously withheld by Contractor on payments for Subcontractor's Work. Except as otherwise provided in the prior sentence, Contractor will release tax retention to Subcontractor (and stop withholding further tax retention on any remaining Work, if applicable) promptly after Subcontractor furnishes Contractor with a certificate issued by Department showing that all sales taxes accruing by reason of Subcontractor's Work have been paid, provided that such payment of tax retention is conditioned on Contractor having received payment of such amount from Owner (or another responsible party). If any amount of the tax retention is paid to Department upon Department's demand, then that amount will be treated as a payment to Subcontractor on account of the Subcontract Price, and Subcontractor agrees to look solely to Department for payment of any portion of the tax retention that Subcontractor believes exceeds Subcontractor's liability for sales or use tax on its Work. Moreover, if Department requires Contractor to pay sales taxes on account of Subcontractor's Work in excess of the tax retention withheld by Contractor, then the Subcontract Price is automatically reduced by the amount such payment to Department exceeds the amount of the tax retention. Subcontractor must complete and return Contractor's required sales/use tax compliance forms within seven calendar days of Contractor's request.
- 4.2 **SUBCONTRACTOR ACKNOWLEDGES AND RECOGNIZES THAT SUBCONTRACTOR'S WORK IS A PORTION OF THE WORK INCLUDED IN THE PRIME CONTRACT AND THAT PAYMENT FOR SUBCONTRACTOR'S WORK BY CONTRACTOR IS CONDITIONED UPON PAYMENT FOR SUBCONTRACTOR'S WORK BY OWNER OR OTHER RESPONSIBLE PARTY.** Subcontractor warrants and represents that it relies for payment of Subcontractor's Work on the credit and ability to pay of Owner, and not of Contractor, and that Subcontractor undertakes the risk that it will not be paid for Subcontractor's Work if Contractor is not paid by Owner for such work. Except for confidential information, Subcontractor may review any information provided by Owner to Contractor relative to Owner's financial ability to pay for the Work. Notwithstanding any contrary provision of the Subcontract Documents, Subcontractor expressly acknowledges and agrees that receipt by Contractor of payment from Owner for Subcontractor's Work is a condition precedent to any payment obligation of Contractor (or its surety) to Subcontractor under this Agreement, unless the Owner has withheld monies that

would otherwise be due to Subcontractor from Contractor for reasons that are without the fault of Subcontractor and wholly the fault of Contractor or others for whom Contractor is responsible; provided, however, that this Section 4 does not void any right of Subcontractor to file a claim of lien or claim against a bond and take necessary legal action to preserve that claim of lien or claim against a bond. Any payment made prior to completion and acceptance of the Work will not be construed as evidence of acceptance of any part of the Work. If Contractor has provided a payment and/or performance bond, the obligations of Contractor and its surety to make payment (whether a progress payment or final payment) pursuant to such bonds are similarly subject to the conditions and timing of this Section 4. To that extent, Contractor's surety is an express third-party beneficiary of this Agreement.

Section 4.8 of the Agreement is as follows:

- 4.8 Payments due and unpaid under a Work Authorization written under this Agreement, not including amounts properly withheld by Contractor under the applicable Work Authorization, will bear interest from the Interest Commencement Date at the rate of 3% per annum until paid unless a higher rate is required by Laws notwithstanding the agreement of the parties. The "Interest Commencement Date" for amounts due to Subcontractor is ten Days after Contractor receives payment from Owner for Subcontractor's Work unless a different date is required by Laws, in which case the Interest Commencement Date is the latest date required by law for interest charges to commence. Notwithstanding the foregoing, if Owner fails to timely pay Contractor as required under the Prime Contract, then Contractor's obligation to pay interest to Subcontractor will be limited exclusively to payment to Subcontractor of Subcontractor's pro rata share of any interest received by Contractor from the Owner on late payments. The "Interest Commencement Date" for amounts due from Subcontractor to Contractor is ten Days after Contractor's request for such payment.

Sections 13.3 through 13.5 of the Agreement are as follows:

- 13.3 Employment Laws. Subcontractor must comply with all equal employment opportunity and other employment legal requirements promulgated by any governmental authority that apply to the Work. To the extent required by the Subcontract Documents or Laws, Subcontractor must submit certified payroll reports to Contractor no later than three Business Days after labor has been paid.
- 13.4 Labor Agreements. Subcontractor acknowledges that Contractor has entered into labor agreements covering work at its construction jobsites with the labor unions listed below:

TBD

Subcontractor hereby expressly agrees that all of the provisions of the applicable labor agreements are incorporated into this Agreement for the Project. Subcontractor acknowledges that Contractor may enter into new labor agreements not identified above. If Contractor enters into any new labor agreement, Subcontractor agrees that such new labor agreement will be deemed an Applicable Labor Agreement under this Section 13.4 for future Work Authorizations if Contractor notifies Subcontractor in writing of the new labor agreement unless Subcontractor objects in writing within five Days, giving Subcontractor's good faith business reasons for objecting. If Subcontractor timely objects in writing, then, unless and until there is a mutually agreed amendment to this Agreement providing for the new labor agreement, the new labor agreement would not be an Applicable Labor Agreement for future Work Authorizations in the applicable jurisdiction, which will impact Contractor's ability to issue future Work Authorizations to Subcontractor for projects in that jurisdiction.

- 13.4.1 Subcontractor must: (a) comply with all of the terms and conditions of the applicable labor agreements set forth in Section 13.4 (the "Applicable Labor Agreements") as if it were a party to such agreements including signatory status if required; (b) pay the wage rates, make the required trust fund payments into the respective labor trust funds, and observe the hours and all other terms and conditions set forth in the Applicable Labor Agreements; (c) comply with the terms and provisions of the Applicable Labor Agreements setting forth the grievance and arbitration provisions; and (d) comply with the terms and provisions of the Applicable Labor Agreements describing the jurisdiction and applicable scope of work for resolving jurisdictional disputes. If such procedures are absent or if such procedures fail to promptly resolve the jurisdictional dispute, then Subcontractor agrees, at its own cost and expense and upon request by Contractor, to take any and all lawful steps to secure a binding and final determination of the jurisdictional dispute by the National Labor Relations Board.
- 13.4.2 Subcontractor acknowledges that terms and conditions of the Applicable Labor Agreements may require that Subcontractor comply with additional labor agreements with unions affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America. When the terms and conditions of Applicable Labor Agreements so require, Subcontractor must perform its jobsite work pursuant to all terms and conditions of an appropriate labor agreement with a union affiliated with the AFL-CIO and/or the United Brotherhood of Carpenters and Joiners of America.

- 13.4.3 Subcontractor must require all of its subcontractors and their subcontractors of any tier performing jobsite work of the type covered by any of the Applicable Labor Agreements to agree to all of the provisions of this Section 13.4 to the same extent as Subcontractor.
- 13.5 Labor. If Subcontractor is signatory to any labor agreements, Subcontractor must comply with all of the terms and conditions of its labor agreements including any required labor trust fund payments, insofar as Subcontractor may be lawfully required to do so.
- 13.5.1 Should there be a labor dispute on Contractor's jobsite, and should a reserved gate or neutral access be established, Subcontractor must continue the proper performance of its Work without interruption or delay.
- 13.5.2 Prior to final payment to Subcontractor, when requested by Contractor, Subcontractor must provide a letter from the labor trust funds for unions to which Subcontractor is signatory that indicates the date through which Subcontractor is current in its trust fund payment obligations. Such date must be no more than 60 Days in arrears of Subcontractor's request for final payment.
- 13.5.3 Subcontractor must require all of its subcontractors of any tier performing jobsite work to agree to all of the provisions of this Section 13.5 to the same extent as Subcontractor.

Section 15.1 of the Agreement is as follows:

15.1 Subcontractor's Performance.

- 15.1.1 To the maximum extent permitted by Laws, Subcontractor must defend, indemnify and hold harmless Owner, Contractor and its joint venture and joint venture partners if any, its affiliates, and their respective owners, officers, agents, employees, insurers, and sureties, and other entities, if any, which Contractor is obligated to indemnify, defend or hold harmless pursuant to the Prime Contract (collectively, "Indemnitees"), from any and all claims, allegations, legal proceedings, damages, costs, actual attorneys' fees, losses or liability, in law or in equity, of every kind arising out of or related to Subcontractor's performance of the Work ("Claims"), including, but not limited to, Claims for:
- Personal injury, including, but not limited to, bodily injury, emotional injury, sickness or disease, or death to persons, including, but not limited to, any employees or agents of Subcontractor, Indemnitees, or any other contractor and/or damage to property of anyone (including loss of use thereof), caused or alleged to be caused in whole or in part by any act or omission of Subcontractor or anyone directly or indirectly employed by Subcontractor or anyone for whose acts Subcontractor may be liable;
 - Defects or omissions in the Work of Subcontractor or those for whom it is responsible, including materials they provided;
 - Penalties imposed on account of the violation of any Laws caused by the action or inaction of Subcontractor or those for whom it is responsible, including but not limited to, Laws in any way relating to the occupational health or safety of employees, and violations relating to the Subcontractor's use of Contractor's or others' hoists, elevators, scaffolds or other equipment;
 - Except to the extent otherwise provided in the Prime Contract, infringement of any patent, trademark, or other proprietary right by Subcontractor or those for whom it is responsible;
 - Subject to Section 9, Claims and Liens for labor performed or materials used or furnished to be used for the Work, including all damages resulting to an Indemnatee therefrom;
 - Subcontractor's breach of any covenant, representation or warranty made by it in the Subcontract Documents or in any document furnished by it pursuant to the Subcontract Documents; or
 - Any other Claims arising out of or relating to any other act (or failure to act) by Subcontractor (or those for whom it is responsible) for which Contractor must indemnify Owner or another party under the Prime Contract.

These indemnity provisions apply regardless of any concurrent negligent act or omission of one or more Indemnatee.

15.1.2 Defense of Claims. Subcontractor must:

- at Subcontractor's own cost and risk, defend all Claims as defined in Section 15.1.1 that may be brought or instituted by third persons, including, but not limited to, governmental agencies or employees of Subcontractor, against Contractor or other Indemnitees or their agents or employees, or any of them;
- pay and satisfy any judgment or decree that may be rendered against Contractor or other Indemnitees or their agents or employees, or any of them, arising out of any such Claim; and

- c. reimburse Contractor or other Indemnitees or their agents or employees for any and all expenses incurred by any of them in connection with Claims or in enforcing the defense obligations and indemnity granted in this Section 15, including, without limitation, actual attorneys' fees.

- 15.1.3 These indemnification obligations are not limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' or workmen's compensation acts, disability Laws or other employee benefit Laws.

Public Works Provisions

If, and only if, the Project owner is a "public entity" as defined by Wyoming Statutes §16-6-701(iii), then the following additional provision applies and governs over any contrary provisions in the Agreement:

PW-1. Contractor may withhold up to ten percent of a payment application by Subcontractor as normal retention until 50% of the Work required by the Subcontract Documents has been performed, at which time all normal retention shall be released to Subcontractor. Thereafter, Contractor may withhold up to five percent of payment applications by Subcontractor as normal retention. Nothing in this section applies to tax retention under Section 4.1.1.

- END OF WYOMING STATE RIDER -